# Unit I

## 1.1Structure – Contents of the unit

Social welfare administration: meaning and definition of Social welfare administration and social work administration, purpose, historical development, principles, functions, and areas (policy making, planning, personnel, supervision, office administration, budgeting, finance, fund raising, accounting, auditing, purchase and stock keeping, record maintenance, co-ordination.

## 1.2 Objectives

- Develop understanding regarding Social welfare and Administration as a method of Social work
- Understand the various social legislations
- Enhance the understanding of the roles of the agencies for social welfare administration.

# SOCIAL WELFARE ADMINISTRATION

## 1.3 INTRODUCTION

Time immemorial there were concerns for the others by human kind which were the basic elements of human being enriched by social, human and religious values. All along these values are safeguarded by joint family system, social system, religious system and group living system. When the volume of needs and challenges are increasing to the increased population and to the advent of civilisation and science; these agencies are not able to meet the needs of human kind. Hence some philanthropic individuals, businessman and socially committed individuals started to do the services for the people in general and needy in particular. These gave birth to charity model of development where in resources are pooled by individuals and groups and offered to the community either throughout the year or during some occasions.

Many a time a trust or a body is formed provided these services and which are mostly in form of kind viz., good, clothes, tools, house, etc., These type of structure and services universally found among countries all over the world in general. But in modern times, most of the countries have adopted the concept of a welfare state and India is no exception as it is envisaged in the constitution of India. When India became republic in 1950, the concept of welfare state is up held in all its provisions especially in the fundamental rights and directive principles.

The concept of Social Welfare Administration came into being when there need to be services which are provided in a scientific ways and professional manner to the needy and the downtrodden in order to improve

their standard of living. Indian society is composed of greater divisions and disparity due its socio-economic, cultural and political structure. The composition of haves' and have not's been experienced time immemorial in this - traditional, caste and religious bound community. Whenever there is a need or problem or issue there are agencies come to the rescue let it may be charity based; religion based or community based. On the contrary these services are neither systematized nor qualitatively provided and hence these services are either temporary or emergency based. With the advent of industrialization and urbanization there experienced the novel problem on one side and the increase in velocity and magnitude of the already existing problem on the other. Hence the need emerged to provide professionalism in providing welfare services to the target groups lead to the birth of the concept 'Social Welfare Administration'

The Encyclopedia of Social Sciences describes a welfare state as a state which takes up the obligation to deliver a minimum standard of sustenance to its people. Prof. Kent remarked that by a welfare state we mean a state which provides extensive services to the community. Hence on can understand that a welfare state is one wherein the administration enters into economic, political, social and educational life of individuals and it make sure that provides services to individuals, right from an individual's birth to death are provided. The nation has the moral responsibility serve the old, sick, orphans, widows, helpless, oppressed, neglected, downtrodden, weak, vulnerable, disabled etc., whenever they are in need of such services and when they need to be mainstreamed.

Modern times bring in lot of novel problems and issues to the community. Though there are scientific advancements and technological developments on one side; on the other it gave birth lot of issues like material culture, relationship issues, environmental degradation, health hazards, psychological issues, etc. the size of welfare services provided by an increasingly large number of organisations make administration very crucial and vital. Essentially Social welfare services, schemes, projects and programmes becoming increasingly complex and requires expertise in terms of planning and personnel.

It becomes the dire need that professionally trained personnel and methods are essential instead of the old school of thought that any normally intelligent person with good intentions can administer the welfare work. It is increasingly felt that social welfare programmes require qualified and trained social welfare personnel to perform social welfare functions competently. So it is argued that for serving the people effectively it is necessary to professionalize, as professionalization can increase the capability of social welfare personnel to resolve the persistent social problems challenging our society in a healthy way.

## 1.4 CONCEPT OF SOCIAL WELFARE ADMINISTRATION

According to K.M.Slack (1966), 'Social Welfare Administration is not one

more social science with its own theory and body of knowledge. It makes use of the findings of any of the social sciences which are relevant to its sphere, which includes; the solving of social problems, the implementation of social policy and the promotion of social welfare. It may focus attention on one area or synthesize various areas of knowledge of social institutions and human behavior and thereby increase understanding. But its distinctive character is that it combines and benefits from any of the conclusions of the social sciences which assist it and uses them as tools in the performance of the functions which are its particular concern'.

In the words of Forder, 'Social welfare administration is concerned with the study of the welfare system, and particularly the government-sponsored social services'.

**Administration – Meaning**

The literal meaning noted in the dictionary for administration is the management of affairs. Thus, the meaning implies that it is to administer or manage or direct to serve. Nevertheless, in order to provide social services to the penurious sections of the population, one necessitates not merely dedication and commitment but planning, organization, administrative efficiency and adequate knowledge of budgeting, accounting, public relations, reporting etc,. so as to extend the services in a professional way in terms of achieving the pre-determined objectives. The spending of public money, involves accountability and responsibility whether the programme is government or private.

The term administration is a co-operative human effort towards achieving some common objectives. It is understood that every group activity involves administration, whether in a family, factory, hospital, school, university, organisation, government department etc., Whenever two or more people cooperate in view of engaging to perform a function or activity that cannot be taken up alone, the concept of administration gives birth.

The word administration has been derived from the Latin words 'ad' and 'ministrate' which means to serve. Literally it means 'management of affairs' or 'looking after the people'. To administer is to manage, direct and serve.

L.D. White (1948) defined that "the art of administration is the direction, coordination and control of many persons to achieve some purpose or objective."

It was E.A. Nigro (1951) who viewed that "administration as the organisation and use of men and materials to accomplish a purpose."

Herbert A. Simon (1960) puts in simply that social administration in its broadest sense 'can be defined as the activities of groups co-operative to accomplish common goals'.

Pfiffner states "administration as the organisation and direction of human

and material resources to achieve desired ends."

The above definitions implies that there need to be well structured organisation and which could organise men and material in order to achieve the pre-determined goal of social up liftment and social development through a competent efforts.

### 1.4.1 Social Administration – Meaning & Definition

Social welfare can be achieved through social policies formulated by the government through its long and lengthy procedures involving the various stakeholders. Once the policy is formulated it will be followed by programmes, legislations, procedures, rules and regulations along with the financial outlay and the structure to implement the policy so as to reach its objectives. In this process both government organisation and non-governmental organisations either on its own or along the partnership of both of them involve in the implementation of such programmes. Many a time the un-reached target groups or populations reached by non-governmental organisations in order the mainstream the un-reached. Administration of all these actions being done in the sphere of social services and social welfare is considered as falling in the domain of social welfare administration as there is always a inter linking between these two. Some of the following definitions by social scientists could clarify the concept further.

**Social Welfare Administration as an Art**

The following arguments have been given to support that social welfare administration is an art.

**It can be acquired:** No doubt art is a natural gift. Subjects such as Music, dance, drama or painting are the examples of this category of art. But natural gifts can find their greatest appearance by proper training. An art may require the following skills and essentials such as personal skills, practical know-how, result orientation, creativity and constant practice aimed at perfection. Similarly, the art of social welfare administration can be acquired. Talented persons become the best administrators under proper training. Thus so far acquisition is concerned social welfare administration is also like other arts.

**It is subjective in nature:** As an artist who uses various tools and equipment a social welfare administrator with the application of knowledge and skill can make wonders by merging and bringing together accessible human and material resources to transform the social structure and function of the community. Today success of every welfare programme depends on how a social welfare administrator performs the job in a professional way using his competence and expertise obtained through the education and training obtained formally.

**Practical application of knowledge:** Art is the practical application of systematic knowledge. It is not only theory but putting that into practice. Similarly, social welfare administration is not merely theory but it is

application of knowledge in implementing the actions in the form of programmes or projects so as to transform the community for the quality livelihood.

**Social Welfare Administration as a Science**

Science is a methodical study of knowledge. Those who argue in the school that social welfare administration is a science point out that there are definite precise and clear principles on which day to day administration of social welfare programmes is being managed. They also argue that these principles are based on comprehensive and coherent principles, which are also considered and applicable throughout the world cutting across the time.

The following factors could explain that social welfare administration is a science:

**Application of Scientific Method:** The claim of a discipline to be called a science depends on whether the scientific system of study is applicable to it. Social welfare administration can be called a science, because the scientific method of study equally is applicable to it, as in the case of other social sciences.

**Critical Examination:** Critical examination and study of confirmation is the prime obligatory of any scientific study. This is possible in social welfare administration also.

**Universal Guidelines:** Universal principles of social welfare administration also responsible for the colouring of science. Even if we cannot use all the guidelines in a similar manner, these guidelines certainly helps the administrator in proper implementation of social welfare programmes.

The nature of social welfare administration as a science has been criticized on the basis of lack of testing and neutrality. Thus it is not an exact science, but is a science in its own way. It is also an art, because it is connected not only with formulation of general principles of social welfare programmes but also with the actual running of the administration of social welfare programmes.

**1.5 Social welfare and Social Work Administration**

Beavers (1950): Administration "as the processes of an organization are determined, plans made for achieving these aims and the plans carried out".

Tead (1939): "Administration is the process of reaction, oversight, coordination and stimulation in an agency designed to carry out some agreed purpose with economy and effectiveness in the means employed (material and personnel) and with all possible regard.

Leopard Maya (1945): Administration may be define and clarification of function; the formulation of policies and procedures; the delegation of authority; the selection, supervision and appropriate resources to the end so that the purposes of the agency may be fulfilled.

Arlien Johnson (1947): Administration as "a process objectives of program are transformed into reality through a structure and a mode of operation that make possible the coordinated and unified work of people in the movement towards the defined objectives".

Kidneigh (1950): Administration "as the process of all policy into social services and in nutshell it is a two way process (1) transforming policy into concrete social services and (2) the use of experience in recommending and modification of such policies.

In 1948, Richard M. Titmus, defined social administration as the 'study of social services whose object is the improvement of conditions of life of the individual in the setting of family and group relations.'

D.V. Donnison, 1961 defines social administration "as the study of development, structure and practices of social services."

According to Forder (1974) "Social administration is concerned with study of the welfare system, and particularly the government sponsored social services".

In nutshell social administration is the study of welfare system of government's sponsored social services with a specific objective of promoting the society.

### 1.5.1 Nature of social work administration:

As a Profession

No doubt social work administration is a profession by its nature of knowledge and training. At this juncture it is essential to know what the essential features of a profession are and to determine how far these features are found in social welfare administration. In general, people do not raise opposition when a doctor is called as medical professional, teaching as a profession or for that matter law as a profession.

The simple dictionary meaning of profession indicates one who has acquired specialised knowledge which is used for instructing, guiding or advising others. An operational definition of profession is 'an occupation for which specialised knowledge, skills and training are required and the use of these skills is not meant for self-satisfaction but are used for larger interests of the society and the success of these skills is measured not in terms of money alone'.

Thus all professions are occupations in the logic that they provide means of livelihood. However, all occupations are not professions because some of them deficient in certain characteristics of a profession.

The major characteristics of a profession can be identified as:

- Existence of an organised and structured body of knowledge
- Prescribed method of attainment of knowledge
- Presence of an association with professionalization as its goals
- Making of ethical goals and
- Service motto

The following pages could establish how social welfare administration is considered as a profession:

Existence of Knowledge

Social welfare administration has developed a discrete body of knowledge, in response to the need for managing the emergence of complex social problems in a better way. In India, almost all courses of social work taught a course on social welfare administration to the students. Thus, it satisfies the prerequisite of a profession in the form of existence of knowledge. However, the social welfare administration is still evolving and new guidelines are being developed though this does not affect its status as being a profession as it could be considered as the updating of knowledge to the discipline.

Attainment of Knowledge

An individual can enter a profession only after acquiring knowledge and obtain skills through formal training. For example, only the formally trained persons can enter the professions of law, engineering or medicine. Thus social welfare administration may be called a profession because schools of social work and schools of public administration provide training in this discipline and the students of social work are trained as professional social workers.

Professional Association

An occupation which claims to be a profession should have an association. Such a representative body of professionals regulate and develop the profession's activities. The professional associations may also prescribe the standards for individuals who want to enter the profession. But we are still struggling for an apex body which would regulate the terms and conditions for Social Welfare Administration like Bar Council of India etc., Similarly there are professional social workers associations are established at the international, national and regional levels in order the safeguard the interests of the members and setting standards for practice in a professional way.

Ethical Code

If an occupation claims to be profession it should have code of ethics. Codes provide proper guidance when the situation at hand is a choice between a good and a bad decision. Thus code of ethics serves as a rules including guiding, decision making, and assessing competence, regulating behaviour and evaluating the profession. In social welfare administration, the code of ethics provides a guide for professional roles and relationships at various levels of responsibility in relation to clients, colleagues, employers, employing organisations and the society. Therefore, the social welfare administration is a profession and its code of ethics is based on the fundamental values of the social work profession that includes the worth, dignity and uniqueness of all persons as well as their rights and opportunities. Code of ethics makes the profession more quality and worth in its services to the humanity.

Service Motto

Professionals should keep social interest in their mind while carry out the profession. In modern times, material culture is dominating the minds of the people and hence all human activities are concerned with money. But in a profession, an effort is made to see that service motto should prevail over monetary considerations. Hence when a social welfare administrator administers the social welfare programmes he/she should upheld the professionalism first and the fee component at the next as his/ her knowledge and skills to serve the larger interest of the society in order to bring in a equitable society.

Thus, on the basis of the above conversation, it can be concluded that social welfare administration is considered as a profession. In the Indian context it has to go still further to become an independent profession as it requires to attain social sanction, professional commitment, governmental approval, a professional association to regulate the profession and involvement of trained personnel in the field of welfare administration, instead of bureaucrats. It is in the hands of the professional social workers, Schools of social work and their associations should play a major role in upholding social work administration as a recognised profession through its tireless professional service in bringing social justice and social transformation.

### 1.5.2 Social Work Administration - Scope

Social work administration has established since last three decades in our country is not a novel concept. After independent, the development agencies need social work administration to implement various social policies and processes for public welfare It was stroked that there was an absence of professional competence and principles and laws which could provide guidelines to the development agencies to administer welfare programmes or the project holders or professional social workers who are to perform social work as their profession and manage their organization which are dedicated for public welfare. In nutshell Social Work

Administration provided strategies to social workers and trained them for a managerial expression in social work field so that they could perform professionally better and to maintain quality in promoting social welfare services.

### 1.6 Principles of Social Work Administration

Some of basic principles are listed:

- Adjustment among objectives, policy and programs of the implementing agency
- Coordination between work area, resources & authority at all levels
- Leaders and staff members are encouraged and expected to consent with one another
- The staff should work with non-judgmental attitude.
- Administrative work blunted along with social work activities
- Administrators and allied staff should co-operate with each other
- Welfare is the chief motto of every member
- Staff member should become part of participatory administration
- There should be internal democracy in administrative structure
- Participatory and Democratic means among the members
- Staffs should have openness and frankness attitude to work jointly
- Establishment of mutual communication
- Administrators and allied staffs co-operates each other
- Generosity and welfare is the prime motto of every personnel
- There should be positive attitudes like dignity, honesty, determination
- The principle of self –help should be held high
- Elicit Cooperation from the masses

#### 1.6.1 Social Welfare - Related Concepts

A number of terms which are related and used in social welfare having minor differences in their meanings and these are essential to have a basic understanding so that the concept social welfare could be understood specifically. The following are the important terms which need to be explained in this context:

**Social Service:** It is extending a help or helping hand to somebody whom we come across or whom we do not know. It is otherwise 'Helping the helpless' which is intended to provide support or with an intention to expressing the concern for others. It is service offered to any person on the basis of desire to serve which is enthused by the sense of helping others.

Social Services aiming at the well-being of the community through the provision of health, education, housing, employment, training, capacity building, etc., and the development of the disadvantaged and underprivileged and susceptible sections of society such as women and children, the old and the differently abled, weak and vulnerable, victims and abused, neglected and uncared, etc.,

Thus the term 'social service' is used to denote help given by a volunteer to an individual or group at the time of necessity or to augment the welfare of individual or the community either through an individual efforts or by collective action of a group or community. It is also to be noted that social service does not require any special training as in social work or skill in professional techniques rather a bent of mind and heart to express a concern for others.

In the Indian context social services are those services, which are provided on an extensive scale to the community or those who are in need. Most of the services are in kind as to meet the basic needs of the people and include such services as food, cloth, health, education, housing etc. are For example providing drinking water during summer, providing food and related stuffs during famine or during festivals and seasons, rescuing people from a house under fire or during natural calamities, donate blood, support children for their education in terms of financial or otherwise, etc.,

**Social Welfare Services:** Thus social services are the services, meant for the common population or community. But, social welfare services are intended for the needy population or selective group who are weak and vulnerable. The aim of social services on the other hand is to enhance human quality of resources in general. Social welfare services are also enabling services provided to the weaker sections of the community so as to help them to reach the main stream of society. Though both social service and social welfare are supplementary and complementary to each other, they are to be understood in a border line difference is that Social welfare is meant for the selective group or particular group in order to mainstream them whereas social service is for the common community.

**Social Security:** Social security is the security that society furnishes through providing of suitable services against violation of certain rights to which its members are exposed. These risks are essentially exigencies of life which the individuals of small means cannot effectively provide for by their own ability or foresight alone or even with the help of their associated human beings. Social Security to compensate for the loss of livelihood due to unemployment, disability, or death caused by accident and old age through social insurance and social assistance or providing security to the displaced, abandoned and exploited.

Thus, social security is a measure or the scheme through legislations or acts on the part of the state or the employer or any other related agency. It is applicable to an individual all probable assistance during periods of physical distress or illness or injury and also at the time of economic distress caused due to reduction or loss of earning on account of sickness, disablement, maternity, unemployment, old age or death of the employee.

The work of social security is completed through social assistance, social insurance, health and social welfare services etc. Thus social security is a broader concept of social welfare.

**Social Work and social welfare:** 'Help the people to help themselves'. Social work is a method or process based on scientific knowledge and skill to support the individuals, group and communities, with the view to improve their social functioning to develop in accordance with their knowledge, capacities and capabilities.

Therefore, it is to be noted that social welfare has been used as an end and social work, as a means for the provision of social welfare. Social work helping people to help themselves whether their personal ,family or community problems through enhancing social functioning by the primary methods such as case work, group work and community organization and the secondary methods such as social work research, social work administration and social action.

Social welfare is a prepared system of social services and institutions, designed to assist individuals and groups, to accomplish sustaining standards of life and health. The ultimate goal of Social welfare therefore is providing services, to weaker and vulnerable sections of the population who because of various handicaps such as physical, mental, economic and social, are unable to make use of social services provided by society or have been traditionally deprived of these services or who are not able to access these services.

Wayne Vasey (1958) defined that 'the utilisation of welfare measures to support or strengthen the family as a basic social institution through which needs are met; and The intent to strengthen the individuals' capacity to cope with their life situation'.

The provision of social welfare includes services for children, youth, women, aged, scheduled castes, scheduled tribes, other backward classes, minorities, disabled, drug addicts, and economically under-privileged such as destitute and unemployed. Social welfare programmes are, therefore, directed to ameliorate their conditions. Hence proper administration and trained professionals are required to carry out the tasks in a quality manner in order to obtain the desired benefits.

**Social work Administration**

Social work administration related to organizational and administrative structure in the international, national, state and local levels. Social welfare administration is a process through which social policy is transformed into

social services. It involves the administration of public and private agencies either in partnership with or in coordination with each other. The following definitions are given to elaborate the meaning of social welfare administration.

**Objectives:** Social Work Administration is to apply the knowledge of Administrative principles and Applications on Social Welfare institutions or a Project functioning aimed at promoting social welfare in the area committed by an Organisation. For professional proficiency a professional social worker understand the value and need of administrative applications and core principles.

The purpose of application of administrative principles in Social Work is only to build proficiency, effectiveness and goal achievement in Administration of welfare Projects or programmes for the better utilisation of resources in order to obtain a maximum output in terms of welfare whether the programme may be for a shorter or longer duration or may be the volume of the project is small, medium or large.

**Definition**

Social Welfare Administration is the "Process of applying professional competence to implementing certain programmes of social welfare through social agencies in fulfillment of objectives and policy"

Harold Wilensky and Charles Lebeaux has defined Social Welfare Administration as 'the organized system of agencies, institutions and programmes which function to maintain or improve the economic conditions, health or interpersonal competence of a population'.

To have a better understanding it is imperative to understand basically the concept of Social Welfare initially. The whole concept of social welfare may accordingly be grouped into two areas study:

1. Social problems
2. The ways in which society responds to these problems.

Social problems are problems which effect not just the individual but the society also in which he lives. These problems arise from individual human needs which are common to all members of the society. Some needs are more conception and sophisticated like the need for dignity and status; some are powerful and intangible like the need for love and affection. These common human needs are largely met by personal and family action. When these needs are not met by the individual and family, they give rise to problems which society as a whole increasingly tries to tackle. These social problems are:

- Poverty
- Unemployment
- Housing
- Crime
- Sex

- Loneliness
- Child neglect

As these problems are varied, it is not possible to give a once for all agreed definition for social problems or to make a list of them.

Social Welfare as defined by Harold, 'those formally organized and socially sponsored institutions, agencies and programmes which function to maintain or improve to economic condition, health, inter-personal competence of some party or all of population'.

Social Welfare in broader connotations is understood to imply total reordering of socio-economic relations in the context of rapid development in scene, technology communication and experience or expectations.

Another definition of Social Welfare, says 'It is the organized system of social welfare institutions designed to aid disadvantaged individuals and groups to attain satisfying standards of life and health. It aims at personal and social relationship which permits individuals to develop their full capacities and the promotion of their well-being in harmony with the needs of the community'.

In India the concept Social Welfare has been evolved out of various phrases most frequently used by common people such as : Mutual help, religious duty, charity, philanthropy, alms giving, poor relief, benevolence, social reform, etc.,

The definition of John C. Kidneigh (1950) on social welfare administration is the 'process of transforming social policy into social services… a two way process: (i)… transforming policy into concrete social services and (ii) the use of experience in recommending modification of policy' could incorporates the idea that administration is the process of transforming policies into action programmes.

According to Walter A. Friedlander (1958) 'administration of social agencies translates the provisions of social legislation of social agencies and the aims of private philanthropy and religious charities into the dynamics of services and benefits for humanity'.

Arthur Dunham (1962) defines social administration 'is the process of supporting or facilitating activities which are necessary and incidental to services by a social agency. Administrative activities range from the determination of function and policies, and executive leadership to routine operations such as keeping records and accounts and carrying on maintenance of services'.

Harleigh Tracker (1971) observed that social welfare administration as a "process of working with people in ways that release and relate their energies so that they use all available resources to accomplish the purpose of providing needed community services and programmes".

A detailed definition is given by the American Council of Social Work Education in its curriculum study. It contains, "Administration is the process of transforming community resources into a programme of community service, in accordance with goals, policies and standards which has been agreed by those involved in the enterprise. It is creative in that it structures roles and relationships in such a way as to alter and enhance the total product. It involves the problem solving process of study, diagnosis and treatment".

When observed the above definitions by various authors one could understand that it is a process which includes definite knowledge, understanding, principles and ways of interaction. Its main focus is on the suitability and accessibility of social services to the needy. Social work empowers the progression of administration through guidance, planning, stimulation, organisation, creating structure, coordinating and research. Hence the social policies are to be appropriately formulated in order to fulfil the pre-determined objectives of administration. This could pave way for the designing of the programmes, budget, finance, personnel and selection procedures in a successful manner.

**Social work administration - Basics**

Administration is a dynamic process retains its endurance of accomplishment of the goal.

- The administrative process goes on for meeting a common purpose or goal which are pre-determined while evolving the project.
- Planning, organizing, leadership, decision making, accountability and communication are essential elements of administrative process.
- In Social Work Administration the intentions are always community development as whole.

### 1.6.2 Social welfare administration - Activities

- The needs of the community to be transformed into operational policies and goals
- Designing of organisational structures and processes to the goals to be achieved Promoting participation of local leadership at all the levels
- Mobilisation of resources in the form of materials, staff, clients and societal legitimization necessary for goal attainment and organisational survival
- Organising man power as well as materials essential to full fill the objectives
- Selection and scheming of the necessary technology

- Enhancing organisational behaviour directed towards increased effectiveness and efficiency

- Appraisal of organisational performance to facilitate systematic and continuous solution to future challenges and issues

### 1.6.3 Social Welfare Administration - Features

Although the concept of administration is appropriate in a broader sense to areas including social welfare, business and government, there are certain distinctive features of social welfare administration. A summary of features highlighting distinctiveness of social welfare administration is given below:

It is concerned with social agencies and aids them to achieve their objectives within target community. It is specifically concerned with identification of social objectives and formulation/ implementation of schemes.

From functional point of view, it includes four facets of social problems:

(i) Restoration of impaired social functioning

(ii) Provision of resources, social and individual

(iii) Provision for more effective social functioning

(iv) Prevention of social dysfunction

**Social Welfare Administration: Specific Organizational Function**

- ✓ Regardless of variations in size, scope, structure and type of projects, every agency has a governing board as an apex body for final decision making. The board is generally represented by the community it intends to serve.

- ✓ Social welfare administration requires optimum utilization of its available resources together with dynamic community participation, so that the vital goal of programmes can be achieved correctly.

- ✓ Social welfare agencies have to allocate certain portion of their assets for survival. But this should not limit their capacity to achieve in measurable and qualitative terms.

- ✓ Social welfare agencies commonly function in a co-operative manner and safeguard participation of all the members in administration of their actions.

- ✓ There is a growing demand and trend nowadays in these agencies to employee professionally qualified personnel. It has helped in introducing professional approach in their functioning.

### 1.6.4 Social Welfare Administration – Nature

The discussion whether social welfare administration is arts or science is always persisting among the social scientists. The concept social welfare administration is so peculiar that it is both arts and science. On the contrary there are also conflicting understandings and thoughts on this issue and interestingly both the views could be justified in its own way. Social welfare lends itself to two conventions. It stands for the process of administering the social welfare programmes. It is also an area of intellectual enquiry. Let us first take it up as how social welfare administration is an art discipline.

In a developing society, the role of social welfare in ensuring growth with social justice needs no emphasis. But the determining of the nature and scope of social welfare however, is also by no means an easy task.

In the past welfare services were restricted to remedial and curative aspects only. As the concept of the welfare is a dynamic one, social welfare process is considered as an integral part of the developmental process. Now, it is not viewed as charity but an investment in the development of the potentialities of the physically and socially handicapped, as well as of women and children from backward, rural, urban, and tribal areas. Social Welfare not only covers the curative and rehabilitative services but also preventive and developmental programmes, enabling the individual and groups to become self-reliant and overcome their own constraints.

Social welfare includes cluster of programmes and schemes as listed down:

- ✓ Programmes for Women
- ✓ Programmes for Children
- ✓ Composite Programmes for Children and Women
- ✓ Projects for Mal-adjusted groups
- ✓ Programmes for differently abled
- ✓ Social Legislations.

The various target groups covered for Social Welfare programmes are:

a. Children
b. Women
c. Unorganized labourer
d. Backward classes
e. Scheduled castes
f. Scheduled tribes
g. Aged
h. Differently abled
i. Victims
j. Economically marginalized

**Nature of the Social Welfare Organisation**

- People oriented
- No profit oriented
- Individual needs, community and family needs are fulfilled
- Respectful
- Mutual trust
- Freedom
- Democratic
- Need based
- Voluntary
- Human values
- Aspiring for growth and development of community
- Change emphasis on changing needs
- Change the strengths according to the changing needs

## 1.6.5 CHARACTERISTICS OF SOCIAL ADMINISTRATION

1. Social welfare administration is not a distinct discipline but a multi-disciplinary field of study
2. Social welfare administration is essentially statutory welfare provisions, and
3. Statutory welfare provision aims at meeting individual needs – there is thus a distinction drawn between 'personal ' social services and public services that benefit the 'community' at large in an indiscriminate way'

**Scientific Features of Social Welfare Organization**

The scientific social welfare organization will have the following structural characteristics:

1. Division of responsibility and decentralization of authority on functional basis
2. Participative mode of decision making
3. Coordinative leadership
4. A high degree of organizational flexibility
5. Organization of the personnel in effective work teams

**Common Process**

- Collection of facts
- Taking decisions
- Action
- Plans
- Policy
- Recruitment
- Supervision
- Volunteers orientation

- Division of work
- Records maintenance
- Coordination
- Sound communication
- Control
- Monitoring
- Evaluation

### 1.6.6 Importance of Social Welfare Administration

- India is a religious country wherein philanthropy and Charity to the people is encouraged in the name of God
- The joint family system once; was taken care of the needy and weak
- There are Social service forums established and they take care of the social reform as an organized activity
- There were also movements and initiatives Against social evils – child marriage, sati, etc
- All these taken care earlier by joint family system, caste, family, temple, church
- The phenomenon of urbanization, industrialization brought novel problems and magnitude to the older problems so the need was felt to have an organized activity
- There were Many organizations created as an offshoot such as:

    - Brahma samajam
    - Thesophysical society
    - Arya samaj
    - Christian missionaries
    - These happened before independence
    - <u>After independence</u>:
    - Guild of service, red cross
    - YMCA, YWCA

- Hence by these agencies the need and issues could be addressed only to a certain extent.
- There is also a share by the Government as it was declared as 'Welfare State'
- All the Five year plans have Social Welfare component
- Creation of various departments for planning, allocation and implementation of welfare programmes
- The need also grown tremendously as incoming or refugees, and growing population
- The Central Social Welfare Board created and Grants allocated to support CSWB
- There was a huge demand for services by voluntary agencies, welfare organization.

- Since the novelty and volume of issues the services need to be scientific and systematic approach
- There are more number of voluntary agencies jumped for the rescue
- On the contrary these agencies apart from providing professional services ended up with serious problems such as: Finance, lack of qualified personnel, no proper administration, personalized services, lack of community support, overlapping and duplication of services.
- All these factors created a need for social welfare administration in a scientific manner

**Scope of Social Welfare Administration**

Social welfare administration implements social legislation, aims at private philanthropy and religious charities into the dynamics of services and benefits for humanity or it is an art of implementing social policy into social action. Titmus has given a comprehensive definition relating to the scope of social welfare administrations. He said, 'Social administration may broadly be defined as the study of social services whose object is the improvement of conditions of life of the individual in the setting of family and group relations.

It is concerned with the historical development of these services, both statutory and voluntary, with the moral values implicit in social action, with the roles and functions of the services, with their economic aspects and with the part they play in meeting certain need in the social process on the one hand, and on the other in the machinery of administration which organizes and dispenses various forms of social relations of these members of the community for whom the services are provided by reason of their belonging to that community'.

The various definitions like the above could tell us the scope of social welfare administration viz.,

- Nature, purpose and scope of social services
- Evolution of social services in the context of the needs of the society
- Sources of financing these services
- The content and method of social service progrmmes
- Legislation and standard setting
- Agencies – International, National, Volunary, Local – interested in social welfare
- Planning, Organising, Staffing, Directing, Co-ordinating, Reporting, and budgeting of these services
- Citizens participation in these programmes
- Aspects of social services such as health, education, legal, human rights, disaster mitigation, rehabilitation, etc.,
- Social policy and social action

The mission of any country is to provide better living conditions to its citizen. The well-being of the community is becoming increasingly dependent on the efficient governmental management i.e. public administration. If public administration fails then the whole structure of modern society and civilization would collapse like a house on cards. According to Charles Beard, There is no subject more important than this subject of administration. The future of civilized government, and even I think of civilization itself rests upon our ability to develop a science and a philosophy and a practice of administration competent to discharge the functions of civilized society'.

The success of social welfare ultimately depends on the adequacy of the administration apparatus prevailing in a country. The administrative set up must respond to the social milieu and to the ideas, belief, expectations, and values of the people. Jegannatham is of the view that there are three broad principles which are essential for the success of social welfare administration to support socio-economic change guided by social justice; utmost decentralization in administration appropriate to the different level in government; unification in planning for welfare and allied subjects and services of personnel policies, programmes and administrative procedures to facilitate efficient flow of services to the people.

**Purpose**

- Collection of facts, data and various details regarding the community, institution, programmes
- Deciding the course of action
- Identification of alternatives
- Qualified personnel
- Formulation of various sections and heads
- Identify volunteers
- Recording
- Financial administration
- Communication
- Quality in service
- Co-ordination
- Evaluation and monitoring

## 1.7 Social Welfare - Historical perspectives

Helping one another is basically a human trait either motivated with religious sentiments or through societal values in a traditional Indian society. There are lot of stories; religious teachings promote mutual aid among the people. Hence the desire to help one's fellowmen has been in existence from time immemorial but the forms and methods of help have been varying from society to society, depending upon the social, economic, political factors and religious factors.

**Philosophical Foundations**

Indian traditional view of social welfare comes from the philosophical foundations of human life depicted a *daya, dana, dakshina, bhiksha,*

*samya-bhava*, *swadharma* and *tyaga*, the essence of which are self-discipline, self-sacrifice and consideration for others. Well-being of all depends on these values upheld by people individually and through community action. All the religions instructed upon their devotees to put aside a share of their income to be utilised for charitable purposes as that would award them happiness in this world and salvation in the eternal life. The rulers of those days and the Govt. of today extended assistance to the distressed part of the population during emergencies of natural calamities such as floods, earthquakes, fires, droughts, Tsunamis, etc.

### 1.7.1 Pre-Independence Period

From the administrative angle, in India, the reigns of king Ashoka, Harsha, Chandra Gupta Maurya, Akbar, Sher Shah Suri and Feroze Tuglak, are the landmarks of administration that took care of the social needs of the people. The British Government also established an administrative set-up intended mainly for maintaining law and order. There are also certain noteworthy social reform measures were taken up such as banning Sati and allowing widow remarriage through legislations and remedial actions.

### 1.7.2 Post-Independence Period

After independence, the old administrative pattern was more or less continued with essential changes to suit the social, political and economic set-up. In the field of social welfare, during the First Five Year Plan, Government of India created a unique administrative machinery consisting of an autonomous board named CSWB (Central Social Welfare Board) in August 1953 in order to bring the social welfare activities under an umbrella for monitoring and implementation. Similarly, Social Welfare Advisory Boards were established at state level. The main purpose of the Board (CSWB) has been to provide financial and technical assistance to Non-governmental organisations working in the field of social welfare.

The history of administrative organisation could be witnessed when looked before 1964, that social welfare programmes were being managed by different ministries such as education, home, industries, health, labour etc. The Renuka Ray Committee in its report submitted in 1960, recommended the establishment of the Department of Social Security. Under the Prime Ministership of Lal Bahadur Shastri, a Social Security Department was established and located in the Ministry of Law on 14$^{th}$ June 1964. Matters related to social security, social welfare, backward classes and khadi & handicrafts were allocated to the Department of Social Security. In 1966, it was renamed as Social Welfare Department.

It was located in the Ministry of Education and Social Welfare created in 1971. Its status was raised to a ministry in the year 1979. Its name was further changed to the Ministry of Social and Women Welfare in 1984. With the creation of a separate Department of Women and Child Development in the Ministry of Human Resource Development, it was reorganised and its nomenclature was changed to the Ministry of Welfare in 1985 and subsequently it was renamed as the Ministry of Social Justice and

Empowerment which is the present status (2019).

**Central Government Units**

There are number of units were established by the Central government to support the Ministry of Social Justice and Empowerment like National Commission for Scheduled Castes/ Tribes, Minorities Commission, National Institute of Social Defence, National Institute for the Handicapped, Department of Women and Child Development, Central Social Welfare Board, National Institute of Public Co-operation and Child Development etc., under its administrative control.

Apart from the social welfare projects, schemes and programmes sponsored and financed wholly or partly by the Central government; the state governments and union territory administrations formulate and implement welfare service programmes on their own in their respective dominions. The state government/union territories administrations carry out their welfare obligations and programme mainly through their Department of Social Welfare and Non-governmental organisations. Thus social welfare schemes are still range over more than one department/directorate. The pattern of implementation of some of the schemes, like old age pension, widow pension, and supplementary nutrition programmes also varies from state to state. And even at the district level there are district social welfare officers.

**Social Work Administration - Evolution**

In the pre-independence period; **Charity model of development** advocated by voluntary agencies which were mainly financed by the local contributions and the generous concerns of few philanthropists like local land lords, rich man, businessmen or eminent industrialists undertake social welfare programmes. The growth of private charity has not been increasing in proportion to the increase in the number of agencies and population. At that time the importance and scope of Social Work Administration was not felt seriously.

After the independence there was a strong gap found regarding implementation of government grants and the development sector started growing in enormous speed and the novel and new problems and challenges for the people emerged. Hence gradually the situation has been started changing as the number of Governmental Agencies was set up and were responsible for distributing the grant- in –aid to local voluntary organizations. The significant land mark is the establishment of Central Social Welfare Board in 1953, when 31 per cent of expenditure of the voluntary agencies was met by the Government grants, this amount rose to 40 per cent in 1961and progressively due to growth of population it was enlarged.

In the nineties the amount of the state assistance has gone up to 90 per cent. A student of professional social work course in the 21st century has to look for the developments in the social work administration in terms of best utilization of funding's for the welfare of the Indian population which is

poverty stricken or the backward groups in terms of both social and economic.

At this juncture it is imperative to understand the various development models that have been evolved in India.

### 1.7.3 Stages of Development

**Phase one, Early Phase**

The different stages of development of administration as one of the methods of social work commenced earlier in 1874 where National Conference of Charities and Corrections determined that the social problems and reducing or solving them through the delivery of social services should be the major thrust of personnel involved in providing welfare activities.

The observation made by Anna L. Dawes Pittsfield, Massachusetts in 1893 at the International Congress of Charities, Corrections and Philanthropy that institutions should establish orientation and training courses for the welfare personnel's in making professionally competent so that they could provide effective social services to those in need is an imperative milestone in the field of development.

It was Mary E. Richmond, General Secretary of Charity Organization Society of Baltimore, Maryland in 1897, made remarks at National Conference of Charities and Corrections in United States that there was a grave need to initiate social welfare administration as there were no competent personnel to carry out the welfare tasks. The recommendations made on non-availability of competent personnel to take the place of generation than passing off the scene. Later in the beginning of the 20$^{th}$ century; the course on social administration was introduced in few British Universities in order to bridge the gap. For instance, in 1901 the London School of Sociology and Economics was established which offered various training courses focusing the development field and this has prompted the various institutions across the world to initiate new courses and training on welfare administrations.

**Phase Two**

It was in the period between 1900 and 1930s, social work has been acknowledged and recognized as a profession in which social case work has been accepted as the dominant method among the methods of social work.

The intensification of the profession started and more academic departments of social work have been established in various universities and colleges across the countries. Social workers are appointed in various hospitals, schools, judicial organizations, psychiatric settings. Number of development organizations and associations with professionalism blend were established where in new social work curriculum, skills, training, values and methods have been evolved.

Though social case work was predominantly recognised as a profession among all the methods of social work; social work administration was not given that much importance as a separate method; rather it was considered as in built with the case work practice.

**Phase Three**

In this phase there was a necessity of both government and voluntary agencies started work hand in hand co-ordination as the various welfare work were to be carried out by both the agencies, Hence the need for co-operation and partnership established in providing welfare to the needy.

Recognition of social work administration was strengthened due to the involvement of Government in providing economic assistance to millions of unemployed and economically dislocated community. Thus, during the period of 1930 to 1960 administration has emerged a authentic method of social work practice. Later it got institutional recognition. It is an imperative need that it required further development in terms of professionalism in order to be accepted as equal partner in realm of social work development among social work methods.

**Phase Four**

In the fourth phase initiatives have been focused on developing theory and practice of social work administration. The followings are indications in early 1960s, in which various efforts were concentrated on making practical applications in the field of social work administration.

- In 1960 an institute was formed for conducting research in social work administration and community organization by the National Association of Social Workers.

- In 1962 and 1969 the Council on Social Work Education allowed individual schools to experiment with new methods of education for practicing for specialized course on social work.

**Fifth Phase**

In 1960s there was enormous growth in social welfare programs resulting into unmatched growth in social welfare outlay. There were difficulties to manage this expenditure and enormous enterprise of social welfare programs primarily due to a reduction of the financial budget because of the collective effect of several tax cuts, the Vietnam war, augmented social welfare expenditure, inflation and reduced rate of economic development leading to policies of shortage , hence the need for involvement of voluntary efforts by various interested personalities came to the picture and their contribution becomes crucial in the field of social welfare administration.

This has paved way for the role of administration in social work as more players were operating in their space and goal. Consequently, the following propositions of curriculum study are noteworthy. The social work

curriculum should provide for all students such knowledge and experience in the area of administration as well as support subsequent on the job learning and the application of professional knowledge in positions involving executive and sub-executive level responsibilities.

This period evidenced the growth of curriculum in social work and so more specialised subject matters in the field of social work administration. Universities and colleges where social work course offered had professionals from social sciences stream mobilised and think about enhancing the curriculum and its methods of social work and eventually the subject social work administration is enhanced with quality.

In the 20th Century issues like Poverty, unemployment, illiteracy, etc., are the biggest challenges for the Asian Countries. The United Nation has organized a number of Poverty Alleviations Programme for these countries. It was for the first time that all welfare concepts was getting the sanction of the constitution as after the independence, India became Democratic republic since 1950 and subsequently the constitution was evolved with the theme of 'Welfare State'.

The constitution is the written article clearly directs various disciplinary procedures for the welfare of the people. Like U.S India is a not purely a Federal Country rather it is the mixture of both unitary and federal structure. The constitution is the primary source of power in which all the welfare policies have been primed by Lok sabha - the principal legislative organ of India and hence various social policies have been drawn which ultimately end up in implementation through social welfare administration.

In a democratic India, social policies have been progressed mainly from Indian Constitution which declared India as a sovereign,, socialist, secular, democratic republic based on social, economic and political justice; liberty of thought, expression, belief in faith and worship, and equality of status and of opportunity. For this, Indian Constitution allowed complete provision for Fundamental Rights and Directive Principles of State Policy.

Through these provisions, social policies have been emerged for ensuring equity and social justice involving various sections of society in planning, decision making and implementation. This has opened the avenue for social work administrators to employ the administrative skills and talents to provide welfare services to the needy and downtrodden in a professional way.

Government of India has adopted number of social policies for promoting empowerment of the community. To mention some examples of important policies are policy on children, women, youth, older person, policy on Scheduled caste, policy on scheduled tribes community etc.,

## 1.8 Principles

1 Well thought out programmes and policies followed uniformly – change according to the changing needs
2. Appointment of efficient staff

3. Motivation to the staff that their role is vital for the agency
4. Democratic administration
5. Periodical evaluation of process programmes, and policies and procedures.

**Social Welfare Administration - Basic administrative functions**

- Need for Planning
- Need for Organization – Programmes and resources
- Need for competent and professional Staffs
- Selection and Recruitment
- Directing
- Mobilizing Funds
- Budgeting
- Co-ordination
- Reporting
- Evaluating Outcomes and
- Observe effective action plan

## 1.9 Social welfare administration – Major functions

- Fact finding – collection of data depends upon the objectives and programmes and for research
- Analysis of social conditions and services to meet human needs – type and number of services needed to be estimated
- Decision made to reach the objectives
- Planning and allocation of resources – Done on the basis of choice of alternatives i.e. immediate goals and long range of objectives, are classified and accordingly allocation is done
- Setting up of organizational structure and work assignments – Distribution of duties, defined responsibilities, delegation of authority, supervision, description of line and staff functions and make aware of the staff what exactly his role
- Personnel administration- Recruitment policies, wage salary, working conditions, promotion performance, efficient services, morale, retirement, in-service training, grievance,

- Control and supervision – Control secures proper functioning, coordination, of staff, regular communication, consultation, services, staff conferences, financial control means, effective control system
- Recording and Accounting – Essential for reliable analysis on budgets, expenses, further references, need to be reported to Govt., legal authorities, members, governing body and to the community, For evaluation, suggestion, etc.,
- Mobilization and utilization of financial resources – Cost benefit analysis, depends upon the nature and type of agency and purpose of the activity. Govt. agencies provided by Govt., by donation, Voluntary agencies receive funds from Govt., international funding agencies, local community, fund raising programmes,
- Evaluation – Targets, indicators and financial and other resources mobilized whether utilized for the purpose it has been raised.- Whether the target achieved. policies and programmes, staff – salary, working conditions, incentives grievances redressed, feedback from the beneficiaries
- Working with Boards and committees – Liaison between the Boards, committees and communities or beneficiaries –Implementing the policies and suggestions, plans, advises of the boards and committees into action
- Public relation and coordination – with Govt., international funding agencies, other Social welfare agencies, community, organizations, financial institutions, CBO's, Panchayati raj institutions,

### 1.9.1 Areas of social welfare administration

There are generally two outlooks about the scope of social welfare administration. These are:

i) The POSDCORB view

ii) The Integral view

### The POSDCORB View of Social Welfare Administration

This is a tapered view of social welfare administration and takes into explanation mostly the execution of the government's sponsored programmes. In other words this view resembles with the managerial view. Henri Fayol, L. Urwick, Fercey M. Ovean and Luther Gulick are advocates of this view.

According to Henry Fayol the chief classifications of administration are: (i) Organisation (ii) Command, (iii) Coordination, and (iv) Control. L. Urwick also agrees with Fayol's views.

P.M. Queen observed that the study of administration deals with 'men, material and methods'. L. Gulick has given a magic formula in a word 'POSDCoRB' with each letter describing one technique. Gulick's approach is 'technique-oriented' rather than 'subject-oriented'.

### 1.9.2 Policy making:

Policy making is the process of formulating an official document on select target group or concept for the purpose of taking action in a specified direction ensured in the policy document by government. The major purpose of the policy is to take decisions that are intended to solve problems and develop the quality of life for its citizens.

At the Government level, public policies are enacted to standardize industry and business, to guard citizens at home and abroad, to aid state and city governments and people such as the poor through funding programs, and to reassure social objectives. Promoting the livelihood is the major thrust of the policy making. The social welfare organizations play a main role in policy making in involving in the policy making process through lobbying, networking and pressure advocacy.

**1.9.3 Planning:** Planning means a blue print of working out broad outline of the things that need to be done; and the method to be adopted to achieve the determination set for the initiative. Planning involved various stakeholders at all the level in order to bring out a fool proof of activities that is to be carried out for a specific purpose.

**1.9.4 Personnel**: In order to provide effective social welfare services to the needy and suffering, it is essential to have committed, trained and motivated social welfare personnel at different levels. Therefore social welfare administration requires proper knowledge of human resource management which includes knowledge about recruitment policies, job classification, training and development, performance appraisal, advancement and transfer etc. for effective implementation of social services. Better and quality personnel could only bring the quality in services.

Staffing is the process of selecting the positions in the organisation based on the structure of the organisation with required and qualified personnel. Thus it means whole personnel, bringing in and training the staff and maintenance of favourable condition of work.

**1.9.5 Supervision:** Supervision is the process of guiding the subordinates to carry out their roles and responsibilities in a successful manner in tune with the objectives of the organization. It involves orientation, induction, put in the staff in the field and continuously monitoring and evaluation their performance. It is the continuous task of making decisions and representing them in specific and general orders and instructions and thus guiding the agency.

**1.9.6 Office administration**: Social welfare administrator needs to understand the organisational and administrative structure of social welfare programme at each and every level of implementing the programmes organisation. Similarly, it is also important to know the role and set up of non-governmental organisations for effectively carrying out their responsibilities. It is the formation of the formal arrangement of authority through which the work is sub-divided, prescribed, well-defined and

coordinated for the defined goals.

**1.9.7 Budgeting**: The financial planning is the possible income and possible expenses for a particular period. The budgeting is presented in the form of fiscal planning, accounting and control. POSDCORB activities are common to all large scale organisations. They are the common problems of management found in the different agencies, regardless of the peculiar nature of the work they do. Like public administration, social welfare administration is also viewed as an instrument with two blades of a scissor. One blade is considered as the knowledge of the subject matter and the other is the techniques that need to be applied while performing the function.

**1.9.8 Financial Administration**

Since the scope of social welfare and social security is cumulative day by day and more and more people are coming under the coverage of these programmes, the need for additional financial support is escalating. In order to make out proper and effective budgeting of such programme, the knowledge of financial administration is highly essential. Therefore, professionals engaged in social welfare administration must be trained in the techniques and principles of financial administration so that the optimum and appropriate utilization of the finance to the programmes possible.

**1.9.9 Fund raising:** It is an important and essential activity for any social welfare organization which need to given due importance. Finance is the major factor which determines the successful functioning of the organization. Not only that proper account maintenance is essential but also fund raising is also essential. The fund raising could be either donations, fees collection, rent, shows and events conducting, sales, etc. The prominent fund raising technique is through mobilizing funds through proposal writing to funding agencies both national and international. The social work administrators should be well versed in fundraising techniques and able to successfully raise funds very regularly for organization.

**1.9.10 Accounting and Auditing** is an important process in social welfare organisations and keeping proper accounts paves way for quality administration and achieving the objectives could be possible. Accounting simply means the process of keep record of the financial transactions pertaining to a activities in terms of income and expenses incurred. The accounting process comprises summarizing, analyzing, and reporting these transactions to oversight agencies, regulators, and tax collection entities.

The financial statements used in accounting are a brief summary of financial transactions over an accounting period. The accounting is kept in ledgers, vouchers, proper bills and receipts and payments. It is further important that keeping the accounts transparent always appreciated in social welfare agencies. Auditing should be done every year and it is the process of checking the accounts or the budget whether the financial track of the organization is in travelling in a right path.

### 1.9.11 Purchase and stock keeping:

Purchase in social welfare organization is done through proper planning and a process of purchase shall be decided well in advance by the organization makes the purchase proper. More over a separate committee is to be appointed to maintain purchase and stock keeping. Proper keeping of records for the materials, goods and articles available in the store which is ready for utilization is called stock keeping. It is essential to keep it updated so that it is easy keep record of the materials available.

**1.9.12 Record maintenance :** It is keeping those people knowledgeable to whom the executive is responsible about what is going on. In other words keeping proper records could easy to identify as what is going in the organization. The records shall contain details through obtaining, arranging and gathering of such information through inspection, research and records. It is an important step in the follow up. Records become evidences and references in the future.

**1.9.13 Coordinating**: It means integration of several parts into an orderly whole to achieve the purpose of the undertaking. In other words, coordinating means the each and every specific responsibility of inter-relating the work of various divisions, sections and other parts of the undertaking is synchronized so as to reach the objectives of the programme of the organization.

### 1.10 Check Your Progress

- Define the concept Social Work Administration. Discuss its origin and key points
- Explain the various objectives of Social Work Administration.
- Examine the programmes implemented for Social Welfare for children.
- Discuss various elements of Social Work Administration.
- Social Work administration is not a new concept . Justify?

## 1.11 Summary

This chapter has been designed to provide a basic understanding of social welfare administration: concept, nature and scope. Number of definitions of administration, social administration, social welfare and its related concepts for basic understanding are presented. The purpose principles and features of social welfare administration are specifically covered. The nature and scope of social welfare administration have been discussed in a comprehensive manner The basic administrative functions such as Policy making planning fund raising coordination are elaborated.

### 1.12 Key words

Social welfare administration:, purpose, principles, functions, policy making, planning, personnel, supervision, office administration, budgeting, finance, fund raising, accounting, auditing, purchase and stock keeping, record maintenance, co-ordination

## 1.13 Self Assessment Questions

- Define social welfare administration and explain the important points?
- Elaborate the concept of social welfare administration
- Mention the functions of SWA
- Describe the principles of SWA
- Discuss the nature of SWA
- Why SWA necessary in India
- Differentiate the SWA in Government and NGO's
- Enumerate the need for fund raising for SWA
- How financial administration is to be done in SWA

## 1.14 Further Readings


Adoms Robert, 2002 : Social Policy for Social Work, Palgrove.

Badlock John.2000 : Social Policy, Oxford University Press.

Yeetes Nicole. 2001: Globalisation of Social Policy, Sage Publication.

Shanmugavelayudham, K 2000: Social Legislation and Social Change, Valgha Valamudan Publishers, Chennai.

David Bills and Margaret Harris 2000: Voluntary Agencies: Challenges of Organisation and Management (ed) Macmillan, New York.

Gills Stewart 2000: Social Policy for Social Workers, Practical Social Work Series, Macmillan, New York.

Tiwari S, 2000 : Encyclopedia of Indian Government : Programme and Policies, Anmol, New Delhi.

Laski,H.J: Encyclopaedia of Social Science

Loving and Kirk : Qualitative Approach to Management

Maddick H.: Democratic Decentralization and Development

Devi, Rameshwari and Parkash Ravi (1998), *"Social Work and Social Welfare Administration, Methods and Practices",* Vol. I, Mangal Deep Publications, Jaipur.

Skidmore, Rex A. (1983), *"Social Welfare Administration: Dynamic Management and Human Relations",* Prentice Hall Inc. London.

Schatz, Harry A. ed. (1970), *"Social Work Administration: A Resource Book."* Council on Social Work Education, New York.

Slavin, Simon ed. (1978), *"Social Administration: The Management of the Social Services",* The Heworth Press and Council on Social Work Education

# Unit II

## 2.1 Structure – Contents of the unit

Public relation, monitoring and evaluation and research, annual report; social welfare administration at national, state and local levels; CSWB (CENTRAL SOCIAL WELFARE BOARD), state social welfare board, directorate of social welfare and handicapped welfare

## 2.2 Objectives

- Develop understanding regarding the basic administrative process such as public relation monitoring and evaluation and research in Social welfare Administration
- Understand the various activities of CSWB and SSWB
- Enhance the understanding of social welfare for differently abled.

## 2.3 Introduction

The basic administrative processes provide the insight to understand the social work administration better. The establishment of CENTRAL SOCIAL WELFARE BOARD), state social welfare board, directorate of social welfare and handicapped welfare speak the importance of welfare for the needy and weaker section in India and how these agencies function is of great importance.

### 2.4 Public Relations

It is an essential area of social welfare administration that it needs to work in collaboration and coordination not only with various stakeholders but also agencies. It includes government and non-governmental agencies. The social welfare administrators need to be aware of the importance of public relations with regard to both their own agency and its services, and the community as a whole.

The welfare administrators must be conversant to utilize social media and mass media, such as TV, radio, newspaper, brochures, books, personal contacts, social media apps, etc., to interpret their agencies' programmes to the public and reaching community members. It is also essential to get associated with the government and non-governmental agencies working in the field, the people or the beneficiaries, whose co-operation and support will add to the effective planning, formulation and implementation of policies and programmes intended for the prosperity for the target group they are covering.

## 2.5 Monitoring

Proper monitoring is essential for any organization in order to check the ongoing programmes of the organization. Monitoring keeps the organization growing in quality. The monitoring is done in such a way that it could facilitate the subordinate staff of the organization to properly carry out their responsibilities. Monitoring is like mentoring the staff to perform their task in a quality manner. Each organization in the field of social welfare has a specialized monitoring plan to guide the staff as it involved more field related activities.

## 2.6 Research and Evaluation

Effective research and evaluation studies provide useful feedback on the impact of on-going projects and about the different dimensions of existing social problems. Research also facilitates effective planning, policy formulation and implementation of programmes. Evaluation should bring in the reasons for success or failure and the research component can facilitate the publications and popularization of the programme along with the impact the programmes can created among the local community

## 2.7 Annual Report

There need to be a format for annual report for the social welfare organization which shall cover various activities and programmes for the particular year normally financial year is taking into account. This will be the reference point and follow up activities shall be done using the annual report. The funding agencies shall need an annual report of the organization for their perusal while deciding to grant loan. There need to be committee appointed to record the various activities of the organization systematically using various gadgets like camera, media, mass media and social media. Nowadays technical and digital annual reports are prepared and kept both hard and soft copies. The various stakeholders, management, government and other agencies are supplied with the annual report of the organization every year so that it gives a high regard as well as a point of public relation to the organization.

## 2.8 Social Welfare administration at National, State and local levels

It is imperative to discuss the present status of social welfare administration while understand about the National, State and local levels.

### Social Welfare Administration National Level:

The responsibility for the implementation of social welfare at national level rests with:

1. Non Governmental organization
2. Government Development departments

The responsibility for fulfilling the statutory obligations under various Central and state legislations, especially those dealing with the welfare of

children, women and SCs and STs, rests with the central and State governments. The Non Governmental organizations normally deal with the non statutory service groups. Thus, the NGOs work for the welfare for children, women and other target groups.

Thus, the NGOs share a major responsibility in the implementation of social welfare policy. Perhaps the main reasons for the allotment to NGOs a crucial role in the implementation of social welfare policy is:

a. The pioneering experience of NGOs in the field of social welfare
b. The humane approach by providing services
c. A limited amount of resources available for social welfare services at present.

The state however, has to provide aid to NGOs to maintain and develop welfare services. A special body, called Central Social Welfare Board, was set up by the Government of India for promoting NGO's action in the field of social welfare. The idea behind the creation of the CSWB was to introduce a system of grand-in-aid to improve existing services and to develop new services under the auspices of the non-official bodies. In order to accomplish this goal, a large amount of money was allocated to the Board.

The CSWB created a network of organizations at the state and block levels through which aid was channeled and programmes were to be sponsored. At the state level, the State Social Welfare Boards have been established; at the Block level the Project Implementation Committee, recently replaced at some places, by the Functional Committees for family and Child welfare were organized.

These bodies consisted of official and non-official social workers. The CSWB so far has given grants to number of NGO's and has sponsored Welfare Extension Programmes for women, children, etc., in rural and urban areas. After care services and educational programmes for women, destitute, widow and various target groups of children.

### 2.9 Social Welfare: State level

At the state level there are both Government and Non-Governmental organization carry out the task of social welfare. The following are the crucial questions raised while understanding the social welfare at the state level:

- How far the corridor approach between the state and NGO would be helpful in the development of social welfare in a welfare state?
- Is it being increasingly recognized that in a welfare state the measures of social security, maternity and health services , assistance to the dependent and the differently abled, employment series, services to the aged, etc., will have to be provided universally. Ultimately therefore the state will have to assume responsibility for providing that services. The services of HNGO will continue to be

required, but they will have to be supplementary to the measures of social security provided by the government

- What would be the role of the CSWB and its representative body's with the state, district and Block levels in developing voluntary action in the fields of social welfare in view of the creation of Panchayati raj institutions in most states.
- It seems that the Panchayati raj institutions, which are representative bodies of the people, and more effectively generate voluntary actions that the CSWB. This is precisely the purpose for which the Panchayati raj institutions have been created. In other words, the role of the CSWB in the generation and promotion of voluntary actions in the field of social welfare will have to be supplementary to the effort of the Panchayati raj institutions.
- Some other issues relating to the implementation of social welfare policy by the voluntary organizations, which need to be examined critically, are their ability to raise funds from the community, maintain the freedom of action and follow progressive personnel practices and to develop innovative programmes.
- In view of the policy adopted by the national and state governments, it is reasonable to assume that that sources and amount of contribution from the community for social welfare are extremely limited. It is perhaps due to this fact that most of the NGO's received about 40 per cent of their resources from government. Therefore, under the circumstances, it is doubtful if the voluntary organizations can develop an independent base of resources and maintain their autonomy as community supported institutions.

Apart from the above discussions the state social welfare board looks after the welfare activities at the state level officially which is dealt in the coming pages.

**Need For Professional Social Workers**

In terms of personnel policy, the NGO's are manned by untrained staff, particularly at the top and middle levels. It should be noted that the executive secretary of the CSWB is a generalist and does not have any specialized training in social welfare administration. Similarly the SSWB are managed by non-professional staff. Most of these executive secretaries of the SSWB are not trained social workers. Most of the NGO's also do not have personnel policy to employ trained professional social workers.

The un-trained and non-professional employed by them tend to follow administrative practices unsuitable for the management of social welfare organizations. It is therefore, not surprising that the experimental projects run by these organizations are sub-standard, unimaginative and sterile. Somehow, the CSWB and SSWB and NGO have not realized that the quality of personnel significantly determines the success of the programmes. Even the most brilliantly thought out programmes falls flat on its face when run by the untrained, non-professional, unimaginative and substandard staff.

It is therefore, imperative that the CSWB, SSWB and NGO revise their personnel policy in favour of trained professional social workers. Further the currently untrained staff working in these organizations should also be sent for training. They should depute one or two supervisory personnel for training in one of the good schools of social work in the country which offer programmes in social welfare administration. The investment in training will pay a heavy dividend in terms of quality of service, administrative efficiency and innovation in the development of social welfare programmes.

### 2.9 Social welfare: Local Level

The Panchayati raj institutions are important units in the implementation of social welfare programmes at the district level. A major part of social welfare services has been transferred to Panchayati raj institutions for implementation. The main programmes transferred to Panchayati raj institutions for implementation are from the fields of backward classes welfare and the Family and Child welfare. It is therefore important, to critically examine the scope, potential and limitations in the implementation of social welfare services under the Panchayati raj institutions.

One of the issues with regard to social welfare under Panchayati raj institutions is that in some of the states social welfare is not treated as a technical subject like agriculture, education, animal husbandry, etc., Consequently he is unable to handle his responsibility as effectively as other officers. It is due to this reason, perhaps, some states have begun to realize the difficulties in this arrangement and are seriously considering making social welfare as a separate department and giving it technical status.

The masses will have to be educated about the nature and operation of the political process so that they can press for their demands to the politicians. The development of public opinion for social welfare is necessary for an effective formulation and implementation of social welfare policy in the country.

### 2.10 Central Social Welfare Board (CSWB)

The Central Social Welfare Board was established in the year 1953 in order to support and assist the welfare services through voluntary effort in the country. When declared open the then Prime Minister of India Pandit Jawaharlal Nehru expressed that ‘this attempt of establishing a Board to promote welfare services at the centre is a unique attempt. It is not some ‘Central Authority’ that is doing it all by itself, nor does the burden of this fall on the local social welfare organizations, it is certainly a combination of the two where the Central Social Welfare Board comes as a helper and adviser and at the same time the local welfare organizations which are best suited for it, undertake the work. In this case, we can utilize the energy, enthusiasm and initiative of vast number of persons all over the country.

### 2.10.1 Functions of CSWB

The board in 1953 was assigned the functions as generally to assist in the improvement and development of social welfare activities and in particular":

To cause a survey to be made of the needs and requirements of social welfare organizations

i. To evaluate the programmes and projects of the aided agencies
ii. To co-ordinate assistance extend to social welfare activities by various central ministries, departments, state governments
iii. To promote the setting of social welfare organizations on voluntary basis where such organizations' do not exists
iv. To render financial aid when necessary to deserving organizations' or institutions on terms to be prescribed by the board

**Additional Functions**

In July 1960 on the recommendations of the study team on Social Welfare and Backward classes the following additional areas of responsibilities were assigned to the board:

- To organize field counseling services as an effective supplement to the working grants in aid programme to assess the programmes and projects of aided agencies
- To promote the setting of voluntary organizations in uncovered areas
- To initiate the organizations of pioneering welfare service and
- To stimulate effective co-ordination among voluntary welfare agencies especially at the national level and among agencies covered by the grant in aid programme

The broad reasons for the additions of the above mentioned functions are the indicators of:

- Ensuring proper utilizations of funds by the voluntary organizations provide under the grant in aided programme through an effective internal assessment are supervisory machinery
- The non-existence of the large number of suitable voluntary organizations which could fulfill terms and conditions of grant such as those of registration, auditing, accounting, raising of matching grants, etc.,
- To encourage and motivate the voluntary organizations which did not take up earlier all types of social welfare service through initiating such service
- Non-existence of required co-ordination and co-operation among the voluntary organizations functioning at all levels among central and with the governmental agencies between the concerned government department at central and state level

- Demand of voluntary organizations providing them with technical and professional knowledge of the social welfare programmes to their door steps and
- Emerging needs and requirements and establish specialized social welfare services.

### 2.10.2 Major Activities

- General grants in aid programme
- Welfare extension projects
- Mahila Mandal programmes
- Condensed courses of Education for adult women and Vocational training courses
- Holiday camps for children
- Urban welfare programmes
- Working women hostels
- Socio-economic programmes
- Integrated Child Welfare Demonstration projects
- Integrated pre-school projects
- Supplementary nutrition programmes
- Creches programmes
- Voluntary action bureau and family counseling scheme
- Scheme for awareness Generation projects for rural poor women

**Future Direction for Central Board:**

- ✓ The spirit of continued partnership between statutory and voluntary welfare service to act as complementary and supplementary to each other
- ✓ Change over from unorganized charity to systematic welfare and work on systematic line to be supported by state assistance wherever considered necessary or desirable
- ✓ Need for proper co-ordination of all welfare service voluntary and statutory and the dovetailing thereof into the general pattern of the overall development of the country as unfolded in to five year plans
- ✓ Changing the role of voluntary organizations from the concept of charity or patronage to that of social responsibility based on social justice.
- ✓ Need of rationalizing the system of rendering financial assistance to voluntary organizations
- ✓ The setting of welfare institutions on voluntary basis for the uncovered areas and
- ✓ Conducting of regular surveys regarding the needs and requirements of the social welfare organizations

The creation of the Central Social welfare Board represents an experiment in the newer ways social welfare administration. It is a clear example of public people partnership in its administration that could contribute and participate in the development process of the country thus the principle of democracy is upheld. Central Social Welfare Board becomes part and

parcel of the Non-governmental organizations in terms of financial assistance, technical guidance, training and monitoring and thus enhancing the quality of service to the community.

### 2.11 State Social Welfare Board

**Functions**

- To act as media for exchange of information between the field and the centre and vice versa
- To invite and examine applications for grant in aid for voluntary welfare organizations and recommend same to the central social welfare board
- To supervise the working of the NGO projects and report to the central board
- To advise and assist the central board in sponsoring new welfare programmes and activities
- To co-ordinate the social welfare activities undertaken by the various departments of the state governments obviating all duplication or overlapping
- To promote the growth of NGO's and special references to the development of welfare services in the areas left uncovered
- To assist the central board in providing field counseling services for aided NGO's
- To administer the programme of rural welfare projects
- To stimulate effective co-ordination among voluntary organizations and between voluntary and statutory agencies at the state and local levels
- To undertake with the concurrence of the central board such other social welfare activities or programmes as entrusted to the state board by any department of the government.

#### 2.11.1 Tamil Nadu Social Welfare Board

The Tamil Nadu Social Welfare Board which was constituted in 1954 has been working for growth and development of people below poverty line through Voluntary Institutions in the State with the following objectives:-

- To promote and setting up of Non-Governmental Social Welfare Organizations.
- To render technical and financial assistance to the Voluntary Institutions for better quality and standard of services.
- To assess the Programmes aided by Central Social Welfare Board and the Government.

The Central Social Welfare Board through Tamil Nadu Social Welfare Board provides support to Voluntary Organisations under a variety of programmes in order to facilitate and strengthen their role in empowering women through education and training, through collective mobilization

and awareness creation, through income generating facilities and provision of support services.

The pattern of assistance varies from 50 percent to 90 percent, the balance being borne by the Voluntary Organisations. Special schemes receive cent percent grants.

With the assistance of Rs.998.58 lakhs from the Central Government, 827 Voluntary Institutions consisting of 1,923 units were assisted during the period from April 2007 to March 2008. State Government assistance for Rs.14.80 lakhs has been provided for the assistance of 206 Voluntary Organisations. The total beneficiaries of women and children under all the schemes of Tamil Nadu Social Welfare Board are 50,560.

The Tamil Nadu Social Welfare Board is co-ordinating between the Non-Government Organisation and Government in eradicating alcoholism and usage of drugs etc. Special efforts are taken by the Board on effective protection of the rights of women through Law, AIDS awareness and maintaining Day care centres for children of sexual workers.

**Grants Provided to NGO's by State Government**

The Government of Tamil Nadu provides Rs.10 lakhs every year to the State Board to help 200 registered Voluntary Organisations functioning in rural areas for the welfare of the people and having two years standing after its registration under the Societies Registration Act/ Trust Act, to develop infrastructure facilities for activities like crèche, balwadi, and recreational centre. An amount of Rs.5,000/- is being given as grant to the organization 50:50 matching basis. A sum of Rs.10.00 lakhs has been provided in the Budget Estimate for 2008-2009.

**Future Directions to the State Board**

- ✓ Need for defining the status of the board
- ✓ Need for evolving an effective monitoring system of the programme
- ✓ Need for effective co-ordination
- ✓ Need for a single agency to meet the administrative expenditure

**2.12 Directorate of social welfare**

In the governmental organizations, the social welfare subjects are distributed among various executive departments in the State. In some states they are affiliated various departments. This contributes to a fragmented and uncoordinated approach currently prevailing ht the planning and implementation of social welfare programmes.

The main departments at the state level responsible for the implementation of social welfare programmes are the Directorate of Social Welfare, Backward classes welfare, Directorate of Schedules caste welfare and tribal welfare. These departments are generally headed by the generalist

administrators who do not have any specialized training in social welfare. Their approach to social welfare administration is based primarily on the classical theory of administration which places a heavy emphasis on

- standardization or
- procedure,
- formalism,
- centralization of authority,
- job oriented (authoritarian) leadership,
- inflexibility,
- neglect of individual situations.

A more suitable approach in social welfare administration seems to be the one which emphasizes what Drucker calls 'Management by Objectives (MBO) , flexibility, expressive supervision, decisive work groups, etc., conducive for the generation of capacity and forces in the organization necessary for problem solving and socialization. It is therefore, important to entrust the task of social welfare administration to a specialist, trained in social work and modern techniques of management.

Since such a functionary does not exist, the existing personnel in the field will have to be trained. Besides, a special field of training in the field of social welfare administration will have to be developed by the schools of social work in the country.

### 2.13 Welfare of the differently abled

One of the prominent target groups for providing social welfare is the differently abled persons. There are specific and special agencies and progammes are designed for their welfare. Numbers of special schools, training institutes, vocational centres, rehabilitation homes etc., have been established by the government and NGOs.

It is ensured in the Constitution of India that equality, freedom, justice and dignity of all individuals and implicitly mandates an inclusive society for all including the persons with disabilities. There are seven categories of disabilities have been identified as per the Persons with Disabilities Act, 1995 such as; blindness, low vision, leprosy cured, hearing impairment, locomotor disability, mental retardation and mental illness. Persons having a minimum of 40% disability are eligible for entitlement of all welfare facilities provided by the Government.

The policies of the government to the welfare of persons with disabilities have been reflected in the enactments, schemes and through NGOs and institutions recognized for development of manpower for rehabilitation of persons with disabilities.

The institutions of higher education need to engage in the following activities:

- Enable admission of differently-abled persons in various courses;
- Provide guidance and counseling to differently abled persons
- Create awareness regarding the needs of differently abled persons
- Assist in referral services for identifying vocational courses for differently abled
- Promote differently-abled graduates to gain successful employment both in government as well as in private agencies

**2.14 Check your progress**

a. Define Public relation and explain its importance
b. Elaborate the need for research in social welfare administration
c. How to conduct evaluation in SWA

**2.15 Summary**

Both the state and the central government fielded number of schemes and programmes for the differently abled persons. In line with the schemes of the government the higher education system has also been encouraged to provide necessary guidance and counseling to differently-abled persons. The functions and role of CSWB and SSWB are noteworthy.

**2.16 Key words**

Public relation, monitoring and evaluation and research, CSWB (CENTRAL SOCIAL WELFARE BOARD), state social welfare board

**2.17 Self Assessment Questions**

- Mention the functions of CSWB
- Describe the role SSWB
- Suggest ways to promote SWA from its present status
- Explain the SWA at national level in India
- Differentiate the SWA in Government and NGO's
- Describe the need for professional social worker in SWA
- List out the issues of differently abled

**2.18 Further Readings**

Adoms Robert, 2002 : Social Policy for Social Work, Palgrove.

Badlock John.2000 : Social Policy, Oxford University Press.

Yeetes Nicole. 2001: Globalisation of Social Policy, Sage Publication.

Shanmugavelayudham, K 2000: Social Legislation and Social Change, Valgha Valamudan Publishers, Chennai.

David Bills and Margaret Harris 2000: Voluntary Agencies: Challenges of Organisation and Management (ed) Macmillan, New York.

Gills Stewart 2000: Social Policy for Social Workers, Practical Social Work Series, Macmillan, New York.

Tiwari S, 2000 : Encyclopedia of Indian Government : Programme and Policies, Anmol, New Delhi.

# Unit III

## 3.1 Structure – Contents of the unit

Social welfare programme and agencies: Evaluation of social welfare in India; voluntary social work, social agencies, meaning, definition, type and models of NGO's; role of NGO's in national development

## 3.2 Objectives

To understand the role and programmes of NGOs

To observe the present status of social welfare

To realize the contribution of NGOs to nation building

## 3.3 Introduction

The term social agencies refers to voluntary organizations which are providing services through various projects and programmes which are designed for the betterment of individuals, group, family and community. In other words, social agency refers to a structure to assist families and individuals in the society. The primary purpose of social agency is to secure for each individual, the basic economic necessities, high standards of health, decent living conditions, and equal opportunities with fellow citizens with self-respect and dignity

### 3.4 Social Welfare programmes and Agencies

The central government, state government and many voluntary agencies at the state, national and international levels work in the field of social work and social welfare to meet the challenges faced by the community at large. The prominent agencies are given below.

#### 3.4.1 Government agencies

The following Government departments are functioning in the field of social welfare and social work. Some of these are:

- ✓ Ministry of Health and Family Welfare Government of India
- ✓ Department of Women and Child Development
- ✓ Ministry of Human Resources Development
- ✓ Social Welfare Department
- ✓ National Institute of Social Defence
- ✓ Central Social Welfare Board
- ✓ Ministry of Youth Affairs and Sports
- ✓ SC/ST Department
- ✓ Ministry of Labour

***Ministry of Health and Family Welfare, Government of India***

The Ministry of Health and Family Welfare engage in the various welfare tasks such as to fight communicable, non-communicable and other major diseases. The following are some of the notable national programmes fielded by the central government:

1. The National Surveillance Programme for Communicable Diseases
2. National Anti-malaria Programme
3. National Filaria Control Programme
4. Dengue Fever Programme
5. Japanese Encephalitis Control Programme
6. AIDS Control Programmes
7. National Leprosy Eradication programme
8. National TB Control Programme
9. Active Programme for Control of Blindness
10. National Cancer Control Programme
11. National Mental Health Programme.

**Department of Women and Child Development**

The Department of Women and Child Development is working with the welfare and development of women. The following are some of its schemes:

- Subsidized Hostels for working women
- Employment and income generating programmes
- Vocational Training Centres
- Family Life orientation
- Women's Development Corporation at the state and district levels

***Social Welfare Department***

The major activities of the Social Welfare Department can be classified into those concerned with child welfare, welfare of women, welfare of the aged, welfare of the differently and General Welfare Schemes.

List of programmes:

- Financial assistance to dependent children
- Maintenance of orphan and destitute girl
- Foster care services scheme
- State after-care services for boys
- Special nutrition programme
- Family and child welfare projects
- Integrated development services scheme.

***National Institute of Social Defense (NISD)***

The name National Institute of Social Defense was established for the protection of the offenders and their rehabilitation. This agency which is previously known as Central Bureau of Correctional Services, was offering various services aimed to protection of society against crime and for the treatment and rehabilitation of offenders. It has established number of rehabilitation and vocational training homes and rehab services for the juvenile delinquent children for their education and life orientation in order to mainstream them or rejuvenate them.

***Central Social Welfare Board (CSWB)***

Central Social Welfare Board has been established by the Government of India and a fully funded by the central government. The major programme and activities of the Board are:

- Family Counselling Centres
- Short stay homes
- Welfare Extension Projects, such as pre-primary education and craft
- activities for women
- Awareness generation programme for rural and poor women
- Demonstration projects to provide nutrition, health and education
- and recreational facilities for children

***Women Welfare Programmes***

The women welfare programmes organised by the board include:

- ✓ Scheme for financial assistance to widows and destitutes

- ✓ Homes for widows and destitute women
- ✓ State Protective homes
- ✓ Programmed for welfare of the aged.

***Welfare of the Physically Challenged***

Welfare of the differently abled is provided through:

1. Institute for the visually challenged
2. Sheltered workshop for the physically challenged
3. Programmes for the welfare of the deaf and dumb
4. Educational Scholarship schemes for the Physically challenged
5. Supply of prosthetic aid
6. Housing for the mentally retarded children
7. Financial assistance to victims of chronic diseases.

***General Welfare Schemes***

The general welfare schemes are:

- Grant in aid scheme to NGOs
- Relief Organizations

**Ministry of Youth Affairs and Sports**

The Department of Youth Affairs and Sports was set up under the Ministry of youth affairs and sports aimed at promoting the interests of the youth and to take the necessary measures for their development and welfare. The Government of India, has over the years provided the necessary facilities for the development and welfare of the youth to augment their talents and aspirations.

The central government branch out the activities of youth organizations by establishing number of institutions such as the National Service Scheme (NSS) and Nehru Yuva Kendras (NYK) in order to include new opportunities in the fields of sports, adventure, cultural activities and physical fitness. National youth awards were also introduced to distinguish the excellent work being done by young persons in the field of national development and social work.

**National Service Schemes (NSS):** The NSS was established with the objectives of developing the personality of the students through community service. It also widens their social consciousness by providing them with prospectus to work and interrelate with people.

**National Cadet Crops (NCC):** The NCC originated from the 'University Crops', which was created under the Indian Defense Act of 1917, to reduce shortages in the army. The goals of NCC are to develop character, commandership, discipline, leadership, secular outlook, spirit of adventure and the ideals of national service among the youth of the country. It focused in college and student life.

**Nehru Yuva Kendra:** The Nehru Yuva Kendras were setup to provide the rural youth with opportunities to develop their personality and skills, and contribute to rural development.

**National Service Volunteer Scheme (NSVS)**

This scheme was initiated to provide graduates with opportunities to engage in voluntary nation building activities. It seeks to build up their character, personality and functional capability for better their abilities and skill.

**Rajiv Gandhi National Institute of Youth Development (RGNIYD)**

It is located in Chennai, Tamilnadu. This institute functions as an autonomous body, registered under the Societies Registration Act. It provide training, documentation, research and evaluation, and extension for all youth related activities of the country along with academic programmes for the college students.

**Scouting and Guiding:**

To promote citizenship among the students of schools this unit has been established. This movement aims at developing the character of boys and girls to make them good citizens by inculcating in them a spirit of loyalty, patriotism and sympathy for others. Scouting and guiding also promotes balanced physical and mental development of boys and girls, and has a social service and community work**.**

**Financial assistance to NGOs:**

This scheme provides financial assistance to voluntary youth organisations, mainly in the rural areas. Commonwealth youth programme: This programme aims at promoting the wellbeing, overall development and understanding among the youth in commonwealth countries. The overall guidance for the programme is designed by Commonwealth Youth Affair Council which is an international agency working for the welfare of youth.

***Scheduled Castes (SC) and Scheduled Tribes (ST) Department***

The Constitution safeguards the protection for the SCs and STs in the community. The Harijans and Girijans tribes constitute about 25% of the country's population and they fall under this group. The major services include reservation, welfare schemes, educational development, economic development programmes.

Reservation services: The members of the SC/ST shall be taken into consideration while making appointments to posts and services, in connection with the affairs of the union or the state in educational institutions and other welfare schemes.

**Welfare Schemes for the Scheduled Castes (SCs):** The Ministry of Social Justice & Empowerment oversees the interest of the SCs. The Ministry monitors the actions taken by state governments, union territories and other central ministries for the protection and promotion of the interests of SCs. The chief aims of the schemes are:

a. **Educational Development:** The scheme of post-matric scholarship for SC students is the largest educational scholarship scheme of its kind in the country. It promotes higher education among scheduled castes. Other notable schemes include hostels for SC boys and girls, the book bank scheme, merit scheme, and coaching and allied scheme for SC students.

b. **Economic Development:** The National Scheduled Castes Finance and Development Corporation (NSFDC) and the State Scheduled Caste Development Corporations play a key role at the national and state levels, in promoting the economic development of people belonging to the scheduled castes

**Protective Measures:** Two legislations have been enacted to abolish the practice of untouchability and prevent discrimination against SCs. These are: the Protection of Civil Rights Act of 1995, and the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act of 1989 safeguard their rights and privileges.

f. **Centrally Sponsored Schemes for Scheduled Tribes:** There are three centrally sponsored schemes for Scheduled Tribes.

These are:

**Girls Hostels:** This scheme has been in operation since the third five-year plan. It has helped considerably to promote girls' education amongst tribal communities by providing hostel and other facilities where in accommodation and food is served free of cost.

***The Ministry of Labour***

The Ministry of Labour is one of the most significant ministries of the Government of India. The main responsibility of the Ministry is to protect and safeguard the interests of workers in general, as well as the interests of the poor, deprived and disadvantaged members in society.

The main functions of the Ministry are as follows:

- Enacting Labour policy (including wage policy) and legislation
- Safety, health and welfare of labour

- Social security schemes
- Policy relating to special target groups such as women, child labour
- Settling of industrial disputes
- Workers' education programmes through CBWE
- Collection and maintenance of labour and employment statistics
- Emigration of labour for employment abroad

### 3.5 International Social Welfare Agencies

There are quite a number of international agencies that provide social welfare services. They include the following:

#### *3.5.1United Nations Organization (UNO):*

The UNO has been engaged in social welfare programmes ever since its inception in 1945. The United Nations is to promote higher standards of living, to people across the world. Most of the work of the United Nations, measured in terms of money and personnel involved, goes into a variety of programs that aim at achieving a better life for all the people of the world through its various schemes, technical expertise and fund allocation.

**3.5.2 United Nations International Children's Emergency Fund (UNICEF):** UNICEF was started by the General Assembly of UNO on 11 December 1946. Its intention is to help developing countries to improve the welfare of children and youth. Currently, UNICEF extends help to children in over 114 countries in Africa, Asia, America and Eastern Mediterranean. UNICEF provides assistance in the fields of health, nutrition, social welfare, education and vocational training through their partner organistions.

**Universal Declaration of Human Rights**: On 10th December 1948, the General Assembly adopted the Universal Declaration of Human Rights. For the first time in history, the accountability for the protection and pursuit of human rights was assumed and accepted by the international community as a permanent obligation. The Universal Declaration consists of 30 articles covering political and civil rights, economic, social and cultural rights. The declaration included the right to social security, the right to work, the right to rest and leisure, the right to a decent standard of living, healthcare and well-being, the right to education, and the right to participate in the cultural life of the community. The member countries have the moral responsibilities to safeguard the welfare of its citizens.

### 3.6 International Voluntary Organizations:

The international social welfare progammes of the United Nations include:

- League of Red Cross Societies
- International Council of Social Welfare
- International Union of Child Welfare
- International Union of Family Organization
- International Social Security Association
- International Association of Lions Club
- Oxford Committee for Famine Relief
- Rotary International
- Salvation Army.

### 3.7 Evaluation of social welfare in India

There is really a crisis experienced in the field of social welfare administration in India which can be attributed partly due to the external factors and pressure groups. The effectiveness of the organization is greatly depends upon the managerial ability, skill, knowledge, attitude, motivation and above the professional ability to manage the affairs of the organization is very much lacking. Another concern has been that the manager of social welfare organizations have not been motivated to secure, develop and utilize human resources effectively for accomplishment of organizational goals and to develop flexibility of systems of matching the objectives with the objectives of social development.

That is why in order to mitigate the lacunae the new managerial revolution has to take a system's view of management in which the sole perspective of the organization setting is to be taken into consideration. The individual sub-systems have to be together, checked and operated to as to achieve the goals of the system in a most efficient manner. The intention is to provide decision-makers with full, accurate and meaningful summary of information relevant to clearly defined issues and alternatives through a well built management information system.

In a system's view as outlined above, the performance of an organization depends upon the co-operation, co-ordination and support of various categories of personnel. When any lapse on the social welfare organization is detected, lest it should undermine the whole system and it is necessary; to let the social welfare organization know as what is being thought of its performance based upon results racked up in the attainment of specific tasks and targets. Both the strength and the weakness need to be analyzed in a systematic manner in appropriate intervals. Moreover the planning needs to be systematic and continuous.

The resources and capacities of the organized have to analyze for fulfilling the desired roles. A well planned strategy has to be designed which matches with the future environmental opportunities, desired social economic roles, values, and aspirations. Efforts have also to be made to

provide a broad based framework to help maximum number of beneficiaries to participate in the planning process. Planning for social development has to provide leadership and staff development.

**Recommendations for Improvement**

**Objectives should be made clear**

The objectives of social welfare programmes must be spelt out in clear terms. Besides, social welfare programmes must be linked with broader objectives of social policy and socio-economic development to achieve an integrated national social welfare programmes'. Social welfare programmes should be closely coordinated with economic development to achieve an integrated national social service programmes. Adequate coordinating is required among all the governmental bodies concerned with social welfare services and related social programmers such as education, health, housing, relief, justice, labor welfare, etc.,

The planning and coordinating machinery may also facilitate communication and the continuous exchange of general and specific information, as well as ensure effective collaboration at the operational level. As J.F. Bulsara pointed out 'Social and economic development are complementary and social services and social welfare are essential for a balanced and healthy growth of the society, whether it be technologically advanced or economically under-developed. Social welfare services contribute substantially to economic productivity by creating amongst the people a healthy psychological atmosphere and a sense of belonging in being cared for thorough an appropriate provision of badly needed social and welfare services'.

**Need for scientific social planning**

All-round social planning should be based on scientifically collected and pertinent factual data. Such planning is not being done in the developing world because of the non-availability of reliable data of right quantity and quality. In the absence of such data, it becomes difficult to convince the planners resulting in the poor allocations to social welfare services.

**Active participation is essential**

Participation of the beneficiaries and community is essential for the success of any programmes; specifically for social welfare programmes. The encouragement of participation and public cooperation is an active and living element in a dynamic democracy. The resources in the developing world are limited and more people could be served only through an active involvement and participation.

**Need of Decentralization**

Responsibility of the administration of social service should be decentralized to a great extent to ensure close relationship with the beneficiaries and communities to be served. This would also help in getting

feedback from the people who would be useful in the planning and evaluation of social welfare programmes. Special efforts may be made to extend social welfare services to neglected rural areas on an adequate basis, taking into account the particular needs of rural areas.

**Need for developing professional standards**

Technical standards for social welfare service programmes may be evolved by with the help of institutions engaged in the education and training of social workers viz., the schools of social work. These standards may be adopted according to different situations to ensure implementation of the overall social policy. Technical and professional standards has to be simple and clear so that they are really understandable to all concerned with social welfare programmes and activities and to the general public.

**Strengthening of Non-Governmental organizations**

Worldwide NGO's played and continue to play an important role in providing social welfare programmes. Governments should encourage and assist such initiatives by providing financial, technical and supervisory assistance to help them maintain standards and improve their quality of service. Care may be taken that the NGO's may not be reduced to bureaucratic organizations.

**Need for administrative competence**

There is a great need to make selections on the basis of administrative ability and technical and professional qualifications in the field of social welfare administrations, so that qualified professionals are attracted to serve this service sector.

**Need for well-defined procedures and policies**

Clearly defined administrative procedures have to be developed for handling all complaints regarding the functioning of social welfare activities. This procedure should be simple and intelligible so that beneficiaries and the community could easily access and which will help to assess the impact of these services on the people.

**Social agencies –An Introduction**

In every community, there are challenges, issues and problems which require intervention to solve or combat it. More over the community faces new challenges and novel problems due to the advent of time and its consequences. Hence Social agencies are evolved to defend weak and vulnerable members of community from some of these issues.

Social agencies are operating at different levels, including local authorities in urban and field based grass root organizations in the rural areas. Many a time social welfare is often confused with social service, social reform and social security. This bewilderment has arisen because of the fact that they all have one goal of promoting the well-being of the community.

### 3.8 Meaning of social agencies

The connotation of social agency may be different from nation to nation. It depends on a number of factors, such as the chronological development of the country, the growth of administrative organizations and structures, the stage and goals of development, the type of programmes, the allocation of responsibility between government and voluntary sectors, and the socio-cultural structure.

**Objectives of social agencies:**

- Assist in ensuring prevention of social vices
- Maintain income at an acceptable level
- Present medical care and public health services
- Provide adequate housing and community development
- Promote services to facilitate social adjustment
- Afford facilities for recreation
- Ensuring basic facilities for the needy.

#### 3.8.1 Scope of social agencies

Social agencies covers a very wide range of services offered to the community especially the weak and vulnerable sections of the society. Social agencies provide direct services to individuals, groups, families and neighborhoods. They serve people of all ages and are organized by all levels of both government and voluntary organizations. They are administered by numerous federal, state and local agencies. They include community based and institutional services at local, regional, national and international levels. To achieve the goals of social welfare, the government formulates social policies.

The government enacts social legislation, initiates number of schemes, programs with specific objectives along with financial allocations to reach the target groups for the purpose of promoting their livelihood. More over in many occasions both government and non-governmental organizations (NGOs) enter into partnership or in co-ordination with one another implement welfare programmes for the betterment of the community.

In India the term ‘social welfare’ is associated with the provision of social agency services to the under privileged groups in society. To name such groups such as; scheduled castes, scheduled tribes, orphans, widows, unmarried mothers, elderly, women and children, socially maladjusted, beggars, prostitutes, delinquent, physically and mentally disabled, mentally retarded, the unemployed and destitute abused, neglected and abandoned. Social agencies are therefore directed towards promoting their life

situations so that these groups can be main streamed with the rest of the community.

### 3.8.2 Features of social agencies

There are two main features of social agencies:

- Providing welfare measures to support or reinforce the family as a basic social institution. These welfare measures offer the physical, mental, emotional, spiritual, educational and economic requirements of the members of the family.

- Services which are intended to strengthen the individuals' capacity to promote their livelihood.

The main purpose or goal of the social agencies is to generate the basic conditions that facilitate all the members of the community to realize their potential for development and self-attainment. Individuals are enabled to live a decent life with equal opportunity and chance, work and promote their capacity in a normal environment regardless of their physical, psychological or social challenges and issues.

### 3.8.3 Functions of social agencies

The functions of social agencies shall be divided into two major types. The first one where in the services which focus on individual needs and problems and next one is those services which target the needs of the community.

- Social agencies that serves individual needs:

Social welfare protects the interests and promotes the wellbeing of the weak, vulnerable, poor, and needy, under privileged, backward, mentally, physically or otherwise handicapped, abused, neglected and abandoned. In the Indian context, it is meant to provide services to the underprivileged, disadvantaged, downtrodden and backward sections of the society.

- Social agencies that serves societal needs:

The principle of social welfare programmes is to promote the smooth functioning of community. They not only provide the necessary financial support to families and groups but also support the democratic setup and help in maintaining social justice.

## 3.9 Voluntary social work

### Introduction

Voluntary social work done through NGOs by some interested individuals or volunteers who have care and concern for the community. It is a spontaneous group raise to the occasion either due to natural calamities or due to any disaster. It is an interest group which could be formed when

there is a need or issues are felt and the urge for doing welfare services to the neighborhood emerged.

NGOs employ the management processes such as planning, organization, staffing, direction and co-ordination. It is a process in which the welfare organizations employ administration to provide public and private services. Individuals, groups the beneficiaries, the target groups and communities fall under the umbrella of social welfare administration.

Non government Organizations which engage in providing welfare programmes in a systematic and scientific manner has to prepare a plan to achieve this aim with optimum utilization of available resources to the maximum benefit in order to provide services to the needy and the downtrodden.

**NGO Meaning**

A non-governmental organization (NGO) is a non-profit, citizen-based group that operates independently of government. NGOs, are identified as societies or trusts or companies which are organized at the local, state, regional, national and international levels to serve specific social or political purposes, and are cooperative and not for profit in nature.

The various domains the NGOs engage in includes those that support human rights, advocate for improved health or encourage political participation.

World Bank defines NGOs as "Private organisations that pursue activities to relieve suffering, promote the interests of the poor, protect the environment, provide basic social services, or undertake community development." In wider usage, the term, „NGO‟ can be applied to any non-profit organisation which is independent from government. NGOs are typically value based organisations which depend, in whole or in part, on donations and voluntary service"

UNO observed that NGO means "Any non-profit, voluntary citizens' group which is organized on a local, national or international level. Task-oriented and driven by people with a common interest, NGOs perform a variety of services and humanitarian functions, bring citizens‟ concerns to governments, monitor policies and encourage political participation at the community level. They provide analysis and expertise, serve as early warning mechanisms and help monitor and implement international agreements"

In a **broad sense** an NGO is A non-profit making, voluntary, service oriented or development oriented organization for the benefit of a grassroots community and also for the common public. It is an organization of interested individuals who trust in certain basic social principles and who structure their programmes, approaches and activities aimed at development of the neighbouring communities who are in need of such services.

The main goal of NGOs is the empowerment of people. It is an independent, democratic, non-profit and people's organization working for the upliftment of socially and economically underprivileged people. These agencies shall not affiliated to political parties, generally engaged in functioning for aid, development and welfare of the community. Organization committed to the root causes of the problems trying to better the quality of life especially for the poor, the oppressed, the marginalized in both urban and rural sectors. NGOs established by and for the community without or with support and cooperation with the government in their developmental activities. They are not only a charity organization, but engage in socio-economic-cultural programmes. The important features of these organization is the flexible and democratic nature which facilitates them to serve for the people without any thing in return.

### 3.10 Type and models of NGO's

The following are the two patterns of types of NGOs:

**A. Types of NGOs based on its orientation:**

- Charitable orientation
- Service orientation
- Participatory orientation
- Empowering orientation

**B. NGO type based on level of co-operation:**

- Community- Based Organization
- City Oriented organization
- National NGOs
- International NGOs

3.10.A. Types of NGOs based on its orientation:

**Charitable NGOs**

It is the type of NGO which under the funding of some philanthropists and donors and the major thrust is chartity in nature. It often involves a top-down paternalistic effort with little participation by the "beneficiaries" and more of a service provider. It includes NGOs with activities heading toward meeting the requirements of the poor and needy like distribution of food, clothing or medicine, provision of housing, transport, schools etc. Such NGOs may also carry out relief activities during a emergencies like natural or man-made disaster viz;, flood, earth quake, fire, tsunami, etc,.

**Service NGO**

It includes NGOs with focus on programmes such as the provision of health, family planning or education services in which the programme is designed by the NGO and people are expected to participate in its implementation and in receiving the service. It can also partnership with

government and other private agencies while doing their services for the community.

**Participatory NGO**

The prime motto of these agencies is the participation and it believes in participation of the local and other stakeholders. It is distinguished by self-help projects where local people are involved particularly in the accomplishment of a project by contributing cash, tools, land, materials, labor etc. In the classical community development project, participation begins at all levels starting from planning and continues through the implementation stages. A typical example is the Cooperatives which often have a participatory principles and it has its own advantages and merits and to be done in a systematic manner with lot of efforts by building the capacities of the local communities.

**Empowering NGO**

The prime goal of these type of NGOs is to help poor people develop a clearer understanding of the social, political and economic factors affecting their lives, and to strengthen their awareness of their own probable power through organizing them. These agencies many a time develop spontaneously around a problem or an issue, at other times these NGOs work from outside the community to play a catalyst role in their bringing transformation and this could facilitate for their empowerment.

3.10.B. **NGO type based on level of co-operation:**

**Community based organistion**

CBOs are based on communities arising out of people's own initiatives. These can comprise sports clubs, women's organizations, neighborhood organizations, religious or educational organizations. There are a large variety of these, some supported by NGOs, national or international NGOs, or bilateral or international agencies, and others independent of outside help. These NGOs aimed to promoting the consciousness of the urban poor or helping them to be familiar with their rights in gaining access to required services.

**City based Organisations**

Organizations such as the Rotary or lion's Club, chambers of commerce and industry, coalitions of business, ethnic or educational groups and associations of community organizations are classified under CBOs also engage in various objectives in promoting the livelihood of the poor as one of many activities, while others are created for the precise principle of serving the weak and vulnerable.

**National NGO**

Organizations working at the national level for the purpose of lobbying, networking and pressure advocacy strategies fall under the category of

national NGOs. These agencies spread their wings to various states to have state level functionaries to carry out their tasks.

**International NGO**

Workings in more than one country for the benefit of humanity are called international NGOs. These range from secular agencies such USAID, Save the Children organizations, OXFAM, CARE, Ford and Rockefeller Foundations to religiously motivated groups. Their activities vary from mainly funding local NGOs, institutions and projects, to implementing the projects themselves.

### 3.11 Role of NGOS

The various functions and role of NGOs array from grass root level work to national and international level. The magnitude of services ranges from local needy community to creating awareness and complex services like pressure advocacy and lobbying.

- Promoting awareness among the public on various current issues and solutions
- Eliciting the participation of various categories of stakeholders
- Protection of human rights
- Defending the natural resources and entrusting the sustainable use of resources.
- Data generation on natural resources
- Transferring information to public through mass media and social media
- Organizing seminars, lectures and group discussion
- Educate and train rural people on various issues
- Constructing awareness about government programmes, policies, benefits and rights
- Mobilization of resources local, national and international
- Activate rural delivery system
- Building models and experiments on various science and technological advancements
- Act as a mediator between people and government
- Fighting gender and equality with various authorities and bodies
- Offering educational and vocational training to various target groups
- Social mobilization on major issues such as women empowerment, human rights etc.,

#### 3.11.1 Specific Problems Faced by NGOs

The experts and staff in the field and the NGOs report the following problems:

- Issue of continuity and sustainability in the activities of NGO are a major limitation

- The financial crisis or the continuity in finance, or financial assistance on time are the other major trouble experienced by the NGOs.
- Lack of highly committed personnel at all levels, particularly at the grass-roots level.
- Lack of professionally qualified people – Professional Social workers available for development activities.
- The low salary paid to the staff which resulted in poor quality staff and labour turnover.
- Greater dependence on the external funding sources. Duplication of agencies in the same geographical area of operation.
- Lack of proper co-ordination and networking among organizations working in the field and geographical locations.
- Improper designing and development of programmes and activities.
- Most of the programmes are aimed at short-term results which would not focus on the long-term goals.
- No proper networking of programmes with government agencies and vice versa.

### 3.12 Role of NGOs in national development

Depending on the requirements and situations social welfare programs cannot be uniform in every country. They depend on the challenges and issues that are prevalent in local situations. There are number of criteria that determine the nature and scope of social welfare services are:

- Growth and nature of Population
- Economic system
- Social structure and stratification
- Composition of labour force and the changing dimensions
- Change from agriculture to Industrial employment
- Migration from rural to urban areas and vice versa
- Family life and the changing aspects
- Religious and caste system

***Family Welfare***

Family is the basic of the Indian society. Promoting family relationship through social welfare services enables family to perform its functions smoothly. Family has to take care of its members in terms of meeting their social and economic needs. Providing social welfare shall make the members to adjust themselves with the family relationship and hence there is a harmonious relationship among the members established which will support for the better family functioning.

There are also certain specific family welfare programs offered:

- **Marriage counseling:** Identifying and resolving issues arising out of marriages. The marital partners are guided in meeting marital responsibilities and to resolve marital conflicts. The pressing need for marriage counseling is indicated by the mounting rate of separation and divorce due to maladjustments, material culture, in-laws influence, extra-marital relationships, etc.,

- **Maternal care and family planning:** These are services for promoting the mental and physical health of children and mothers through all their stages of development. These services are now an integral part of the public health system.

- **Family life education:** It focus upon to promote healthy family relationships through orientation, discussion, training, and mass media programmes.

- **Home help programmes:** These are the services make available to help families carry on house hold responsibilities and facilitate the family to stay together in spite of chronic illness, handicaps or other types of family misery.

- **Elderly care:** The care of the aged is assuming greater importance with the general increase in population ageing and increase in shedding the responsibilities by the offspring.

***Child Welfare***

Children and their welfare are safeguarded through number of programmes and services. These services seek to promote the health, growth and development of children and meet their needs either through direct assistance or through assistance to parents or families. Services such as distribution of food, medicine and clothing are some of its programmes. Child welfare services is done on the following headings.

- **Maternal and child health care:** The main programmes for child welfare are health services, such as, provision of vaccination and immunization. This is mainly to prevent diseases like tuberculosis, malaria, leprosy, polio and to improve child nutrition.

- **Protective services:** Where the children are in need of care and protection through various agencies they are give care. Children who lack parenting skills, neglect or ill treated children in a cruel manner are given protection through Child wefare Committees and Juvenile Justice boards supported by various homes.

- **Care of unwed mothers and their children:** The services for the unwed mother include maintenance, medical care, hospitalization and counselling to help her face the society and to make a constructive decision both for herself and for the child's future.

- **Day care:** These centres are offered for children between the ages of two and five, who are looked after while their mothers are away at work.

- **Foster care:** These services are designed for neglected or dependent children who lack the protective atmosphere of families or institutions and given foster care.

***Youth Welfare***

While the basic needs of youth normally are met within their own families, a wide range of cultural, social, recreational, vocational and counseling programmes are needed to help the youth assume leadership and responsibility. These programmes can be organised through friendship clubs, athletic teams or hobby groups. Formation of associations and institutions through various schemes the welfare of youth is taken care.

***Services for the differently abled***

Apart from services for the physically and mentally challenged such as provision of shelter and food the needy persons are supported with education and training. Today, the emphasis is on rehabilitation. That is, helping the patients to overcome immediate domestic difficulties and to reconcile themselves and their families to their condition.

***Services for ex-servicemen***

Services for persons who have completed a term of service in the armed forces are done through the schemes such as public work program, job reinstatement, education aid, counselling services, employment preference, housing program and loans for service veterans.

***Disaster Relief***

Disaster relief refers to assistance provided to persons who are deprived of the essential needs of life due to natural disasters like drought, flood, earthquake, volcanic eruption and cyclones. Disaster relief is provided in the form of food, clothing and medical care. Provision of mass shelter, camps and financial support are also included under disaster relief. Rescue and rehabilitation are done for the victims and their dependents.

***Community Development***

Community Development is the process by which the efforts of the people are united with those of governmental authorities to improve the economic, social and cultural conditions of communities and enable them to contribute fully to national progress. The whole community is focused to promote all round development.

***Medical Social Services***

The social and psychological conditions of patients can obviously help or hinder their recovery. Medical social workers give the physician a picture of the social and psychological factors that cause or aggravate an illness.

***Psychiatric Social Services***

Psychiatrists and psychologists provide services for patients suffering from mental illness. They plan for their rehabilitation and after care together with parents and relatives, and engage in various preventive services in the area of mental health.

***School Social Services***

School social workers deal with children, who face problems of adjustment in the family, the school or the neighbourhood to such an extent that their studies are affected. Social workers work together with educators and other professionals like doctors and psychiatrists in this regard.

***Correctional Services***

The major correctional services in which social workers are involved are probation, parole and delinquency control. The correction services are done with the goal of making the victims to rejuvenate to the community.

***Welfare of Weaker Sections***

Certain groups are identified as weak and vulnerable sections of the society. There are deprived and disadvantaged people in every society, who need special facilities and assistance for their wellbeing. The Scheduled Caste (SC), Scheduled Tribe (ST), Backward Class (BC), women and children, and other minority sections come under this group. There are several welfare programmes which are provided by the government and other voluntary agencies for the weaker sections of the society such as education, vocational training, financial assistance, rehabilitation and follow up.

### 3.12.1Governmental schemes on social welfare

***Rural development***

The following are some of the poverty alleviation schemes available for rural development.

**Swarna Jayanti Gram Swarojgar Yojana (SGSY):** The purpose of this programme is to provide sustainable income to the rural poor. The programme aims at establishing a large number of micro-enterprise programmes in the rural areas based on the potential of the rural poor. It is envisaged that every family assisted under SGSY will be brought above the poverty line within a period of three years is the target fixed by the government.

**Jawahar Grama Samridhi Yojana (JGSY):** This is the restructured version of the former Jawahar Rozgar Yojana (JRY). This programme is intended to improve the quality of life of the poor. Its primary objective is to create demand- driven community village infrastructure, including durable assets, at the village level and assets to enable the rural poor to increase the opportunities for sustained employment so that the livelihood in villages would improve.

**Indira Avas Yojana (IAY):** In order to provide shelter for the poor who live below the poverty line; this scheme is being implemented by the Government of India with the aim of The objective of IAY is Primarily to help construct new dwelling units as well as to convert temporary unstable houses to semi-permanent or permanent stable houses by providing grant in aid to the needy target group.

**District Rural Development Agency (DRDA):** The objective of this scheme is to strengthen rural development activities in the district in a more professional and effective way. All the government development programmes are implemented through this agency.

**Welfare schemes:** The Government of India launched this scheme in 1997. The schemes incorporated seven vital services of importance to ordinary people. Under this scheme, the State Government provides shelter for people living below the poverty line are covered.

**Drought Prone Areas Programme (DPAP):** This scheme aims at mitigating the adverse effects of drought on the production of crops and livestock, the productivity of land, and on water and human resources. It strives to encourage the restoration of ecological balance and seeks to improve the economic and social conditions of the poor and disadvantaged sections of the rural community. Hence alternate livelihood schemes for promoting income during draught is envisaged.

**MP Local Area Development Scheme (MPLADS):** This scheme was launched in December 1993, as a central sector scheme. Its objective is to enable members of the Lok Sabha and Rajya Sabha to execute developmental schemes of their choice based on locally felt needs.

**Credit cum Subsidy Scheme for Rural Housing:** This scheme provides shelter to rural families who have not been covered under other housing schemes and are desirous of possessing a house.

**Urban poverty alleviation schemes.**

***Urban poverty alleviation schemes***

The following are few of the urban poverty alleviation schemes available for urban poor in India:

**Nehru RozgarYogana (NRY):** This is a centrally sponsored programme that aims to alleviate the conditions of the urban poor. The NRY consists of three schemes: the Scheme for Urban Micro Enterprises (SUME), the

Scheme for Urban Wage Employment (SUWE) and the Scheme of Housing and Shelter Up gradation (SHASU) to improve the livelihood in urban areas.

**Providing Urban Basic Services for the Poor (PURA):** This scheme is another centrally sponsored scheme, which was implemented during the eighth five-year plan. Its objective is to achieve community organisation, mobilisation and empowerment, and convergence through sustainable support system in the form of financial and other support

**Prime Minister's Integrated Urban Poverty Eradication Programme (PMIUPEP):** The PMIUPEP was launched in November 1995, to address urban poverty problems, especially in small towns. It provides small towns with resources for planning their environment and development for a sustainable development.

**Swarna Jayanti Shahari Rozgar Yojana (SJSRY):** This programme has two sub schemes: one is the Urban Self-Employment Programme and the other is the Urban Wage Employment

Programme. This scheme seeks to provide gainful employment to the urban poor who are either unemployed or underemployed. It also encourages them to set up self-employment ventures. It includes training, orientation, financial assistance and support services.

### 3.13Check your progress

- List the various National Health Programmes.
- List the various types of child welfare programmes.
- Define and explain the role of NGO
- What are the various types of NGOs

### 3.14 Summary

The mission of any country is to provide better living conditions to its citizen. The well-being of the community is becoming increasingly dependent on the efficient governmental management through social welfare administration. The role and contribution of NGOs are prominent and crucial which serves at the grass root people.

### 3.15 Key words

Evaluation of social welfare in India; voluntary social work, NGO's; role of NGO's

### 3.16 Self Assessment Questions

- ❖ Describe the functions of social welfare.

- What are the differences and similarities of social welfare and social work?
- What are the present status of social welfare and how to improve
- Write a brief note about three major social welfare schemes in India.
- Write notes on the following:

    1) Universal declaration of human rights

    2) Commonwealth Youth Programme

    3) Nehru Yuva Kendra.

### 3.17 Further Readings


David Bills and Margaret Harris 2000: Voluntary Agencies: Challenges of Organisation and Management (ed) Macmillan, New York.

Gills Stewart 2000: Social Policy for Social Workers, Practical Social Work Series, Macmillan, New York.

Tiwari S, 2000 : Encyclopedia of Indian Government : Programme and Policies, Anmol, New Delhi.

Laski,H.J: Encyclopaedia of Social Science

Loving and Kirk : Qualitative Approach to Management

Maddick H.: Democratic Decentralization and Development

Devi, Rameshwari and Parkash Ravi (1998), *"Social Work and Social Welfare Administration, Methods and Practices",* Vol. I, Mangal Deep Publications, Jaipur

# Unit IV

## 4.1 Structure – Contents of the Unit

Agency registration: methods, advantages, preparation of byelaws, memorandum of association, rules, regulations, and registration process

## 4.2 OBJECTIVES

1. To understand the provisions of the act
2. To familiarize the procedures for registration
3. To observe the duties of office bearers of NGO's

# AGENCY REGISTRATION

## 4.3 INTRODUCTION

Registration of organisation brings status and recognition and more than that a trust, confidence and hope among the community the organisation intended to work. The registration procedure, details of documents to be prepared and submitted and method of registration is focused in this act.

**Societies formed by memorandum of association and registration.–** Any seven or more persons associated for any literary, scientific or charitable purpose, or for any such purpose as is described in section 20 of this Act, may by subscribing their names to a memorandum of association and filing the same with the Registrar of Joint-stock Companies form themselves into a society under this Act.

**Method of registration**

There are three ways an organization could be registered. The three acts such as societies act, trust act and companies act are having provision to register an organistion. Popular among them is the society act. The following unit shall deal step by process for registration through this act.

### 4.4 Advantages of registration

A registered organisation is viewed as an independent unit with juridical powers with due respect and recognition.

The registered agency can:

- It is a democratic value
- The registered agency is higher priority by funding agencies
- There is a moral, legal and judicial responsibility to the agency
- Purchase the property.

- File cases.
- It can get exemption from income tax.
- It has limited liability.
- Any property held can pass from one generation to another without having to pay any transfer fees or taxes and without any cumbersome documentation.
- The properties of a an incorporated body gets judicial protection

**4.5 Preparation of memorandum and bye laws according to Societies Registration Act, 1860**

**4.5.1 Memorandum of association.−** The memorandum of association shall contain the following things :

- Name of the society
- Objects of the society
- Names, addresses, and occupations of the governors, council, directors, committee or other governing body to whom, by the rules of the society, the management of its affairs is entrusted.

A copy of the rules and regulations of the society, certified to be a correct copy by not less than three of the members of the governing body, shall be filed with the memorandum of association.

**Registration fee.−** Upon such memorandum and certified copy being filed, the Registrar shall certify under his hand that the Society is registered under this Act. There shall be paid to the Registrar for every such registration such fee as the Provincial Government may direct, and all fees so paid shall be accounted for to the Provincial Government.

**Annual list of managing body to be filed.−** Once in every year, on or before the fourteenth day succeeding the day on which, according to the rules of the Society, the annual general meeting of the society is held, or, if the rules do not provide for an annual general meeting, in the month of January, a list shall be filed with the Registrar of Joint-stock Companies of the names, addresses and occupations of the governors, council, directors, committee or other governing body then entrusted with the management of the affairs of the society.

**Property of society how vested.−** The property, movable and immovable, belonging to a society registered under this Act, if not vested in trustees, shall be deemed to be vested, for the time being, in the governing body of such society, and in all proceedings, civil and criminal, may be described as the property of the governing body of such society by their proper title.

**Suits by and against societies.−** Every society registered under this Act

may sue or be sued in the name of the president, chairman, or principal secretary, or trustees, as shall be determined by the rules and regulations of the society, and, in default of such determination, in the name of such person as shall be appointed by the governing body for the occasion:

Provided that it shall be competent for any person having a claim or demand against the society, to sue the president or chairman, or principal secretary or the trustees thereof, if on application to the governing body some other officer or person be not nominated to be the defendant.

**Suits not to abate.−** No suit or proceeding in any Civil Court shall abate or discontinue by reason of the person by or against whom such suit or proceedings shall have been brought or continued, dying or ceasing to fill the character in the name whereof he shall have sued or been sued, but the same suit or proceedings shall be continued in the name of or against the successor of such person.

**Enforcement of judgment against society**

If a judgment shall be recovered against the person or officer named on behalf of the society, such judgment shall not be put in force against the property, movable or immovable, or against the body of such person or officer, but against the property of the society.

The application for execution shall set forth the judgment, the fact of the party against whom it shall have been recovered having sued or having been sued, as the case may be, on behalf of the society only, and shall require to have the judgment enforced against the property of the society.

**Recovery of penalty accruing under bye-law.−** Whenever by any bye-law duly made in accordance with the rules and regulations of the society, or, if the rules do not provide for the making of bye-laws, by any bye-law made at a general meeting of the members of the society convened for the purpose (for the making of which the concurrent votes of three-fifths of the members present at such meeting shall be necessary). Any pecuniary penalty is imposed for the breach of any rule or bye-law of the society, such penalty, when accrued, may be recovered in any Court having jurisdiction where the defendant shall reside, or the society shall be situate, as the governing body thereof shall deem expedient.

**Members liable to be sued as strangers – Recovery by successful defendant of costs adjudged.−** Any member who may be in arrear of a subscription which, according to the rules of the society he is bound to pay, or who shall possess himself of or detain any property of the society in a manner or for a time contrary to such rules, or shall injure or destroy any property of the society, may be sued for such arrear or for the damage accruing from such detention, injury or destruction of property in the manner hereinbefore provided.

But if the defendant shall be successful in any suit or other proceeding brought against him at the instance of the society, and shall be adjudged to recover his costs, he may elect to proceed to recover the same from the

officer in whose name the suit shall be brought, or from the society, and in the latter case shall have process against the property of the said society in the manner above described.

**Members guilty of offences punishable as strangers.−** Any member of the society who shall steal, purloin or embezzle any money or other property, or willfully and maliciously destroy or injure any property of such society, or shall forge any deed, bond, security for money, receipt, or other instrument, whereby the funds of the society may be exposed to loss, shall be subject to the same prosecution, and, if convicted, shall be liable to be punished in like manner as any person not a member would be subject and liable to in respect of the like offence.

**Societies enabled to alter, extend or abridge their purposes.**

Whenever it shall appear to the governing body of any society registered under this Act, which has been established for any particular purpose or purposes, that it is advisable to alter, extend or abridge such purpose to or for other purposes within the meaning of this Act, or to amalgamate such society either wholly or partially with any other society, such governing body may submit the proposition to the members of the society in a written or printed report and may convene a special meeting for the consideration thereof according to the regulations of the society.

But no such proposition shall be carried into effect unless such report shall have been delivered or sent by post to every member of the society ten days previous to the special meeting convened by the governing body for the consideration thereof, nor unless such proposition shall have been agreed to by the votes of three-fifths of the members delivered in person or by proxy, and confirmed by the votes of three-fifths of the members present at a second special meeting convened by the governing body at an interval of one month after the former meeting.

**Provision for dissolution of societies and adjustment of their affairs − Assent required − Government consent**

Any number not less than three-fifths of the members of any society may determine that it shall be dissolved, and thereupon it shall be dissolved forthwith, or at the time then agreed upon, and all necessary steps shall be taken for the disposal and settlement of the property of the society, its claims and liabilities, according to the rules of the said society applicable thereto, if any, and, if not, then as the governing body shall find expedient, provided that, in the event of any dispute arising among the said governing body or the members of the society, the adjustment of its affairs shall be referred to the principal Court of original civil jurisdiction of the district in which the chief building of the society is situate; and the Court shall make such order in the matter as it shall deem requisite.

Provided that; no society shall be dissolved unless three-fifths of the members shall have expressed a wish for such dissolution by their votes delivered either in person, or by proxy; at a general meeting convened for the purpose.

Provided that whenever any Government is a member of or a contributor to, or otherwise interested in, any society registered under this Act, such society shall not be dissolved without the consent of the Government of the Province of registration.

**Upon a dissolution no member to receive profit − Clause not to apply to joint-stock companies.−** If upon the dissolution of any society registered under this Act there shall remain after the satisfaction of all its debts and liabilities any property whatsoever, the same shall not be paid to or distributed among the members of the said society or any of them, but shall be given to some other society, to be determined by the votes of not less than three-fifths of the members present personally or by proxy at the time of dissolution, or in default thereof, by such Court as aforesaid

Provided, however, that this clause shall not apply to any society which shall have been founded or established by the contributions of shareholders in the nature of a Joint-stock Company.

**Member defined − Disqualified members**

For the purposes of this Act a member of a society shall be a person who, having been admitted therein according to the rules and regulations thereof, shall have paid a subscription or shall have signed the roll or list of members thereof, and shall not have resigned in accordance with such rules and regulations; but in all proceedings under this Act no person shall be entitled to vote or to be counted as a member whose subscription at the time shall have been in arrear for a period exceeding three months.

The governing body of the society shall be the governors, council, directors, committee, trustees or other body to whom by the rules and regulations of the society the management of its affairs is entrusted.

**Supersession of governing body of a society.−** (1) Notwithstanding anything contained in the memorandum of association, rules or regulations of a society registered under this Act, if, after such inquiry as may be necessary, the Provincial Government is of the opinion that the governing body of the society:

a) is unable to discharge or persistently fails in discharging its duties, or

b) is unable to administer its affairs or meet its financial obligations, or

c) generally acts in a manner contrary to public interest or the interests of the members of the society.

The Provincial Government may, by notification in the Official Gazette, declare the governing body to be superseded for such period, not exceeding one year, as may be specified in the notification.

Provided that the declaration shall not be made without giving to the

society to be affected thereby an opportunity of being heard;

On the publication of a notification under sub-section (1)

a) the office-bearers and other members of the governing body shall cease to hold office; and

b) all functions of the governing body shall, during the period of supersession, be performed by a governing body constituted by the Provincial Government from among the members of the society.

On the expiry of the period of supersession, the governing body of the society shall be reconstituted in accordance with its memorandum of association, rules and regulations.

**Registration of societies formed before Act − Assent required**

Any company or society established for a literary, scientific or charitable purpose, and registered under Act XLIII of 1850, or any such society established and constituted previously to the passing of this Act but not registered under the said Act XLIII of 1850, may at any time hereafter be registered as a society under this Act; subject to the proviso that no such company or society shall be registered under this Act unless an ascent to its being so registered has been given by three-fifths of the members present personally, or by proxy, at some general meeting convened for that purpose by the governing body.

In the case of a company or society registered under Act XLIII of 1850, the directors shall be deemed to be such governing body.

In the case of a society not so registered, if no such body shall have been constituted on the establishment of the society, it shall be competent for the members thereof, upon due notice, to create for itself a governing body to act for the society thenceforth.

**Such societies to file memorandum, etc., with Registrar of Joint-Stock Companies**

In order to any such society as is mentioned in the last preceding section obtaining registry under this Act, it shall be sufficient that the governing body file with the Registrar of Joint-stock Companies a memorandum showing the name of the society, the objects of the society, and the names, addresses and occupations of the governing body, together with a copy of the rules and regulations of the society certified as provided in section 2, and a copy of the report of the proceedings of the general meeting at which the registration was resolved on.

**Inspection of documents − Certified Copies.−** Any person may inspect all documents filed with the registrar under this Act on payment of a fee, and any person may require a copy or extract of any document or any part of any document, to be certified by the registrar, on payment and such certified copy shall be *prima facie* evidence of the matters therein

contained in all legal proceedings whatever.

**To what societies Act applies.–** The following societies may be registered under this Act:- Charitable societies, societies established for the promotion of science, literature, or the fine arts, for instruction, the diffusion of useful knowledge, 15[15][the diffusion of political education, the foundation or maintenance of libraries or reading rooms for general use among the members or open to the public, or public museums and galleries of painting and other works of art, collections of natural history, mechanical and philosophical inventions, instruments, or designs.

## 4.6 Check your progress

What do you mean by Memorandum

Enumerate the major provisions of FCRA

Mention the various foreign sources

## 4.7 Summary

Memorandum and Bye-laws are the important components pertaining to Registration. Registration an agency in the Society's Registration Act proves to be democratic, collective decision making and ensures participation of both management and community. The important sections are enumerated in the following part.

## 4.8 Key words

Agency registration, byelaws, memorandum of association

## 4.9 Self Assessment Questions

How to Register a Society under societies Registration act

List down the items incorporated under Bye-laws

Discuss the provisions of Trust Act in detail

Eloborate the roles of President in a society

Sketch the important provisions of Tamilnadu societies act and its rules

How important the General body and governing board for an organization

## 4.10 Further Readings

Christopher, A.J. & Thomas William, A., 2006, Community Organisation and Social Action, Himala Publishers, Mumbai

Chowdhry, D.Paul, 1992, Social Welfare Administration, Atmaram & sons, New Delhi

Constitution of India, 1991, Govt. of India

Donnisson, D. & Chapman, Valeris: Social policy and Administration, George Allen and Unpin, London

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbai

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India

Gangrada K.D., Social Legislation in India

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai

Lalitha, N.V., 1981, Financial Assistance to Voluntary Organizations for Development, NIPCCD, New Delhi.

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbai

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Prentice-Hall International, London

Velayutham, K.Shanmuga, 1998, Social Legislation and Social Change, Vazha Valamudan, Publishers, Chennai

# Unit V

## 5.1 Structure – Contents of the unit

Registration of societies, and trusts, governing board, committees, executives, qualities and functions and role

## 5.2 Objectives

- To understand the qualities required for the office bearers in organizations
- To observe the role and functions of societies and trusts
- To realize the significance of various committees and boards

## REGISTRATION OF SOCIETIES

### 5.3 Introduction

Societies are generally initiated for the promotion of science, literature, or the fine arts, for teaching, the diffusion of practical knowledge, the diffusion of political education, the foundation or maintenance of libraries or reading rooms for universal use among the members or open to the public, or public museums and galleries of paintings and other works of art, collection of natural history, mechanical and philosophical inventions, instruments or designs, etc. In the welfare concept society is a structure to be established by voluntary persons in order to promote the life of the community.

Major uniqueness of Society:

- Societies are governed by Societies Registration Act
- Minimum of 7 persons are required to form a society with no upper limit
- Members have to file a MOA on non-judicial stamp paper, setting out the objectives of the society before the registrar of societies with government.
- Complete renewal of members is possible
- Objectives can be modified when needed
- Easier to wind up a society
- Society has a more democratic set up with membership
- There is an elected body to manage the society

**5.4 Registration process:**

- The founder members have to agree on a common name for the society
- The members have to prepare the Memorandum and Rules and Regulations of the society
- Documents are prepared, signed and submitted for society registration
- Covering letter requesting registration of the society, signed by all founding members
- Memorandum of Association (MOA) of the society in duplicate along with a certified copy
- Rules and regulations of the society in duplicate along with a duplicate, duly signed by founding members
- Affidavit by the president or secretary of the society stating relationship between the subscribers
- Address proof of the registered office of the society
- The signed MOA and rules and regulations are filed with the Registrar of societies.
- The required fee for registration has to be paid

**Registration according to:**

**5.5 Tamil Nadu Societies Registration Act 1975**

ANY SEVEN members can join as a minimum members and initiate an organization for registration

MEMORANDUM & BYE LAWS need to be prepared and submitted to the Registrar of the Concerned District Registrar Office

**Memorandum**

1. Name of the society
2. Objectives of the society
3. Name, address and occupation of the members of the committee

**Bye Laws**

- Name of the society
- Address of the Society

- Date of Formulation
- Registration under whose jurisdiction
- Business hours
- Objectives
- Activities or Programmes
- Name of the Officer to be sued and to sue
- Name of the officer to give direction
- Qualification of members
- Enrolment of membership - Fees subscription, dates of payment
- Removal of membership
- Rights and privileges of members
- Constitution of committees
- Supply of copies
- custody of funds
- Meetings, annual statements, etc.,
- procedure to be followed for conducting meetings
- Extra-ordinary general meetings
- number of members required
- Calling for meeting
- Exhibition of register of members
- Joint accounts or accounts maintenance

**5.5.1 Memorandum and Bye-laws** to be either printed or type-written and to be signed by the members.

How to make amendments:

A general body meeting

- ✓ Meeting notice with proposed amendment
- ✓ Special resolution passed and send to Registrar for filing
- ✓ Signed by one of the members

- ✓ Within 15 days filed
- ✓ Fees for filing
- ✓ Changing the Name of the society is also amendment
- ✓ Registrar may object for amendment if there are valid reasons
- ✓ Appeal if Registrar rejects

**Allowed Objectives**

Promotion of

- Education,
- Literature,
- Science,
- Charity,
- Social Reforms
- Art,
- Craft,
- Cottage Industries,
- Sport,
- Games,
- Recreation
- Public Health,
- Social Service,
- Cultural Activity,
- Welfare of Women, children, SC, ST, BC, etc.,

INCOME TAX EXEMPTION could be obtained from the income tax department by applying with proper documents.

**Documents to Register a Society**

- ➢ MEMORANDUM
- ➢ BYE- LAW

- FEES
- APPLICATION – with cover letter

**The Tamilnadu Societies Registration Act 1975**

**Society which may be registered:**

No association which has for its object the improvement of the economic condition of workman, no club where games of chance providing prizes for winners are played and no society which does not consist of at **least seven persons** shall be registered under this act

**Optional Registration**

Any society which has for its object the promotion of religion, atheletics or sports or any other object mentioned in or prescribed under section 3 and to which society the provisions of section 4 are not applicable may at its option, be registered under this act.

**Memorandum, by-laws, etc to be filed with the Register**

For the purpose of registration of a society there shall be filed with the Registrar of the District in which the society is formed by a member of the committee of the society or by any person duly authorized by the committee in this behalf:

A **memorandum** specifying:-

a. The name of the society

b. The objects of the society

c. The names address and occupations of the members of the committee and the **by-laws** of the society

Memorandum and the bye-laws of the society shall be printed or typewritten. The memorandum shall be signed by **at least seven members** who shall add their address and occupation in the presence of at least one witness who shall attest the signatures.

The memorandum shall consist of the First Managing Committee. The office of the office bearers like President, Vice President, Secretary, Treasurer, should also be given. The first managing committee should be inclusive of the signatories to the Memorandum

**BYE LAWS of the society**

The by-laws shall be signed by the signatories to the memorandum

Bye laws are the Rules of the society and they shall contain the following matters:

- The name of the society
- The address of the registered office of the society
- The date of formation of the society
- Registrar of the district within those jurisdiction the office of the society is situated
- The business hours of the society
- The objectives of the society
- The activities of the society in furtherance of its objectives
- The post of the office bearer who can institute a legal action or can defend a legal action on behalf of the society may be mentioned
- The name of the persons or officer who is empowered to give direction in regard to the society
    - Enrolment of members
    - Qualification for membership, classification, restrictions and conditions if any thereof
    - The entrance and other fee or subscription if any to be collected from members
    - The dates prescribed for payment of the fees, subscription etc., specified above and levy of penalties or fine if any imposed on defaulting members.
- Removal of members, the circumstances under which members could be removed from the rolls and the procedure for such removal and appeal if any against such removal.
- Rights, obligations, and privileges of members
- The manner in which the society shall transact its business
- The constitution of the Managing committee, the qualifications of the members of the Managing committee, their term of office and the procedure of their appointment and reappointment their term of office Shall not exceed three years, but after three years they are eligible for re-appointment
- The preparation and filing with the concerned Registrars the audit and annual statements and reports
- The supply of copies of bye-laws the receipt and expenditure account and the balance sheet to the members

- Imposition of fine, if any for any breach of the provisions of the bye-laws
- The mode of custody application and investment of the funds of the society and the extent and conditions of such investment
- Arrangements for day to day business of the society
- Annual general meetings and the procedure there of
- The exhibition of the registers of members, the books containing minutes and the books of accounts at the registered office of the society during business hours
- Bye laws may also deal with such other matters incidental to the organization and working of the society and the management of its business as may be deemed necessary.

**Certificate of Registration**

The registrar on being satisfied that a society has complied with the provisions of this Act, and the rules made there under as to registration, shall issue to that society a certificate of registration and such certificate shall be conclusive evidence tht the society therein mentioned is duly registered, unless, it is proved that the registration of the society has been cancelled.

**Change of name of the society:**

Any registered society may, by special resolution and with the approval in writing of the registrar change its name

**Amendment of memorandum and bye laws:**

A registered society may by special resolution amend the provision of its memorandum relating to the objectives of the registered society as far as may be required

**Filing of special resolution**

The copy of the special resolution shall be filed with the Registrar within FIFTEEN days from the date of passing of such resolution.

**Notice of annual general meeting:**

Notice to general meeting of the society under shall be given to the members at least twenty one days before the day appointed for such meeting

**Dissolution and cancellation of registration**

If the society functions against the provisions and rules of the act the society shall be dissolved after making necessary steps by the registrar.

The registrar has the powers to cancel the registration at any time if the society found not fit or contravene to the provisions of the act.

## 5.6 TRUST ACT

**Trust - Introduction:**

A public charitable trust should be created only when one desires to make an endowment of property for perpetuity and the trustees' desire that this property be used only for particular charitable purposes with close control by the original trustees mentioned in the trust documents which is to be submitted during registration.

**Main Characteristics of Trust are:**

- Trusts are governed by Relevant state trust act
- Minimum of 2 persons are required to form a trust with no upper limit.
- Trust deed on non-judicial stamp paper worth some percentage of the value of the trust property (Stamp duty varies from state to state)
- Trust deed document contains the aims and objectives of forming the trust and the mode of management of the trust.
- The composition of the board changes mainly by appointment and not election.
- Modification of the objects laid down in the trust deed is difficult and only the trustees can modify them
- The charities commissioner has more power to intervene in the affairs of a trust than in a society
- Trust cannot be dissolved easily

### 5.6.1Registration process:

The documents to be submitted with the Local registrar:

- Trust Deed on stamp paper of the requisite value
- One passport size photograph & proof of identity of the trustees,
- One passport size photograph & proof of identity of each of the trustees,
- One passport size photograph & proof of identity of each of two witnesses
- Signature of trustees on all the pages of the Trust Deed

- Signatures of the two witnesses on the Trust Deed.
- The trustees & two witnesses are required to be personally present in Registrar office
- The Registrar retains the photocopy & returns the original registered copy of the Trust Deed

**Creation of Trusts**

**Lawful purpose.-**A trust may be created for any lawful purpose.-The purpose of a trust is lawful unless it is

(a) forbidden by law, or

(b) is of such a nature that, if permitted, it would defeat the provisions of any law, or

(c) is fraudulent, or

(d) involves or implies injury to the person or property of another, or

(e) the Court

Every trust of which the purpose is unlawful is void. And where a trust is created for two purposes, of which one is lawful and the other unlawful, and the two purposes cannot be separated, the whole trust is void.

Explanation.--In this section the expression "law" includes, where the trust-property is immoveable and situate in a foreign country, the law of such country.

**Illustrations**

(a) A conveys property to B in trust to apply the profits to the nurture of female foundlings to be trained up as prostitutes. The trust is void.

(b) A bequeaths property to B in trust to employ it in carrying on a smuggling business, and out of the profits thereof to support A's children. The trust is void.

(c) A, while in insolvent circumstances, transfers property to B in trust for A during his life, and after his death for B. A is declared an insolvent. The trust for A is invalid as against his creditors.

**Trust of immoveable property.-**No trust in relation to immoveable property is valid unless declared by a non-testamentary instrument in writing signed by the author of the trust or the trustee and registered, or by the will of the author of the trust or of the trustee.

Trust of moveable property.-No trust in relation to moveable property is valid unless declared as aforesaid, or unless the ownership of the property

is transferred to the trustee.

These rules do not apply where they would operate so as to effectuate a fraud.

**Creation of trust.-**Subject to the provisions of section 5, a trust is created when the author of the trust indicates with reasonable certainty by any words or acts (a) an intention on his part to create thereby a trust, (b) the purpose of the trust, (c) the beneficiary, and (d) the trust-property, and (unless the trust is declared by will or the author of the trust is himself to be the trustee) transfers the trust-property to the trustee.

**Illustrations**

(a) A bequeaths certain property to B, "having the fullest confidence that he will dispose of it for the benefit of" C. This creates a trust so far as regards A and C.

(b) A bequeaths certain property to B "hoping he will continue it in the family". This does not create a trust, as the beneficiary is not indicated with reasonable certainty.

(c) A bequeaths certain property to B, requesting him to distribute it among such members of C's family as B should think most deserving. This does not create a trust, for the beneficiaries are not indicated with reasonable certainty.

(d) A bequeaths certain property to B, desiring him to divide the bulk of it among C's children. This does not create a trust, for the trust-property is not indicated with sufficient certainty.

(e) A bequeaths a shop and stock-in-trade to B, on condition that he pays A's debts and legacy to C. This is a condition, not a trust for A's creditors and C.

**Who may create trusts**.-A trust may be created--

- by every person competent to contract, and,
- by or on behalf of a minor with the permission of a principal Civil Court of original jurisdiction, ; but subject in each case to the law for the time being in force as to the circumstances and extent in and to which the author of the trust may dispose of the trust-property.

**Who is a beneficiary**- Disclaimer by beneficiary.-Every person capable of holding property may be a beneficiary.

A proposed beneficiary may renounce his interest under the trust by disclaimer addressed to the trustee, or by setting up, with notice of the trust, a claim inconsistent therewith.

Who may be trustee.-Every person capable of holding property may be a trustee; but, where the trust involves the exercise of discretion, he cannot execute it unless he is competent to contract.

**Duties and Liabilities of Trustees**

Trustee to execute trust.-The trustee is bound to fulfill the purpose of the trust, and to obey the directions of the author of the trust given at the time of its creation, except as modified by the consent of all the beneficiaries being competent to contract.

Where the beneficiary is incompetent to contract, his consent may, for the purposes of this section, be given by a principal Civil Court of original jurisdiction.

Nothing in this section shall be deemed to require a trustee to obey any direction when to do so would be impracticable, illegal or manifestly injurious to the beneficiaries.

Explanation.--Unless a contrary intention be expressed, the purpose of a trust for the payment of debts shall be deemed to be (a) to pay only the debts of the author of the trust existing and recoverable at the date of the instrument of trust, or, when such instrument is a will, at the date of his death, and (b) in the case of debts not bearing interest, to make such payment without interest.

**Rights and Powers of Trustees**

**Right to title-deed**.-A trustee is entitled to have in his possession the instrument of trust and all the documents of title (if any) relating solely to the trust-property.

**Right to reimbursement of expenses**.-Every trustee may reimburse himself, or pay or discharge out of the trust-property, all expenses properly incurred in or about the execution of the trust, or the realization, preservation, or benefit of the trust-property, or the protection or support of the beneficiary.

If he pays such expenses out of his own pocket he has a first charge upon the trust-property for such expenses and interest thereon; but such charge (unless the expenses have been incurred with the sanction of a principal Civil Court of original jurisdiction) shall be enforced only by prohibiting any disposition of the trust-property without previous payment of such expenses and interest.

If the trust-property fail, the trustee is entitled to recover from the beneficiary personally on whose behalf he acted, and at whose request, expressed or implied, he made the payment, the amount of such expenses.

**Right to be recouped for erroneous over-payment.**

Where a trustee has by mistake made an over-payment to the beneficiary,

he may reimburse the trust-property out of the beneficiary's interest. If such interest fail, the trustee is entitled to recover from the beneficiary personally the amount of such over-payment.

**Right to indemnity from gainer by breach of trust.-**A person other than a trustee who has gained an advantage from a breach of trust must indemnify the trustee to the extent of the amount actually received by such person under the breach; and where he is a beneficiary the trustee has a charge on his interest for such amount.

Nothing in this section shall be deemed to entitle a trustee to be indemnified who has, in committing the breach of trust, been guilty of fraud.

**Right to apply to Court for opinion in management of trust-property.-** Any trustee may, without instituting a suit, apply by petition to a principal Civil Court of original jurisdiction for its opinion, advice or direction on any present questions respecting the management or administration of the trust-property other than questions of detail, difficulty or importance, not proper in the opinion of the Court for summary disposal.

A copy of such petition shall be served upon, and the hearing thereof may be attended by, such of the persons interested in the application as the Court thinks fit.

The trustee stating in good faith the facts in such petition and acting upon the opinion, advice or direction given by the Court shall be deemed, so far as regards his own responsibility, to have discharged his duty as such trustee in the subject-matter of the application.

The costs of every application under this section shall be in the discretion of the Court to which it is made.

**Right to settlement of accounts.-**When the duties of a trustee, as such, are completed, he is entitled to have the accounts of his administration of the trust-property examined and settled; and, where nothing is due to the beneficiary under the trust, to an acknowledgment in writing to that effect.

**General authority of trustee**.-In addition to the powers expressly conferred by this Act and by the instrument of trust, and subject to the restrictions, if any, contained in such instrument, and to the provisions of section a trustee may do all acts which are reasonable and proper for the realization, protection or benefit of the trust-property, and for the protection or support of a beneficiary who is not competent to contract.

Except with the permission of a principal Civil Court of original jurisdiction, no trustee shall lease trust-property for a term exceeding twenty-one years from the date of executing the lease, nor with-out reserving the best yearly rent that can be reasonably obtained.

**Power to sell in lots, and either by public auction or private contract.-** Where the trustee is empowered to sell any trust-property, he may sell the same subject to prior charges or not, and either together or in lots, by public auction or private contract, and either at one time or at several times, unless the instrument of trust otherwise directs.

**Power to sell under special conditions. Power to buy-in and re-sell.-**The trustee making any such sale may insert such reasonable stipulations either as to title or evidence of title, or otherwise, in any conditions of sale or contract for sale, as he thinks fit; and may also buy-in the property or any part thereof at any sale by auction, and rescind or vary any contract for sale, and re-sell the property so bought in, or as to which the contract is so rescinded, without being responsible to the beneficiary for any loss occasioned thereby.

**Rights And Liabilities of the Beneficiary**

**Rights to rents and profits**.-The beneficiary has, subject to the provisions of the instrument of trust, a right to the rents and profits of the trust-property.

**Right to specific execution**.-The beneficiary is entitled to have the intention of the author of the trust specifically executed to the extent of the beneficiary's interest ;

**Right to transfer of possession.**

Right to transfer of possession.-and, where there is only one beneficiary and he is competent to contract, or where there are several beneficiaries and they are competent to contract and all of one mind, he or they may require the trustee to transfer the trust-property to him or them, or to such person as he or they may direct.

When property has been transferred or bequeathed for the benefit of a married woman, so that she shall not have power to deprive herself of her beneficial interest, nothing in the second clause of this section applies to such property during her marriage.

**Vacating the Office of Trustee**

The office of a trustee is vacated by his death or by his discharge from his office.

Discharge of trustee.-The trustee may be discharged from his office only as follows:--

(a) by the extinction of the trust;

(b) by the completion of his duties under the trust;

(c) by such means as may be prescribed by the instrument of trust;

(d) by appointment under this Act of a new trustee in his place;

(e) by consent of himself and the beneficiary, or, where there are more beneficiaries than one, all the beneficiaries being competent to contract, or

(f) by the Court to which a petition for his discharge is presented under this Act.

**Petition to be discharged from trust.-**

Notwithstanding the provisions of section 11, every trustee may apply by petition to a principal Civil Court of original jurisdiction to be discharged from his office; and if the Court finds that there is sufficient reason for such discharge, it may discharge him accordingly, and direct his costs to be paid out of the trust-property. But where there is no such reason, the Court shall not discharge him, unless a proper person can be found to take his place.

**Appointment of new trustees on death, etc.-**

Whenever any person appointed a trustee disclaims, or any trustee, either original or substituted, dies, or is for a continuous period of six months absent from India, or leaves India for the purpose of residing abroad, or is declared an insolvent, or desires to be discharged from the trust, or refuses or becomes, in the opinion of a principal Civil Court of original jurisdiction, unfit or personally incapable to act in the trust, or accepts an inconsistent trust, a new trustee may be appointed in his place by--

(a) the person nominated for that purpose by the instrument or trust (if any), or

(b) if there be no such person, or no such person able and willing to act, the author of the trust if he be alive and competent to contract, or the surviving or continuing trustees or trustee for the time being, or legal representative of the last surviving and continuing trustee, or (with the consent of the Court) the retiring trustees, if they all retire simultaneously, or (with the like consent) the last retiring trustee.

Every such appointment shall be by writing under the hand of the person making it.

On an appointment of a new trustee the number of trustees may be increased.

The Official Trustee may, with his consent and by the order of the Court, be appointed under this section, in any case in which only one trustee is to be appointed and such trustee is to be the sole trustee.

The provisions of this section relative to a trustee who is dead include the case of a person nominated trustee in a will but dying before the testator, and those relative to a continuing trustee include a refusing or retiring

trustee if willing to act in the execution of the power.

**Appointment by Court**.-Whenever any such vacancy or disqualification occurs and it is found impracticable to appoint a new trustee under section 73, the beneficiary may, without instituting a suit, apply by petition to a principal Civil Court of original jurisdiction for the appointment of a trustee or a new trustee, and the Court may appoint a trustee or a new trustee accordingly.

**Rule for selecting new trustees:**

Rule for selecting new trustees.-In appointing new trustees, the Court shall have regard

- ✓ to the wishes of the author of the trust as expressed in or to be inferred from the instrument of trust;
- ✓ to the wishes of the person, if any, empowered to appoint new trustees;
- ✓ to the question whether the appointment will promote or impede the execution of the trust ; and
- ✓ where there are more beneficiaries than one, to the interests of all such beneficiaries.

**Vesting of trust-property in new trustees**.-Whenever any new trustee is appointed under section 73 or section 74, all the trust-property for the time being vested in the surviving or continuing trustees or trustee, or in the legal representative of any trustee, shall become vested in such new trustee, either solely or jointly with the surviving or continuing trustees or trustee.

**5.7 Office Bearers in Social Welfare Agencies Boards**

Almost all the Social Welfare Agencies do administered by Boards and Committees. Since these are Voluntary in nature it ought to have boards to manage themselves in order to attain the fullest participation of various stakeholders in a democratic way so as to bring ultimately social justice.

Social welfare is meant to promote the well being of all and hence it needs:

- ➢ Ensure public participation
- ➢ Administered by Boards and Committees
- ➢ All the social welfare agencies should work under board/committees
- ➢ Functions in a democratic way
- ➢ Traditional agencies even need to be administered through this way

- When there are group of person:
    - Joint thinking is possible
    - Avoid possible mistakes
    - The concept of Synergy
    - Principle of Democracy
    - Ensuring participation of various sections
    - Transparency in administration
    - Collective responsibility
    - Common interest leads to social and community interest
    - Supervision of work is effective
    - Public trust and promote confidence
    - Sharing of responsibility
    - Strengthen the Link between agency and community

### 5.7.1 Functions of Board

Boards are the legal and corporate existence of the organization it takes the responsibility in:

- Ensuring steady growth and development of the agency
- Promotes fund raising
- Overall supervision of the activity
- Public relation
- Ambassadors for the agency
- Eliciting the public participation, support and cooperation for programmes
- Inspiring the community confidence
- Interpreting the work of the agency to the community
- Represent the community to the organization
- Responsible for the Policy and objectives formulation and implementation
- Responsible for engaging the technical staff

- ❖ Effective co-ordination between department and agencies
- ❖ Participation in Evaluation and review.

**Basic Qualifications Required for Members**

- Genuine interest, care and concern for the community is the first and foremost qualification
- Basic education shall also be fixed by the respective agencies
- Experience related to the target group of the agency is an added advantage
- Ability to pay the membership fee
- Understanding and knowledge about the agency and community welfare
- Has some influence in the society
- Able to influence the public opinion
- Capacity to educate the community on common and social issues
- Participation ability and discussion with other
- Shall work along with the paid staff

**Code of Conduct**

- ✓ Accept membership if really interested
- ✓ Participate and attend meetings regularly
- ✓ Devote some of his time to the agency
- ✓ Accept responsibilities and carry out in time
- ✓ Prepared to share the responsibilities
- ✓ Act as a useful resource to the agency
- ✓ Accept decisions democratically taken
- ✓ Resign if find un-useful, incompetence and or in opposition

**5.8 Governing Body**

The governing body consists of:

i. GENERAL BODY

ii. MANAGING COMMITTEE / EXECUTIVE COMMITTEE

iii. OFFICE BEARERS

iv. EXECUTIVE AND STAFF

v. VOLUNTEERS

**General Body**

- The social welfare agency provide an opportunity to the general public to join hand with the agency to strengthen and execute the work for the community
- This ensures the participation, cooperation and understanding of the common issues and problems.
- The individuals those who are interested basically on the community and its development could be admitted as General Body members
- Each agency in its memorandum clearly spelt out the criteria for members, fees, duties, rights, obligations, etc.,

**Functions of General Body:**

- Policy making and legislative functions
- Control over raising and utilizing funds
- Election of office bearers
- Approval of annual budget
- Appointing auditors
- Considering the annual report
- Reviewing and adopting auditing reports
- Considering to changes in the constitutions, policy, programmes budgeting and accounting.

**Officers of the Board**

1. President
2. Vice-president
3. Secretary
4. joint secretary
5. Treasurer
6. Chief Executive / Director / organizing secretary

7. auditors

**President**

**Duties and Functions**

- Presiding over the meetings of the General Body
- Helps in Selection and nomination of members
- Coordinates various committees
- Arranges to convene the meeting
- Directs preparation and circulation of agendas and minutes of the meeting
- Ensures the participation of the meeting by all members
- Assigning the jobs and responsibilities to various Committees
- Helps members to clearly understand the subject
- Takes initiatives in appointing the Chief Executive
- Supervises the work of the Executive
- Receives the periodical report and reviews it
- Coordinates and supervises working of various departments and sections
- With the help of the Treasurer and Executive promotes Funding position
- Helps in Fund raising
- Ensures the proper utilization of Funds raised
- Operates the band account along with the Treasurer or Executive or Secretary

**Vice President**

- In the absence of the President; Vice President will act as the President
- Any other responsibilities assigned by the President

**Secretary**

**Duties and Functions**

- Preparation of Agenda along with the President

- ❖ Preparation of the Minutes of the meeting along with the President
- ❖ Provide healthy atmosphere for meeting
- ❖ Invite the members for the meeting
- ❖ Place all documents and reports to the Board, Committees and General Body
- ❖ Assist in Business and day to day functioning of the organization
- ❖ Member of all the Committees and Sub-Committees as Ex-Officio
- ❖ Executes all the decision of the Board
- ❖ Conducts all the correspondence
- ❖ Legal officer to sue and to be sued on behalf of the organization
- ❖ Maintaining the office
- ❖ Supervises the work of the staff
- ❖ Reporting the progress to the Board and General Body
- ❖ Supervises accounts day to day
- ❖ Operates the bank account along with Treasurer or President
- ❖ Acts as a Liaison officer or the Public Relation Officer for the agency
- ❖ Custodian of all the documents reports, files and account statements
- ❖ Identification of Volunteers
- ❖ Selection, orientation and assigning duty to Volunteers
- ❖ Link between the Board/Committee General Body and Executive

**Joint secretary**

**Duties and Functions**

- ➢ In the absence of the Secretary; Joint Secretary will act as the Secretary
- ➢ Any other responsibilities assigned by the Secretary

**Treasurer**

- Responsible for Financial matters
- Maintains bank account along with President or Secretary

- Preparation of Budget
- Supervising the day to day accounts maintenance
- Regulating and supervising the fund raising
- Operating the accounts
- Sectioning the expenses upon production of bills and vouchers
- Acts as a Chairman of Finance Committee
- Arranges and helps in auditing the accounts
- Maintains bills, vouchers, receipts, disbursements, etc.,

**Members of Board / Committee**

- ✓ As corporate body
- ✓ Assisting the office bearers to carryout the responsibilities
- ✓ Serving in different committees, sub-committees
- ✓ Supervision of day to day work in certain departments and sections
- ✓ Also act as members in amendment and constitution committees
- ✓ Joins in Fund raising campaign
- ✓ Maintenance of accounts and audit
- ✓ Purchase of equipments, tools, construction, repair of buildings
- ✓ PRO work, Liaison work with community members and general public
- ✓ In-charge of sections and departments
- ✓ Assisting Secretary or Treasurer in their work
- ✓ Participating in the General meetings, election, annual meetings, concurrent audit, visits,
- ✓ Memberships in various sub-committees

**5.9 Committees**

A body of persons appointed or elected to consider, investigate or take actions upon and usually to report concerning some matter or business or by a court, legislative body. The responsibilities may further be divided based on the need; into sub-committees to do a particular task.

Examples : Standing committee, Advisory committee, Executive committee, Finance committee, special committee, cultural committee, Legal committee, building committee, fund raising committee, Evaluation committee etc.,

**5.10 Check your progress**

What do you mean by Memorandum

Discuss the provisions of Trust Act in detail

Elaborate the roles of President in a society

**5.11Summary**

Any society which has for its object the promotion of education, literature, science, religion, charity, social reform, art, craft, cottage industries, athletics, sports, recreation, public health, social service, cultural activities, the diffusion of useful knowledge or such other useful object with respect to which the state legislature has power to make laws and function on its own for the humanity.

**5.12 Key words**

Societies, trusts, governing board, committees, executives

**5.13 Self Assessment Questions**

What are the roles of Society and trust

List down the items incorporated under Bye-laws

Enumerate the major provisions of FCRA

Mention the various functions of committees

Sketch the important provisions of Tamilnadu societies act and its rules

How important the General body and governing board for an organization

**5.14 Further Readings**

Christopher, A.J. & Thomas William, A., 2006, Community Organisation and Social Action, Himala Publishers, Mumbay

Chowdhry, D.Paul, 1992, Social Welfare Administration, Atmaram & sons, New Delhi

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbay

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London

# Unit VI

## 6.1 Structure – Contents of the unit

Social policy: Definition, need, evolution and constitutional base, sources and instrument of social policy

## 6.2 Objectives

To study the meaning and importance of social policy

To understand the evolution of social policy

To analyse the various sources of social policy

# SOCIAL POLICY

## 6.3 INTRODUCTION

**Social policy** primarily refers to guidelines and interventions for the changing, maintenance or creation of living conditions that are conducive to human welfare. Thus, social policy is that part of public policy that has to do with social issues and needs. Social Policy is also distinct as an academic field which focuses on the systematic evaluation of societies' responses to social need.

**Social policy** is describing the aims and objectives and the goals to be achieved for the welfare of the clientele concerned target groups through various community based interventions and programmes.

Social policy aims to improve human welfare and to meet human needs for education, health, housing and social security. Social policies will be approached in vastly different ways depending on the ideological leanings of the governing power. Important areas of social policy are:

- Women
- Children
- Youth
- Farmers
- Differently Abled

### 6.3.1 Definitions of Social Policy

- "Social policy is all about social purposes and the choices between them. The choices and the conflicts between them have continuously to be made at the government level, the community level and the individual level.

- Social policy endeavors to increase the welfare of community; viz., insure just treatment of individuals, provide resources to those who, due to an inability to earn income, are unable to meet their own needs, and reduce or, if possible, eliminate social inequalities through redistribution. Social policy in its broadest dimensions encompasses many areas: social welfare, health care, justice and corrections, culture, broadcasting and the arts, and native people, to name a few.

- "Social policy is a broad term encompassing not only social welfare but other activities of government affecting social life. Marriage and divorce legislation and support to culture and the arts are examples of social policy that lie beyond the field of social welfare. The term is also linked with 'economic policy'. In this sense, it usually contrasts a concern for people with a concern for economic issues and growth.

Shakar Yelaja identifies four key assumptions implicit in social policy.

- The government has responsibility to meet the needs of the less fortunate members of society.

- The state has a right to intervene in areas of individual freedom and economic liberty.

- Governmental and/or public intervention is necessary when existing social institutions fail to fulfill their obligations.

- Public policies create social impacts, the consequences of which become the moral obligation of some group to act upon

**6.4 Need for social policy**

Many of the most expensive functions carried out by the state in advanced capitalist societies are associated with social policy. These functions include public education, health-care services, publicly subsidized housing, and the provision of various forms of income support to such segments of the population as the unemployed, the aged, and the disabled. Together they comprise that dimension of state activity conventionally labelled the welfare state. The welfare state is generally understood to encompass state interference with the operation of market forces in order to protect or promote the material well-being of individuals, families or groups on grounds of fairness, compassion, or justice.

Social policy is essentially a response to inequality. Indeed, the cornerstone of the welfare state is payments made to individuals and families in financial need. Their need may be temporary, related to fluctuations in the economy, to declining demand for their particular skills, or to a stage in an individual's life cycle (e.g., maternity leave, retirement). Or their need may be chronic, as in the case of those whose employment incomes are insufficient to maintain what the state has determined to be a socially acceptable standard of living. These payments are usually assumed to be

redistributive- transferring money from those who can afford to pay to those who are in need

### 6.5 Social Policy Evolution

Independent India's commitment to democratic politics meant that its polity had to grapple with the harsh reality of India's poverty: the sheer number of the poor (who were also now voters), the intensity of poverty and destitution and a deeply stratified and hierarchical society. Addressing the needs of vulnerable and marginalized groups in society has preoccupied the energies of intellectuals and policy makers and a focus of political rhetoric in India to a degree that is uncommon among developing countries. Yet, India's record on this count has been decidedly modest notwithstanding the gargantuan scale of the problem in that country.

Major thrust of social policy schemes has been to provide food security with the additional intent of increasing agricultural output. In this case however, the focus is on guaranteeing a minimum support price (MSP) for particular agricultural products, especially grains (wheat and rice), purchasing, storing and transporting the food grains by a government intermediary and then releasing a part of it at subsidized rates to families below the poverty line (BPL) through the public distribution system (PDS).

The subsidy accrues to grain producers (confined mainly to the North Western states of Punjab, Haryana and Western UP, and the Southern state of Andhra Pradesh where the procurement takes place and where consequently the support is more effective) and the agency in charge of the logistics of grain procurement, storage and distribution. A part eventually reaches BPL households through the PDS though its targeting performance has been commented upon adversely even in many government reports.

The food subsidy is the most expensive of the government schemes, costing the government about Rs. 250 billion (approximately $6 billion) in 2003-04 (more than half of all explicit subsidies of the central government).3 The other large item in this set, targeted to the same group, is the fertilizer subsidy, which tries to moderate the price of fertilizers to the farmer.

A second set of policies has focused on augmenting incomes of the rural poor through a variety of job creation programs. The largest and most vulnerable group in India is rural landless labour. Lacking assets, it has little bargaining power and is particularly vulnerable to the vagaries of agricultural output. Over the years large resources – administrative, financial and intellectual – have been deployed on employment programs through public works.

While these vary in the nature of payment, type of work, number of days of work, etc… it must be emphasized that the really poor in India do not have the option of remaining unemployed and therefore these public works schemes can benefit only to the extent the wages paid to these workers on the public works projects are higher than what they could earn elsewhere

and the knock-on effects of increasing wages in the non-public works labour market as a result of the general increase in demand for labour.

A third set of policies has focused on augmenting incomes through asset redistribution. Although land reform has been on the agenda since independence, there has been only limited land redistribution in part because such efforts were sabotaged by extant rural elites, but also because India simply did not have the sorts of massive landholdings as in Latin America, Pakistan or Philippines. In general legislation aimed at land ceilings and land consolidation has had little impact on poverty while legislation targeting tenancy reform and abolition of intermediaries has had a more positive impact by improving tenants' claims on the returns from land.

The limited scope (and political intransigence) of land reforms has led the Indian state to try other measures to augment incomes through asset redistribution. To this end a flagship anti-poverty program was created in the 1970s, called the Integrated Rural Development Program (IRDP). This program has been recreated in different forms since then, including schemes to make entrepreneurs of the poor through schemes such as TRYSEM (Training of Rural Youth for Self-Employment), which provide training and a toolkit, and most recently as a self-employment scheme (the Swarnajayanti Grameen Swarozgar Yojana (SGSY), or Golden Jubilee Rural Self Employment Scheme).

The basic idea in these programs is to transfer a productive asset to the target population. However, they have chronically underestimated the barriers facing the poor in participating in the market place, managing an enterprise, or the costs of insuring the very asset (e.g. milk cattle) supposed to provide a livelihood. As we will note later, the Indian state's attempts to provide targeted benefits to the poor has been severely hampered by its inability to provide generic skills through mass education and literacy. Consequently the initial beneficiary was soon separated from his/her asset defeating the very purpose of the scheme.

### 6.5.1Typology of Social Policy

The efforts by the state have encompassed a wide range of domains and instruments. Traditional Keynesian wage and price policies have limited utility in a country like India where more than 90 percent of the labour force is outside the formal sector institutionalized wage bargaining in the organized sector. Monetary policy has been relative conservative largely because of the risk aversion towards inflation since a very large number of voters are poor, and inflation inevitably acts like a regressive tax. However, the Indian state has been a fervent user of controls – on prices of products and services, trade, industrial licensing, location and bankruptcy, foreign exchange, etc… - which more than often resulted in massive rationing and the development of parallel "black" markets. While many of these have been abolished after 1991, controls continue to flourish at the state and local level.

Modern government is based on a social contract between citizens and the state in which rights and duties are agreed to by all to further the common interest. Citizens lend their support to a government through taxes and efforts to a country's good; in return, governments acquire legitimacy by protecting the people's rights and through public policies that benefit all.

### 6.6 Constitutional base

Under Article 340 of the Indian Constitution, it is obligatory for the government to promote the welfare of the Other Backward Classes (OBC). Article 340(1) states, " The president may by order appoint a commission, consisting of such persons as he thinks, fit to investigate the conditions of socially and educationally backward classes within the territory of India and the difficulties under which they labour and to make recommendations as to the steps that should be taken by the union or any state to remove such difficulties and as to improve 'their condition and as to the grants that should be made, and the order appointing such commission shall define the procedure to be followed by the commission."

Article 340(2) states, "A commission so appointed shall investigate the matters referred to them and present to the president a report setting out the facts as found by them and making such recommendations as they think proper."

The Constitution (Ninety-Third Amendment) Act, 2005 does not violate the "basic structure" of the Constitution so far as it relates to the state maintained institutions and aided educational institutions. Question whether the Constitution (Ninety-Third Amendment) Act, 2005 would be constitutionally valid or not so far as "private unaided" educational institutions are concerned, is left open to be decided in an appropriate case.

The Parliament should fix a deadline by which time free and compulsory education will have reached every child. This must be done within six months, as the right to free and compulsory education is perhaps the most important of all the fundamental rights (Art.21 A). For without education, it becomes extremely difficult to exercise other fundamental rights.

If material is shown to the Central Government that the Institution deserves to be included in the Schedule (institutes which are excluded from reservations) of The Central Educational Institutions (Reservation in Admission) Act, 2006 (No. 5 of 2007), the Central Government must take an appropriate decision on the basis of materials placed and on examining the concerned issues as to whether Institution deserves to be included in the Schedule of the said act as provided in Sec 4 of the said act.

### Right to Livelihood

Article 21 of the Constitution states that no person may be deprived of his life and liberty except according to the procedure established by law. This implies that generally every citizen has a right to life and the State has a

duty to protect it. The Supreme Court expanded the scope of this right to include the right to livelihood. The Court held that no person can live without a means of livelihood and depriving him of livelihood would amount to depriving him of his life.

The Supreme Court has declared that the right to life guaranteed by Article 21 of the Constitution includes the right to livelihood. Article 39 (a) directs the State to frame policies that will secure the right to an adequate means of livelihood for men and women equally. Similarly Article 46 directs the State to promote the economic and educational interests of the SCs and STs and protect them from social injustice and exploitation.

Clause 4 or Article 16 is just an enabling provision which allows the government to create reservations for other backward classes if the government is of the opinion that they are not adequately represented in public services.

At present there is no explicit mention of SC/ST welfare and development in the responsibilities of either the central government or the state governments. Should 'Development, welfare and protection of SCs and STs be made part of the subject matter of the Concurrent List (List III).

There seems to be a misunderstanding in the original question as clause 4 of Article 16 does not contain the word 'permissibly'. The entire clause reads as follows- "Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which in the opinion of the State is not adequately represented in the services under the State."

Both Parliament and State legislatures can make laws on the subjects enumerated in the Concurrent List. According to Article 254 if there is a contradiction between the State and Central laws on a subject belonging to the Concurrent List then the law passed by Parliament will prevail. However the contradictory provision in the State law may become valid only if the Bill receives the assent of the President.

There is no constitutional provision for reservation based on numerical quotas in public services. Articles 330 and 332 require that seats should be reserved for SCs and STs in the Lok Sabha and the Legislative Assemblies in the states in proportion to their population percentage. As SCs and STs roughly constituted 22.5% of the population; about 120 seats have been reserved for them in the Lok Sabha. Similarly the figures for legislative assemblies correspond to the SC/ST population percentage in the states. Though the constitution did not mention a numerical criterion for job reservations, the government has followed the same principle as that of the electoral arrangements. The judiciary and the armed forces are excluded from the purview of this policy.

### 6.7 Sources of Social Policy

Policy making is often captured by powerful groups and elites, making government policies biased and unaccountable to the majority of citizens.

With half the world's population living below the two-dollar –a day poverty line, ineffective social policies can be the spark for state breakdown. Lack of opportunity, authoritarian rule, gross inequity, exclusion and deprivation – all increase the likelihood of a state's de-legitimization and withdrawal of its citizens' support, leading to social disintegration, conflict, and violence.

Social policy is an instrument applied by governments to regulate and supplement market institutions and social structures. Social policy is often defined as social services such as education, health, employment, and social security. However, social policy is also about redistribution, protection and social justice.

Social policy is about bringing people into the centre of policy-making, not by providing residual welfare, but by mainstreaming their needs and voice across sectors, generating stability and social cohesion. Social policy is also instrumental in that governments use it pragmatically to secure the political support of citizens, and to promote positive economic outcomes by enhancing human capital and productive employment.

Social policies can also create a virtuous circle linking human and economic development that, in the long run, will benefit everybody by boosting domestic demand and creating stable cohesive societies. This Policy Note seeks to promote inclusive social policies. It highlights opportunities to enhance equity, and concentrates on selected social policies crucial to the preparation of inclusive National Development Strategies. The first section provides a historical perspective on the application of social policy and the arguments for investing in inclusive social development. The following sections concentrate on how to draft National Social Development Strategies. The final part discusses selected social policy priorities on employment, education, health, social protection, culture and conflict prevention. References and essential supporting documentation are provided in the References section at the end.

First, a key reason for the poor performance of social programs in India is the structural weakness of local administration. No matter how well programs are designed and funded, in the end they all have to pass through the eye of the needle, namely local public administration. The Achilles heel of all such programs is implementation, which is at the hands of local public officials.

Second, this weakness of local governments in India is due to the increasing centralization at the state level (level two of government). With most Indian states larger than many countries, this has serious consequences. Social policy is increasingly funded at one level of government (the federal); implemented by another (local), which in turn is controlled by a third level of government, namely state governments. Controlling local governments is only way that state governments get a piece of the action.

Third, the Central government, recognising this, has begun to include the increase in capacity of local governance as a design component of new Central Sector Schemes. Prominent among these are the National Rural Employment Guarantee Scheme, which envisages a strong role for Gram Panchayats (village governments) and Gram Sabhas (village assemblies) in implementation and the Jawaharlal Nehru National Urban Renewal Mission that attempts something similar at the level of urban local governments.

Finally, it is our contention that this is unlikely to be sustainable and produce long-lasting results unless a strong demand for effective services is strongly articulated through the political system, which is necessary to bring in accountability into the government delivery system.

The evidence of the lack of accountability of government functionaries in implementing these schemes is overwhelming. The Indian state is unable to discipline its employees, take action against the corrupt ones, or reduce their numbers or make changes in their service conditions leading to declining standards of performance and integrity among field officials, and with it the ability to deliver. Normally we would expect voters to punish politicians for poor performance leading to retrospective accountability, spurring the latter to demand better performance from the bureaucracy (and prospective accountability). But this does not seem to occur in the Indian case. Given the extent of deprivation and the strong participation of India's poor in elections this appears puzzling.

As a result the political space is not seen as an arena for competing economic demands, but rather as a means to express a particular conception of identity. This is amplified by the iniquitousness of clienteles politics, with votes viewed as a transaction with a specific quid pro quo, and which reduces the incentives for politicians to press for programmatic policies. Politicians perceive little correlation between the successful delivery of social programmes and electoral success, which locks all players into a low level equilibrium.

Such articulation of demand for accountability will most likely be localised at the beginning and both the intensity of utterance and the places of expression are uncertain. However, its inevitability makes it incumbent on us to build expertise on institutional mechanisms of service delivery that would ensure that the poor have access to these services. When the demand for services is articulated, the supply must not be found wanting

The positive question therefore is what kinds of public policy interventions will reinforce the articulation of demand from voters and the consequent increase in accountability. For example, will the recently passed Right to Information Act bring forth the stark difference between expenditures undertaken in the name of the poor and the limited benefits to the poor from such expenditure, and if so, will this foster a demand for greater accountability from the delivery system? There are indications that changes are in the offing, albeit slowly. Civil society actors, which have been pressing for delivery of social services, are becoming active in electoral periods.

The concept of policy instruments comes from recent literature on public on public policy. Policy instruments can be defined as strategies and resources employed by governments to facilitate designated ends and goals *vis-à-vis* target populations. The central idea behind theory on policy instruments is that governments can act through different instruments to achieve particular goals, and that the instruments chosen are important because they usually involve significantly different policy-making processes and produce different effects (Woodside 1986; Peters & van Nispen 2001).

### 6.8 Instruments of Social Policy

Different instruments for strengthening research commercialization capacity, for example, include provision of information, persuasion and advocacy, economic incentives and disincentives (including subsidies, pricing structures and taxation concessions or charges), government provision or public ownership of facilities (such as establishment of new research centers or commercialization agencies), and regulation (such as through legislation relating to intellectual property).

Some of the least understood instruments for encouraging R&D and commercialization in Australia are taxation concessions such as the 125% deduction for R&D expenditure. Not surprisingly, many students of policy instruments treat taxation and taxation deductions as separate instruments to other kinds of financial instruments (Woodside 1986; Fenna 1998).

Key considerations with regard to policy instruments are the degree to which coercion versus incentives are used. Over three decades ago, Lowi (1972) emphasized the importance of differentiating between different instruments on the basis on whether coercion is remote or immediate, and whether or not policy seeks to control individual behaviour directly or through the environment.

Building on a long tradition of work on coercion, Howlett and Ramesh (1995) distinguish three types of instruments based on the degree of coercion: voluntary instruments using persuasion and advocacy; mixed instruments using information, exhortation, subsidies, taxes and user charges based on a greater role for the state; and compulsory instruments including regulation, public provision and direct provision of services. In recent years, as the Canadians Atkinson and Nigol (1989) note, "governments, under pressure to restrain expenditures, have sought to employ less obtrusive means of intervention" and that "politicians prefer to use the least coercive instruments possible".

Bridgman and Davis (2000) suggest useful criteria for selection of suitable policy instruments for particular circumstances:

- Appropriateness (is this a reasonable way for proceeding in this policy area?),
- Efficiency (will this instrument be cost-effective?),

- Effectiveness (can this instrument get the job done?),.
- Equity (are the likely consequences fair?), and
- Workability (is the instrument simple and robust, and can it be implemented?).

**Policies and year of adaptation:**

- National Population Policy of 1976 and 2000.
- National Policy for Children of 2001 and 2004.
- National Policy for Employment of Women, 2001.
- National Youth Policy, 2003.
- National Policy for the Older Persons, 1999.
- National Policy for Persons with Disabilities, 2006.
- National Water Policies, 2002
- National policy of education, 1968 and 1986.
- National environment policy, 2006.
- National urban housing and habitat policy, 2007.
- National policy on voluntary sector, 2007.

## 6.9 Check your progress

- List down the sources of social policy and how instruments are strengthened
- Mention the constitutional provisions and legislations pertaining to children
- How to safeguard minority communities
- List down the name of the various policies and the year of establishment

## 6.10 Summary

Social policy is the general term given to government programs that are designed to provide people, especially low-income families, with the necessities of life, including food, health support, and educational and employment training opportunities. Specifically, they are aimed to help the working poor better their circumstances, by providing for their health, income, security, employment, and educational needs.

## 6.11 Key words

Social policy: Definition, need, evolution and constitutional base, sources and instrument of social policy

## 6.12 Self Assessment Questions

- Discuss the policies regarding Backward classes
- How to promote the welfare of women and children through various programmes
- Explain the various welfare programmes of children and women under the Government of Tamilnadu
- Describe the dimensions and typology of social policy
- Sketch the social conditions of Scheduled caste and Scheduled tribes

## 6.13 Further Readings

Donnisson, D. & Chapman, Valeris: Social policy and Administration, George Allen and Unpin, London

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbay

Gangrada K.D., Social Legislation in India

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

Constitution of India, 1991, Govt. of India

# Unit VII

## 7.1Structure – Contents of the unit

Social policies regarding other backward castes (OBCs) Scheduled castes(SCs), Scheduled tribes (STs) and de-notified communities

## 7.2 Objectives

To analyze the Social policies regarding other backward castes (OBCs)

To understand the social policy regarding Scheduled castes(SCs), Scheduled

To familiarize with the policy for de-notified communities

**Social Policies Regarding Other Backward Classes (obc)**

### 7.3 Introduction

The Government of India classifies its citizens based on their social and economic condition as Scheduled Caste, Scheduled Tribe and **Other Backward Class (OBC)**. The OBC list presented by the commission is dynamic (castes and communities can be added or removed) and will change from time to time depending on Social, Educational and Economic factors. For example, the OBCs are entitled to 27% reservations in public sector employment and higher education. In the constitution, OBCs are described as "socially and educationally backward classes", and government is enjoined to ensure their social and educational development.

Until 1985, the affairs of Backward Classes were looked after by the Backward Classes Cell (BCC) in the Ministry of Home Affairs. With the creation of a separate Ministry of Welfare in 1985 (renamed as Ministry of Social Justice and Empowerment on 25 May 1998) the matters relating to Scheduled Castes, Scheduled Tribes, Other Backward Classes (OBCs) and Minorities were transferred to the new Ministry.

**First Backward Classes commission -** *Kalelkar Commission*

The First Backward Classes Commission was set up by a presidential order on January 29, 1953 under the chairmanship of Kaka Kalelkar. The commission submitted its report on March 30, 1955. It had prepared a list of 2,399 backward castes or communities for the entire country and of which 837 had been classified as the "most backward". Some of the most notable recommendations of the commission were:

- Undertaking caste-wise enumeration of population in the census of 1961;
- Relating social backwardness of a class to its low position in the traditional caste hierarchy of Indian society;

- Treating all women as a class as "backward";
- Reservation of 70 per cent seats in all technical and professional institutions for qualified students of backward classes.
- Reservation of vacancies in all government services and local bodies for other backward classes.

The commission in its final report recommended "caste as the criteria" to determine backwardness. But this report was not accepted by the government as it feared that the backward classes excluded from the caste and communities selected by the commission may not be considered and the really needy would be swamped by the multitude and would hardly receive special attention.

**7.3.1 Mandal commission -** *Mandal Commission*

The decision to set up a second backward classes commission was made official by the president on January 1, 1979. The commission popularly known as the Mandal Commission, its chairman being B. P. Mandal. It submitted the report in December 1980.The recommendations of the commission were: The population of OBCs which includes both Hindus and non-Hindus is around 52 per cent of the total population according to the Mandal Commission.

The general recommendation the commission proposed the following over-all scheme of reservation for OBC:

- Candidates belonging to OBC recruited on the basis of merit in an open competition should not be adjusted against their reservation quota of 27 per cent.
- The above reservation should also be made applicable to promotion quota at all levels.
- Reserved quota remaining unfilled should be carried forward for a period of three years and de-reserved thereafter.
- Relaxation in the upper age limit for direct recruitment should be extended to the candidates of OBC in the same manner as done in the case of SCs and STs.
- A roster system for each category of posts should be adopted by the concerned authorities in the same manner as presently done in respect of SC and ST candidates.

These recommendations in total are applicable to all recruitment to public sector undertakings both under the central and state governments, as also to nationalized banks. All private sector undertakings which have received financial assistance from the government in one form or other should also be obliged to recruit personnel on the aforesaid basis. All universities and affiliated colleges should also be covered by the above scheme of

reservation. Although education is considered an important factor to bring a desired social change, "educational reform" was not within the terms of reference of this commission.

To promote literacy the following measures were suggested:

- An intensive time-bound programme for adult education should be launched in selected pockets with high concentration of OBC population;
- Residential schools should be set up in these areas for backward class students to provide a climate specially conducive to serious studies. All facilities in these schools including board and lodging should be provided free of cost to attract students from poor and backward homes;
- Separate hostels for OBC students with above facilities will have to be provided;
- Vocational training was considered imperative.
- It was recommended that seats should be reserved for OBC students in all scientific, technical and professional institutions run by the central as well as state governments. The quantum of reservation should be the same as in the government services, i e, 27 per cent.

**Backward class** people is a collective term, used by the Government of India, for castes which are economically and socially disadvantaged and face, or may have faced discrimination on account of birth. Most of them do not have any land ownership or economic independence and are dependent on Forward Castes for employment, mostly as farm hands or menial labour; or derive income from self employment on caste-dependent skills assignment.

They typically include the Dalits, the Scheduled castes, and the Other Backward Classes (OBCs). They live mainly in rural India and perform hard physical labour such as agriculture and janitorial work. Backward Castes constitute around 50% of the Indian population. Even though they have a rich culture, many live below the poverty line. According to estimates from the Indian government's National Sample Survey, in 1999-2000 44% of Scheduled Tribes and 35% of Scheduled Castes lived in poverty. Their plight is regarded as a serious issue in Indian society.

**Supreme Court interim stay**

On 29 March 2007, the Supreme Court of India, as an interim measure, stayed the law providing for 27 percent reservation for Other Backward Classes in educational institutions like IITs and IIMs. This was done in response to a public interest litigation — Ashoka Kumar Thakur vs. Union of India. The Court held that the 1931 census could not be a determinative factor for identifying the OBCs for the purpose of providing reservation.

The court also observed, "Reservation cannot be permanent and appear to perpetuate backwardness".

**Supreme Court verdict**

The Supreme Court of India on April 10, 2008, upheld the Government's move for initiating 27% OBC quotas in Government funded institutions. The Court has categorically reiterated its prior stand that "Creamy layer" should be excluded from the ambit of reservation policy and private institutions are also not to be included in. The verdict produced mixed reactions from supporting and opposing quarters. Several criteria to identify creamy layer has been recommended, which are as follows:

Those with family income above Rs 250,000 a year (Now Rs 450,000 a year) should be in creamy layer, and excluded from the reservation quota. Also, children of doctors, engineers, chartered accountants, actors, consultants, media professionals, writers, bureaucrats, defense officers of colonel and equivalent rank or higher, high court and Supreme Court judges, all central and state government Class A and B officials. The court has requested Parliament to exclude MPs' and MLAs' children, too.

"Creamy layer" principle is one of the parameters to identify backward classes. Therefore, principally, the "Creamy layer" principle cannot be applied to STs and SCs, as SCs and STs are separate classes by themselves.

Preferably there should be a review after ten years to take note of the change of circumstances. A mere graduation (not technical graduation) or professional deemed to be educationally forward.

**Principle of exclusion of Creamy layer applicable to OBC's.**

The Central Government shall examine as to the desirability of fixing a cut off marks in respect of the candidates belonging to the Other Backward Classes (OBCs)to balance reservation with other societal interests and to maintain standards of excellence. This would ensure quality and merit would not suffer. If any seats remain vacant after adopting such norms they shall be filled up by candidates from general categories.

The determination of backward classes is concerned, a Notification should be issued by the Union of India. This can be done only after exclusion of the creamy layer for which necessary data must be obtained by the Central Government from the State Governments and Union Territories. Such Notification is open to challenge on the ground of wrongful exclusion or inclusion. Norms must be fixed keeping in view the peculiar features in different States and Union Territories. There has to be proper identification of Other Backward Classes (OBCs.). For identifying backward classes, the Commission set up pursuant to the directions of this Court in Indra Sawhney has to work more effectively and not merely decide applications for inclusion or exclusion of castes.

## 7.4 Policies Regarding SC & ST

### Deplorable Conditions of SC's and ST's

It is pathetic to observe that despite abolishing untouchability, prejudice against SCs and STs persists in some form or the other - be it overt, covert or subtle in expression. "Whatever has been done in this regard has been done hesitatingly half-heartedly and as a measure of concession forgetting that this relates to their Constitutional rights and not concession to them. More and more Dalits and Adivasis are becoming landless and are joining the ranks of agricultural labourers. Ensuring Human Dignity - Eliminating Untouchability and Prevention of Atrocities

There are practices like social and economic boycott and social and economic blackmail imposed upon SCs and STs by the upper castes.Under the present law if a person is held likely to commit an atrocity against a tribal he can be removed from that place for up to 2 years. This possibility of removing a person from a place is only available in areas that are named as Scheduled or Tribal areas.

### Strengthening Constitutional Provisions

Article 46 of the Constitution directs the State to promote the educational and economic interests of the SCs, STs and other weaker sections of society and protect them from social injustice and all forms of exploitation.

It shall be the right of the weaker sections of the people and in particular of the SC and ST that the State and all institutions of or created/promoted/assisted by the State shall at all times function fully and totally in accordance with this right.

The constitutional provision exists only in the form of a directive principle that should guide policy and law making and the administrative decisions of the State, citizens cannot move a court of law claiming that the State is not doing enough to promote the well being of SCs and STs. If it were to become a fundamental right then SCs and STs could approach the High Court or the Supreme Court and challenge the State for not doing its duty.

### Representation in Public Services

Despite several constitutional provisions, the representation of SCs and STs in government services has not improved substantially during the last five decades. In order to promote their socio-economic interests, the Government of India has provided reservation in jobs to the extent of 15% for SCs and 7.5% for STs. These figures roughly correspond to their population percentage. However there is no law made by Parliament governing job quotas for SCs and STs. Apart from constitutional guarantees the sole basis for reservations is the executive orders and departmental instructions issued from time to time by the Department of Personnel and Training (DPT).

During the last five decades the proportion of SCs and STs has gone up to some extent only in Group C and Group D services and not in the higher bureaucracy. Due to reservation an SC/ST candidate is promoted and later a person from the general category is promoted into the same grade, the SC/ST candidate loses his edge and is treated on par with the general candidate who now has the same seniority.12 But where there are two non SC/ST candidates seniority between them is based on -among other things - the date of their promotion;

Where there is only one post available in a grade or category then that post cannot be reserved at all for an SC/ST but automatically falls into the general quota. Subsequently the DPT issued several memos to implement the orders of the Supreme Court. The paper notes that there is a complaint that the government has gone beyond the mandate of the Supreme Court while amending promotion rules - to the disadvantage of SC/STs.

**Backlog Vacancies**

Until 1997, jobs reserved for SCs and STs could not be filled up by recruiting general candidates if suitable SCs and STs were not available. These vacancies were termed 'backlog' and treated as a separate class of vacancies which were to be filled up through special recruitment drives. In 1992, the Supreme Court fixed a cap of 50% on all and any reservations, including reservations for OBCs, or disabled or women. Taken together they cannot exceed 50%.14 This ceiling included the backlog of vacancies that existed at the time. Following the Court's orders the DPT issued an office memorandum in 1997 putting an end to special recruitment drives.

Several organisations and MPs brought pressure upon the central government to find ways and means of restoring the job reservation policy to the pre-1997 position. As a result the Constitution was amended to enable the government to treat backlog vacancies as a separate class and fill them up. This has happened despite the 1995 amendment of the Constitution (77th Amendment) to nullify the effect of the Supreme Court judgment in the Indira Sawhney v Union of India case which held that the benefit of reservation could be given only once at the time of recruitment and the same principle did not apply to promotions.

The Eighty-first Constitution (Amendment) Act inserts clause 4(b) into Article 16 of the Constitution. The new clause reads-"Nothing in this article shall prevent the State from considering any unfilled vacancies of a year which are reserved for being filled up in that year in accordance with any provision for reservation made under clause (4) or clause (4A) as a separate class of vacancies to be filled up in any succeeding year or years and such class of vacancies shall not be considered together with the vacancies of the year in which they are being filled up for determining the ceiling of fifty per cent reservation on total number of vacancies of that year."

Article 16 of the Constitution guarantees equality of opportunity to all citizens in matters relating to employment in public services. The State

shall not discriminate between citizens on the basis of religion, race, caste, sex, descent, place of birth, residence etc. But this provision shall not prevent the State from reserving jobs for SCs, STs and backward class citizens if they are not adequately represented in a public service. Similarly the State may put in place reservation quotas for SCs and STs in promotions to higher positions also. But Article 335 of the Constitution requires that such claims of SCs and STs to public services or in matters of promotion be considered only if they are consistent with the maintenance of efficiency in the administration.

**Social Responsibilities of the Private Sector**

Due to the withdrawal of the government from several areas of economic activity (because of privatization of government owned industrial, mining, service and infrastructure facilities) there is a growing worry that employment opportunities for SCs and STs would also reduce drastically. Unlike the State, the private sector has no constitutional obligation to implement job quotas for the weaker sections of society.

It has not been responded in an understanding manner to create employment opportunities for these sections of society. It is noted that the number of SCs, STs and BCs working in the private sector is insignificant except at the lowest levels; hence there need to be policies and mechanisms to protect the interests of the weaker sections of society in the post-liberalisation era. The Fifth Schedule to the Constitution empowers the Governor of the concerned State to modify, annul or limit the application of any law made by Parliament or the State legislature to these Tribal areas. The Governor is empowered to make regulations for the good governance of these areas.

Governor has the power to make the following regulations:

- ✓ Prohibiting or restricting transfer of land by or among members of STs;
- ✓ Regulate allotment of land to members of the STs and
- ✓ Regulate business such as money lending in such areas.

The Sixth Schedule lays down details of the mechanism and institutions necessary for governing the 'autonomous districts' in Assam, Meghalaya Tripura and Mizoram. They are called autonomous districts as they are directly under the control of the Governor who is responsible for their administration. The constitution, powers and functions of District Councils and Regional Councils in these autonomous districts are spelt out.

**Monitoring Nutritional Status of SC and ST Families**

Amongst the poor, SCs and STs are worst affected by the problem of malnutrition. Maternal anaemia, children with low birth weight related deficiencies are other problems that affect SC/ST communities. As a

combined result of social neglect and denial of opportunities, these communities have not been able to realize their potential.

**Protection of the Educational Interests of the SCs and STs**

The paper states that the likelihood of talented children achieving their potential depends on their socio-economic background. Talented children from well to do families have much better chances of doing well in life than those from poor families. The talents of children from weaker sections of society waste or wither away due to lack of opportunity. Hence it is necessary to identify and groom talent amongst boys and girls belonging to SC,ST and other BCs and train them in special talent

**Prohibition of Occupations Offensive and Degrading to Human Dignity**

The manual scavenging performed under inhuman conditions by members of certain SC communities is an 'unfortunate blemish on India's urban sanitation system'. Parliament passed the Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act in 1993 in order to put an end to the practice of manual scavenging.

This Act relates to the subject- 'Public health and sanitation; hospital and dispensaries' included under the State List in the Seventh Schedule of the Constitution. It was passed by Parliament at the request of the legislatures of Andhra Pradesh, Goa, Karnataka, Maharashtra, Tripura and West Bengal.26 It has become applicable to these States as well as to the Union Territories (UTs) with effect from 26 January 1997. The Assemblies of Orissa, Punjab, Assam, Haryana, Bihar and Gujarat have adopted this Act. Many States are yet to adopt this law.

**7.5 Policies Regarding - Denotified Communities**

**De-notified tribes or communities** (DNTs) are the communities belong to particular group of people who are listed as criminals according the criminal tribes act a legislation passed in 1871 by the British government; and who are "addicted to the systematic commission of non-bailable offences." Once a tribe became "notified" as criminal, all its members were required to register with the local magistrate, failing which they would be charged with a crime under the law of the land.

The Criminal Tribes Act of 1952 repealed the notification, i.e. ‘de-notified’ the tribal communities. Later Habitual Offenders act was passed to replace this act. Accordingly the police were asked to investigate a suspect’s criminal tendencies and whether his occupation is "conducive to settled way of life." The de-notified tribes were reclassified as habitual offenders in 1959.

The creation of these categories should be seen in the context of colonialism. The former British government authorities listed them separately by creating a category of castes or tribes labeled as criminal.

The name "Criminal Tribes" is itself a misnomer as no definition of tribe denotes occupation, but they were identified as tribes being their primary occupation. The first Census was in 1871 and at that time there was no consensus nor any definition of "tribe". The terms such as community and tribe were used interchangeably for these communities. In this colonial context, the term "Tribe" connoted the notions of primitiveness and backwardness and hence the assumption that these tribes needed to be civilized or transformed.

### 7.5.1Reservations for De-notified communities

In 2008, The National Commission for De-notified, Nomadic and Semi-Nomadic Tribes (NCDNSNT) under the Ministry of Social Justice and Empowerment suggested reservation provisions as equal as available to other communities such as SC and ST. This has provided an immense development and welfare benefits, for all the people belonging to the de-notified, semi-nomadic tribes and nomadic communities.

There were also schemes like reservation in education and employment, special schools and hostels and financial and other assistances extended.

## 7.6 Check your progress

When was the First Backward Classes Commission established and under the chairmanship of whom
Mention the deplorable Conditions of SC'S And ST'S
What are the programmes evolved due to Policies Regarding - Denotified Communities

## 7.7 Summary

The Backward Classes Division in the Ministry looks after the policy, planning and implementation of programmes relating to social and economic empowerment of OBCs. It also looks after matters relating to two institutions set up for the welfare of OBCs

Untouchability is practiced in public places like wells, temples, hotels etc. though it is a crime to do so. Yet many times the concerned police officers do not take any action even after complaints have been made. It is widely alleged that false criminal cases are filed against SCs and STs when they lodge complaints about atrocities committed against them. This defeats the very purpose of the POA Act. It is imperative to study the policies regarding various communities in order to understand and realize their status and way forward for development.

## 7.8 Key words

Social policies regarding other backward castes (OBCs) Scheduled castes(SCs), Scheduled tribes (STs) and de-notified communities

## 7.9 Self Assessment Questions

What are the recommendations of Mandal Commission

Write a note on Policies Regarding SC

How to address issues of ST through social policy

How to Strengthen Constitutional Provisions for various communities

## 7.10 Further Readings

Christopher, A.J. & Thomas William, A., 2006, Community Organisation and Social Action, Himala Publishers, Mumbai

Chowdhry, D.Paul, 1992, Social Welfare Administration, Atmaram & sons, New Delhi

Constitution of India, 1991, Govt. of India

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbay

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbai

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

# Unit VIII

## 8.1 Structure – Contents of the unit

Social policies and programmes for women, children, aged and handicapped; development and implementation of programmes for weaker section

## 8.2 Objectives

To promote the knowledge on policy on women

To understand the policy on children and aged

To anlayse the various development programmes for weaker section

# SOCIAL WELFARE POLICIES AND PROGRAMMES FOR WOMEN

## 8.3 Introduction

The Government of Tamil Nadu stands first in implementing various welfare programmes for the overall development of women and children. The Department of Social Welfare and Nutritious Meal Programme is implementing a variety of schemes granting financial assistance to children and women in difficult circumstances to pursue education, marriage/ re-marriage etc.

In its endeavour to provide a healthy and protective environment to girl children and women, the Government has formulated many policies towards reducing gender discrimination and improving the status of the adolescent girls and is implementing them effectively. Under the Nutritious Meal Programme nutritious Mid Day Meal is given to the school going students with the aim of ensuring a balanced development of health of the students and their education.

### 8.4 Women Welfare Schemes

**Marriage Assistance Schemes**

The Department implements five types of Marriage Assistance Schemes to alleviate the problems of poor parents / guardians who are unable to get their girl children married.

Large number of girls and their parents are benefitted under these schemes.

**Moovalur Ramamirtham Ammaiyar Ninaivu Marriage Assistance Scheme**

Having the basic aim of promoting the educational status of women Moovalur Ramamirtham Ammaiyar Ninaivu Marriage Assistance Scheme was launched on 3-6-1989 to help the poor parents financially in getting

their daughters, who have studied upto 8th Std and above and attained the age of 18 years old, married with an assistance of Rs.5000/-. Subsequently the educational qualification for getting this assistance has been raised to 10th Standard and also the financial assistance to Rs.10,000/-.

This scheme was discontinued with effect from 1.4.2002 and has been revived with effect from 3.6.2006, raising the financial assistance from Rs.10,000/- to Rs.15,000/- per beneficiary. The assistance under this scheme has been increased to Rs.20,000/-from the financial year 2008-2009. For the year 2008-2009, a sum of Rs.130 Crores has been allocated in the Budget Estimate to benefit 65,000 poor families.

**Dr. Dharmambal Ammaiyar Ninaivu poor Widow Remarriage Assistance Scheme**

This scheme encourages the social reformation of remarriage of poor widows who have lost their husband at the young age by providing financial assistance of Rs.15,000/- in the name of Dr. Dharmambal Ammaiyar. The financial assistance is provided only to widows with minimum age of 20 years. There is no income ceiling for availing benefit under this scheme. A sum of Rs. 25.00 Lakhs has been provided in the Budget Estimate for the year 2008-2009 to benefit 166 persons.

**Annai Theresa Ninaivu Marriage Assistance Scheme for Orphan Girls**

A sum of Rs.15,000/- per beneficiary is given in the name of Annai Theresa for the marriage of orphan girls who have lost their parents where the annual income of the guardians or the orphan girls do not exceed Rs.12,000/-. The girls should be above 18 years of age and not above 30 years of age. An amount of Rs.41.00 Lakhs has been provided in the Budget Estimate for the year 2008-2009 to benefit 273 orphan girls.

**E.V.R. Maniammaiyar Ninaivu Marriage Assistance Scheme for Daughters of Poor Widows**

The widows below poverty line are suffering a lot without enough financial support in getting their daughters married. To alleviate the suffering of these widows, an assistance of Rs.15,000/- is sanctioned for the marriage of daughters of poor widows, in the name of EVR Maniammaiyar. Under this scheme, the daughters of poor widows in the age group of 18 to 30 years and whose annual income is Rs.12,000/- are provided financial assistance for their marriage. A sum of Rs. 230 Lakhs has been provided in the Budget Estimate to benefit 1533 widow's daughters for the year 2008-09.

**Anjugam Ammaiyar Ninaivu Inter-Caste Marriage Assistance Scheme**

This scheme encourages inter-caste marriages thus abolishing discrimination along caste lines and also eliminates the dowry harassments by providing cash assistance to the newly married couples if anyone of the spouse belongs to SC or ST Community and the other one belongs to a different Community or one spouse belongs to BC/ MBC Community and

the other belongs to the Forward Community. There is no income limit for availing assistance under this scheme. A sum of Rs.20,000/- (Rs.10,000/- in the form of DD / Cheque for marriage expenses and Rs.10,000/- in the form of National Savings Certificate) is provided if one spouse is from SC / ST and the other belongs to a different community. A sum of Rs.15,000/- (Rs.5,000/- for marriage expenses in the form of DD/Cheque and Rs.10,000/- in the form of National Savings Certificate) is provided to those newly married couple where a forward community person weds a BC/MBC person.

**Sathiyavanimuthu Ammaiyar Ninaivu Free Supply of Sewing Machines Scheme**

Under this scheme, sewing machines are supplied at free of cost to widows, deserted wives, destitute women and physically handicapped men and women below poverty line with a noble view to increase their self employment potential and to help them to lead a decent life.

Under this scheme those who have been trained in tailoring and who have completed 20 years of age and are below 40 years are the beneficiaries.

**Service Homes**

In the Rural areas of Tamil Nadu many girls discontinue their school studies and get married and some of them are deserted from their families due to family problems, some even lose their husbands due to various reasons. Some do not get married due to poor circumstances. To provide education and employment opportunities to such women, and to improve their economic conditions, the Department of Social Welfare runs 8 Service Homes, one each at Tambaram, Cuddalore, Salem, Thanjavur, Tirunelveli, Sivaganga, Nagapattinam and Madurai.

These Service Homes provide accommodation, food, education (upto Higher Secondary School) and vocational training to the inmates at free of cost. Besides, the women inmates are allowed to keep their children with them and educational facilities are also provided to these children.

Secondary Grade Teachers Training course was restarted in Tambaram Service Home during 2007-08. Forty Ex-inmates of Service Homes and Government orphanages are benefitted through this Teachers Training Course.

**Service Homes For Women Run By NGOs**

The aim of the scheme is to rehabilitate socially and economically weaker women by educating them through condensed course and training them in tailoring. Food, accommodation, education and vocational courses are provided as assistance under this scheme. The women who are socially destitute, deserted wives, widows and orphans are eligible to benefit under this scheme.

**Working Women's Hostel**

The Working Women, particularly from the middle and lower middle classes, are facing many problems to find suitable accommodation at the fees affordable to them. To cater to their requirements, Government is running eight Working Women's Hostels – two in Chennai and one each in Cuddalore, Madurai, Pudukottai, Tuticorin, Trichy and Hosur (Krishnagiri). A monthly income ceiling of Rs.10,000/- is prescribed for admission in the working women's hostels. Monthly rent of Rs.200/- in Chennai and Rs.150/- in other places is collected from the inmates, while water, electricity charges and food charges are shared equally by the inmates. Salaries of the Superintendent, Junior Assistant, Cooks, Scavengers and other staff are met by the State Government.

A Transit Hostel is also functioning at the existing Working Women's Hostel functioning at Chennai.

**Free Supply of Text Books And Note Books to the Children of Poor Widows**

This scheme benefits school going children of poor widows with a family income below Rs.12,000/- per annum by providing free text books and note books.

**Employment for Women**

I. By involving Women in Co-operative movement, socio-economic empowerment of women is ensured.

II. Through formation of Industrial Co-operative Societies exclusively for women, economic empowerment of women is achieved. There are 98 Industrial Co-operative Societies functioning under the control of the Director of Social Welfare and 25 Weaning Food Manufacturing Women Co-operative Societies functioning under the control of Director, Integrated Child Development Services Scheme. These Cooperative Societies provide gainful employment to the women below poverty line by engaging them in manufacture of products and rendering services required for implementing the schemes of the Social Welfare Department.

Stitching of uniforms for students studying in Adi Dravidar and Tribal Welfare Schools, Backward Classes and Most Backward Classes and Minority Welfare Department controlled schools and Kallar reclamation schools upto 8$^{th}$ Std which were entrusted to private agencies from 2003-2004 is now entrusted to industrial Women Co-operative Societies to improve the income of the above sections.

Tailoring wages have been increased by about 25%, which are paid to the members of Tailoring Co-operative Societies.

There are fifteen Women Stationery Industrial Co-operative Societies are functioning under the control of Social Welfare Department. These

Societies have a total membership of 746. These stationery co-operative societies are providing work to the women members by getting orders from the Government Departments, Government institutions, Government Organisations and other Co-operative Institutions.

Among the above training centers, 2 in Salem District and one each in Namakkal and Tiruvannamalai District totaling 4 tailoring centers are giving training exclusively to tribal women. 65 Tribal Women are trained in these centers every year.

## 8.5 Child Welfare Schemes

### Constitutional Provisions

There are several constitutional provisions for children. These include the following.

- Article 14 provides that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

- Article 15(3) provides that, "Nothing in this article shall prevent the State for making any special provision for women and children."

- Article 21 provide that no person shall be deprived of his life or personal liberty except according to procedure established by law.

- Article 21A directs the State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine.

- Article 23 prohibits trafficking of human beings and forced labour.

- Article 24 prohibits employment of children below the age of fourteen years in factories, mines or any other hazardous occupation.

- Article 25-28 provides freedom of conscience, and free profession, practice and propagation of religion.

- Article 39(e) and (f) provide that the State shall, in particular, direct its policy towards securing to ensure that the health and strength of workers, men and women and the tender age of children are not abused and that the citizens are not forced by economic necessity to enter avocations unsuited to their age or strength and that the children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that the childhood and youth are protected against exploitation and against moral and material abandonment.

- Article 45 envisages that the State shall endeavor to provide early childhood care and education for all children until they complete the age of six years.

**Legislations**

There are several Legislations pertaining to children. These include the following.

- The Child Marriage Restraint Act, 1929.
- The Child Labour (Prohibition and Regulation) Act, 1986.
- The Juvenile Justice (Care and Protection of Children) Act, 2000.
- The Infant Milk Substitutes, Feeding Bottles and Infant Foods (Regulation of Production, Supply and Distribution) Act, 1992.
- The Pre-Conception and Pre-natal Diagnostic Technique(Prohibition of Sex Selection) Act, 1994.
- The Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995.
- The Immoral Traffic (Prevention) Act, 1956.
- The Guardian and Wards Act, 1890.
- The Young Persons (Harmful Publications) Act, 1956.
- The Commissions for Protection of Child Rights Act, 2005

**8.5.1 Welfare Programmes and Schemes**

**Sathya Ammaiyar Ninaivu Government Orphanages**

Due to various reasons, now-a-days many children are denied proper food and education.

They do not get right environment for an all round growth. With genuine interest in the welfare of the destitute and orphan children, the Government of Tamil Nadu runs 27 Orphanages throughout the State of Tamil Nadu to groom them into good citizens. Classes are being conducted from 1$^{st}$ to 5$^{th}$ standard in the Orphanage itself and the children from 6$^{th}$ standard are sent for higher education to nearby schools run by Government and Local Bodies. These orphanages provide food, shelter, clothing, education excursion and health care, free of cost to the inmates so that they are enabled to study like other children.

Following categories of children are admitted to the Government orphanages:

- Orphaned and abandoned children without parents / relatives.
- Children of single parent families where either of the parents has died.

- Children whose parents are unable to take care of them due to imprisonment for a long term.

- Children whose parents are unable to take care of them due to serious illness. A committee with the District Collector concerned as the Chairman and consisting of the representatives from the Education, Health and Social Welfare Departments along with the Social Workers has been formed by the Government to monitor and provide necessary guidance for better implementation of the scheme for the welfare of the inmates of Government Orphanages.

These Committees meet once in three months and monitor the progress of the inmates of the orphanages in education, health and admission of children.

**NGOs' Partnership for the Welfare of Children**

The objective of the scheme is to rehabilitate the destitute children to live as normal citizens. The destitute children in the age group of 5 to 18 years of single parent family or who do not have either parent are eligible for benefit under this scheme. Children of deserted wives / parents affected with prolonged illness / parents imprisoned for longer period are also eligible to benefit under the scheme. The income of the parent/guardian should not exceed Rs.12,000/- per annum.

In order to encourage voluntary organizations which maintain orphan children, the State Government is sanctioning grant-in-aid towards maintenance of the children from 1st April 1992. The State Government is giving Rs.225/- per child per month as grant-in-aid (out of the total required expenditure of Rs.281) representing 80% of recurring expenditure, towards food, contingencies etc., to Voluntary Organisations for the maintenance of children. The remaining 20% of the expenditure which is Rs.56/- per month per child is borne by the Voluntary Organisations by themselves.

Each unit consisting of 25 children should have a house mother / father and a helper, to look after the children.

**Sivagami Ammaiyar Ninaivu Girl Child Protection Scheme**

The objective of this scheme is to prevent female infanticide, discourage preference for male child and to promote family planning. This scheme also ensures equal opportunity in education for girl children on par with male children.

Under this scheme, an amount of Rs.22,200/- is deposited in Tamil Nadu Power Finance and Infrastructure Development Corporation Limited by Government in the name of the girl child, if there is only one girl child in the family with no other child in the family and when either of the parents has undergone sterilization before the age of 35 years. A monthly payment of Rs.150/- is released to the child from the interest accrued from the deposit, from the 5th year of the deposit and upto 20th year of deposit to

take care of the education of the girl child. On the 20th year of the deposit, the deposit amount with interest will be released to the girl to enable her to pursue higher education or to defray the marriage expenses.

In case of families with two girl children and no male child, an initial deposit of Rs.15,200/-is made with Tamil Nadu Power Finance and Infrastructure Development Corporation Ltd., for each of the girl children by the Government. A monthly payment of Rs.150/- is released to the children from the interest accrued from the deposit, from the 5$^{th}$ year of the deposit and upto 20$^{th}$ year of deposit to take care of the education of the girl children.

Each girl child will be given the amount deposited with accrued interest on the 20th year of deposit. This will enable them to pursue their higher studies or to defray their marriage expenses. A sum of Rs.75.00 crores have been allotted in the Budget Estimate for the year 2008-2009. About 49,300 girl children will be benefitted under this scheme.

**Cradle Baby Scheme**

The Cradle Baby Scheme was launched in Salem in the year 1992 with the aim of eradicating female infanticide. This Scheme was later extended during 2001 to Madurai, Theni, Dindigul and Dharmapuri, as these districts were also found to be prone to this evil practice. Reception centres were started in the above districts with sufficient staff and infrastructure facilities including telephone, life saving medicines, life saving medical equipments, refrigerator and incubator.

Cradles are also placed in the District Social Welfare Offices, District Collectorates, Government Hospitals, Primary Health Centres / Sub Health Centres to receive the deserted / abandoned babies. These reception centres play an important role in receiving the deserted / abandoned babies and in protecting their lives. The children received in the Reception Centre are rehabilitated and handed over to licensed adoption agencies to enable the children to find a family and issueless parents to have a child. Till 31.3.2008, this programme has saved the life of 3,044 children.

The District Social Welfare Officers are designated as the Coordinating Officers for this scheme. A sum of Rs.6.21 Lakhs is provided in the Budget Estimate for 2008-2009 for the 5 Reception Centres**.**

**Adoption**

Adoption undoubtedly offers an important avenue for the care and protection of orphaned, abandoned, destitute and neglected children in a family environment and provides an atmosphere of happiness, love and understanding, thus bringing their talent and capacity to the fore. Adoption also provides couples who are issueless, the opportunity, happiness and satisfaction of having a child solely belonging to them. It carries with it the emotional, physical and material security necessary for the proper development of a child and also serves as the most reliable means of preventing situations associated with child abuse, exploitation and social

mal-adjustment of orphaned, abandoned, destitute and neglected children.

At present there are 22 licensed agencies doing in-country adoptions. These agencies are situated at Chennai, Coimbatore, Krishnagiri, Trichy, Tuticorin, Madurai, Salem, Dindigul, Nagapattinam, Tirunelveli, Thiruvallur, Vellore and Kancheepuram. Of these, 8 agencies are recognised to handle inter-country adoptions also. Steps are being taken to identify at least one adoption agency in each district of Tamil Nadu. All the Licensed agencies are authorised to handle legal adoptions. The CARA (Central Adoption Resource Agency) under the Ministry of Women and Child Development, New Delhi issues license to inter-country adoption and Government of Tamil Nadu issues license for in-country adoption.

The Government of Tamil Nadu is encouraging adoption of deserted/abandoned children by creating awareness among public. The District Social Welfare Officers have been designated as coordinators for this programme.

A Hand Book containing the details pertaining to Adoption such as scheme Implementation, Guidelines for In/Inter-Country Adoption, Laws relating to Adoption, Eligible Children/Parents, Details of Licensed Agencies, Government Officials and Agencies to be approached for Adoption has been released on 3-5-2007 with a noble objective to encourage the Public to adopt children.

## 8.6 Welfare Policies and Programmes of Elderly

### Introduction

Population Aging is the current trend world over and India is no exception as the elderly population is on the increase in each country in the composition of any population. Thanks to the recent medical and scientific advancement and increase in livelihood standards. Elderly or old age consists of ages approaching or surpassing the average life span of human beings. There could not be no clear cut age demarking as far as old age is concerned; because each country or communities have its own meaning in terms of aging. Government of India had adopted National Policy on Older Persons in January, 1999. The policy defines ‘senior citizen’ or elderly as a person who is of age 60 years or above.

### International Scenario

The aging of populations is one of the obvious consequences of demographic evolution. The advanced countries of the world have developed policies and programme to turn aside crises and promote economic expansion. The South Asian countries also well prepared on their way and are either prepared to face the cost or to manage the growing number of the elderly through appropriate policies and programmes.

The world’s population is predictable to increase to 9.4 billion by 2050 from the current 7.3 billion. During the same period, the proportion of the elderly population is expected to increases from 10.4 per cent to 21.7 per

cent which is alarming. Among the elderly, it is the oldest among the old whose numbers will increase most quickly over time, or it is estimated about 320 million by 2050 is the cause of the concern.

**Challenges of old**

Though ageing is the natural stage of human life, it brings with it innumerable challenges and problems for the people who have grown old. The major problems of the aged identified from the various statistics is listed below:

***Problems in Economic life:*** Economically in-secured in the major problems faced by old age persons and it is the very basic to all the other problems faced by the aged. When is age is gone by they are not able to be productive in most of the cases, with superannuation, a person has to retire from the service, which not only results in loss of employment and social status but also a substantial reduction in his income level. Majority of the older persons face acute financial problems, which makes older persons economically insecure and not able to maintain the sustenance for life.

***Psychological & Health issues:*** With growing age, older persons experience various anatomical and physiological changes. These changes bring many psychological, behavioral and attitudinal changes in them. Consequently, they have to suffer varied sorts of physiological problems such as loss of health, strength and stamina, failing eye sight of hearing, slowing and unsureness of step, diminishing energy and more acute disabilities, such as blindness, forgetfulness etc which become more severe as a person grows elderly. Feeling of loneliness and feeling of in secured of often reported in various studies and research.

***Housing related Problems:*** Housing for the aged should be suitable not only to the living pattern which they have established in optimum health, but also to conditions of failing health and illness, commonly associated with later years of life. On this pattern, the housing available to a majority of the senior citizens may be found unsuitable and unbefitting to their day to day usage.

***Elder Abuse:*** Elder abuse is usually defined as any ill treatment to an older person either oral or physical. It refers to "infliction of physical, emotional or psychological harm on an older adult". Majority of the elderly persons face the problem of verbal abuse, neglect followed by material abuse and physical abuse.

### 8.6.1 Maintenance and Welfare of Parents and Senior Citizens Act, 2007

The Maintenance and Welfare of Parents and Senior Citizens Act, 2007 was enacted in December 2007 to protect the interests and safeguard the interests and to provide need based maintenance for parents and senior citizens and their welfare.

The objectives of the Act is to provide:

- Maintenance of Parents/ senior citizens by children/ relatives made obligatory and could be claimed their right through Tribunals

- Revocation of transfer of property by elderly in case of negligence by relatives

- Penal provision for abandonment of senior citizens

- Establishment of Old Age Homes for Indigent Senior Citizens to provide welfare

- Adequate medical facilities and security for Senior Citizens in all possible ways

**Policies/Schemes /Programmes for Welfare of the Elderly**

**8.6.2 National Policy on Older Persons**

The National Policy on Older Persons was announced by the Government in January 1999 which envisages State support to ensure financial and food security, health care, shelter and other needs of older persons to improve the quality of their lives.

The salient features of the Policy are:

- To persuade individuals to make provision for the elderly

- To encourage families to take care of their older family members

- To enable and support NGOs to supplement the care provided by the family

- To provide care and protection to the weak, vulnerable and needy elderly people

- To endow with adequate healthcare facility to the elderly

- To promote research and training facilities to train geriatric care givers and organizers

- To create awareness to help elderly to lead fruitful and independent life

**Central Sector Scheme of Integrated Programme for Older Persons (IPOP)**

In partnership with NGOs an Integrated Programme for Older Persons (IPOP) is being implemented since 1992 with the objective of improving the quality of life of senior citizens by providing basic amenities like shelter, food, medical care. For this purpose Non-Governmental Organizations/Panchayati Raj Institutions/ local bodies are endowed with

opportunities and thereby encouraging productive and active ageing through providing support for capacity building in the Community at large. Financial assistance up to 90% of the project cost is provided to NGOs for establishing and maintaining old age homes, day care centres and mobile Medicare units is provided under this Scheme.

**National Programme for Health Care for Elderly (NPHCE)**

NPHCE was executed by the Ministry of Health and Family Welfare from the year 2010-11 with an approved outlay of Rs.288 crore for the remaining period of the 11th Five Year Plan.

The Ministry also offers the following amenities for elderly:

- Separate queues for older persons in government hospitals.
- Geriatric clinic in several government hospitals

**Indira Gandhi National Old Age Pension Scheme (IGNOAPS)**

Named after the then Prime minister of India; IGNOAPS was implemented by the Ministry of Rural Development under which Central assistance is given towards pension @ Rs. 200/- per month to persons above 60 years and @ Rs.500/- per month for senior citizens of 80 years and above belonging to a household below poverty line, which is meant to be supplemented by at least an equal contribution by the State government. This scheme has been appreciated by all quarters and find it to be very much beneficial to the elderly.

**National Social Assistance Programme**

The Ministry of Rural Development established a Task Force for a Comprehensive National Social Assistance Programme for the elderly. The Task Force has considered various issues, demands and suggestions relating to pension schemes under NSAP. With effect from 1 July, 2013, the pension schemes under NSAP have been brought under the domain of Direct Benefit Transfer (DBT), wherein the pension amount is directly transferred into the bank account of senior citizens to make it more transparent less intruders.

**8.7 Welfare of Differently Abled Persons**

Welfare of the differently abled persons gained importance recently both in national and state arena. A specific department called Department of Differently Abled Persons has been established in each state government to bring all round development.

This Department functions as the nodal Department for the welfare of Differently Abled Persons, Denotified in the State of Tamil Nadu. The basic objective of the Department is to formulate polices, laws, regulations and programmes for the Socio, educational and economic development of the Welfare Differently Abled Persons Communities in the State.

The major task of welfare for the differently abled is to empower the target groups through their educational, economic and social upliftment. Recently there are number of schemes and programmes are being formulated and implemented to achieve the these goals.

Major policies and welfare programmes:

- Barrier free environment for the Differently Abled Persons
- Implementation of Persons with Disabilities (Equal opportunities, protection of

  Rights and full participation)Act,1995
- Recognition and Registration of voluntary Organization working for the

  Rehabilitation of the Differently Abled Persons
- United nations convention on the rights of persons with disabilities (UNCRPD)
- Issue of national identity cards, pass books and disability certificates
- Early intervention and diagnostic centres
- Special education for the target groups
- Scholarship for differently abled students
- Cash prize to the students for academic achievements
- Scribe assistance for writing examinations
- Special diploma courses for the teachers on special education
- Assistance to differently abled law graduates
- Training for differently abled persons through district differently abled welfare offices
- Vocational training with boarding and hostel facilities
- Government rehabilitation home with sheltered workshop for the visually impaired women at poonamallee
- State resource cum training centre
- Reservation policy for the differently abled persons
- Special recruitment drive

- Maintenance allowance to severely affected differently abled persons
- Unemployment allowance to all categories of the differently abled
- Marriage assistance schemes
- Homes for the mentally retarded
- Grant-in-aid to special school for the mentally challenged
- Rescue scheme to rescue mentally ill persons and admit them into psychiatric hospitals and rehabilitation homes
- Homes for mentally ill persons
- Day care centres for persons with muscular dystrophy
- Aids and appliances
- Travel concession to the differently abled persons in state owned transport corporation buses
- Self-employment schemes
- Distribution of motorised sewing machine
- "Vazhikattum thittam" for differently abled persons
- Victim assistance fund
- Tamil nadu welfare board for the differently abled persons
- International day of the differently abled persons
- State awards and National awards
- Government rehabilitation homes

**8.8 Development and implementation of programmes for weaker section**

**Tamilnadu State Women Commission**

The activities of the Commission are as follows:-

- Investigate and examine all matters relating to the safeguards provided for women under the Constitution and other laws.
- Present to State Government annually and at such other times as the Commission may deem fit, reports upon the working of these safeguards and make in such reports recommendations for the effective implementation of those safeguards for improving the conditions of women.

- Review, from time to time, the existing provisions of the Constitution and other laws affecting women and recommend amendments thereto so as to suggest remedial legislative measures to meet any lacunae, inadequacies or shortcomings in such legislations.

- Take up the cases of violation of provisions of the Constitution and of other laws relating to women with the appropriate authorities.

- Look into the complaints relating to:-

    - Deprivation of women's rights.

    - Non-implementation of law enacted to provide protection to women and also to achieve the objective of equality and development.

- Call for special studies or investigations into specific problems or situations arising out of

    - discrimination and atrocities against women and identify the constraints so as to recommend strategies for their removal.

    - Undertake promotional and educational research so as to suggest ways of ensuring due representation of women in all spheres and identify factors responsible for impeding their advancement.

    - Inspect, cause to be inspected, any jail, remand home, women institution or other place of custody where women are kept as prisoner or otherwise, and take up with the concerned authorities for remedial action, if found necessary.

- Any other matter which may be referred to it by the State Government

**Protection of Women from Domestic Violence Act, 2005**

As contemplated in the Central Act and Rules framed thereunder, effective protection of the women who are victims of violence of all kinds occurring within the family and for matters connected therewith has been provided with the appointment of District Social Welfare Officers as District Protection Officers as an interim measure.

A Service Provider for each district (two for Chennai) totalling 31 have been appointed from the reputed NGOs. The Service Providers have been informed of the requirements they should possess namely food, shelter, medical facilities, counselling and legal assistance. The expenses on food and shelter for the victims are reimbursed by the State Government to the Service Providers. As per the guidelines issued by the Government of India, action is being taken to appoint a separate District Protection

Officers (One each in every district and two in Chennai) for implementation of this Act.

**Social Welfare Services for Minority Communities**

Prime Minister's New 15 Point Programme for the Welfare of Minorities

(A) Enhancing opportunities for Education

**Equitable availability of ICDS Services**

The Integrated Child Development Services (ICDS) Scheme is aimed at holistic development of children and pregnant/lactating mothers from disadvantaged sections, by providing services through Anganwadi Centres such as supplementary nutrition, immunization, health check-up, referral services, pre-school and non-formal education. A certain percentage of the ICDS projects and Anganwadi Centres will be located in blocks/villages with a substantial population of minority communities to ensure that the benefits of this scheme are equitably available to such communities also.

**Improving access to School Education**

Under the Sarva Shiksha Abhiyan, the Kasturba Gandhi Balika Vidyalaya Scheme, and other similar Government schemes, it will be ensured that a certain percentage of all such schools are located in villages/localities having a substantial population of minority communities.

**Greater resources for teaching Urdu**

Central assistance will be provided for recruitment and posting of Urdu language teachers in primary and upper primary schools that serve a population in which at least one-fourth belong to that language group.

**Modernizing Madarsa Education**

The Central Plan Scheme of Area Intensive and Madarsa Modernization Programme provides basic educational infrastructure in areas of concentration of educationally backward minorities and resources for the modernization of Madarsa education. Keeping in view the importance of addressing this need, this programme will be substantially strengthened and implemented effectively.

**Scholarships for meritorious students from minority communities**

Schemes for pre-matric and post- matric scholarships for students from minority communities will be formulated and implemented.

**Improving educational infrastructure through the Maulana Azad Education Foundation**

The Government shall provide all possible assistance to Maulana Azad Education Foundation (MAEF) to strengthen and enable it to expand its activities more effectively.

(B) Equitable Share in Economic Activities and Employment

Self-Employment and Wage Employment for the poor

(a) The Swarnjayanti Gram Swarojgar Yojana (SGSY), the primary self-employment programme for rural areas, has the objective of bringing assisted poor rural families above the poverty line by providing them income generating assets through a mix of bank credit and Governmental subsidy. A certain percentage of the physical and financial targets under the SGSY will be earmarked for beneficiaries belonging to the minority communities living below the poverty line in rural areas.

(b) The Swarn Jayanti Shahari Rojgar Yojana (SJSRY) consists of two major components namely, the Urban Self-Employment Programme (USEP) and the Urban Wage Employment Programme (UWEP). A certain percentage of the physical and financial targets under USEP and UWEP will be earmarked to benefit people below the poverty line from the minority communities.

(c) The Sampurna Grameen Rozgar Yojana (SGRY) is aimed at providing additional wage employment in rural areas alongside the creation of durable community, social and economic infrastructure. Since the National Rural Employment Guarantee Programme (NREGP) has been launched in 200 districts, and SGRY has been merged with NREGP in these districts, in the remaining districts, a certain percentage of the allocation under SGRY will be earmarked for beneficiaries belonging to the minority communities living below the poverty line till these districts are taken up under NREGP. Simultaneously, a certain percentage of the allocation will be earmarked for the creation of infrastructure in such villages, which have a substantial population of minorities.

**Upgradation of skills through technical training**

A very large proportion of the population of minority communities is engaged in low-level technical work or earns its living as handicraftsmen. Provision of technical training to such people would upgrade their skills and earning capability. Therefore, a certain proportion of all new ITIs will be located in areas predominantly inhabited by minority communities and a proportion of existing ITIs to be upgraded to ‘Centres of Excellence’ will be selected on the same basis.

**Enhanced credit support for economic activities**

(a) The National Minorities Development & Finance Corporation (NMDFC) was set up in 1994 with the objective of promoting economic development activities among the minority communities. The Government is committed to strengthen the NMDFC by providing it greater equity support to enable it to fully achieve its objectives.

(b) Bank credit is essential for creation and sustenance of self-employment initiatives. A target of 40% of net bank credit for priority sector lending has been fixed for domestic banks. The priority sector includes, inter alia, agricultural loans, loans to small-scale industries & small business, loans to retail trade, professional and self-employed persons, education loans, housing loans and micro-credit. It will be ensured that an appropriate percentage of the priority sector lending in all categories is targeted for the minority communities.

**Recruitment to State and Central Services**

(a) In the recruitment of police personnel, State Governments will be advised to give special consideration to minorities. For this purpose, the composition of selection committees should be representative.

(b) The Central Government will take similar action in the recruitment of personnel to the Central police forces.

(c) Large scale employment opportunities are provided by the Railways, nationalized banks and public sector enterprises. In these cases also, the concerned departments will ensure that special consideration is given to recruitment from minority communities.

(d) An exclusive scheme will be launched for candidates belonging to minority communities to provide coaching in government institutions as well as private coaching institutes with credibility.

(C) Improving the conditions of living of minorities Equitable share in rural housing scheme

The Indira Awaas Yojana (IAY) provides financial assistance for shelter to the rural poor living below the poverty line. A certain percentage of the physical and financial targets under IAY will be earmarked for poor beneficiaries from minority communities living in rural

Improvement in condition of slums inhabited by minority communities

Under the schemes of Integrated Housing & Slum Development Programme (IHSDP) and Jawaharlal Nehru National Urban Renewal Mission (JNNURM), the Central Government provides assistance to States/UTs for development of urban slums through provision of physical amenities and basic services. It would be ensured that the benefits of these programmes flow equitably to members of the minority communities and to cities/slums, predominantly inhabited by minority communities.

(D) Prevention & Control of Communal Riots

Prevention of communal incidents

In the areas, which have been identified as communally sensitive and riot prone, district and police officials of the highest known efficiency, impartiality and secular record must be posted. In such areas and even

elsewhere, the prevention of communal tension should be one of the primary duties of the district magistrate and superintendent of police. Their performances in this regard should be an important factor in determining their promotion prospects.

**Prosecution for communal offences**

Severe action should be taken against all those who incite communal tension or take part in violence. Special court or courts specifically earmarked to try communal offences should be set up so that offenders are brought to book speedily.

**Rehabilitation of victims of communal riots**

Victims of communal riots should be given immediate relief and provided prompt and adequate financial assistance for their rehabilitation.

## 8.9 Check your progress

Mention the various Women Welfare Schemes

What are the objectives of Child Welfare Schemes

When Cradle Baby Scheme was introduced

## 8.10 Summary

The policies on women, children, elderly and differently abled are gaining greater attention nowadays. Their development services should be based on the felt needs of the target population, which would involve a comprehensive baseline morbidity survey and functional assessment in areas that are perceived to be important to them. Education, training and information needs of older persons will also have to be met. The main thrust of welfare should be to identify the more vulnerable among the older persons such as the poor, the disabled, the infirm, the chronically sick and those without family support, and provide welfare services to them on a priority basis. Voluntary organizations will have to be encouraged and assisted to organize services.

## 8.11 Key words

Social policies and programmes for women, children, aged and handicapped

## 8.12 Self Assessment Questions

Trace the Social Welfare Services for Women

How to promote Employment for Women

How Constitutional Provisions guide social policies on children

How to promote Welfare Programmes and Schemes through NGOS' Partnership for the Welfare of Children

Sketch the role of Tamilnadu State Women Commission

Social Welfare Services for differently abled persons

## 8.13 Further Readings

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai

Lalitha, N.V., 1981, Financial Assistance to Voluntary Organizations for Development, NIPCCD, New Delhi.

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbay

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London

Velayutham, K.Shanmuga, 1998, Social Legislation and Social Change, Vazha Valamudan, Publishers, Chennai

# Unit IX

## 9.1 Structure – Contents of the unit

Social legislation: definition its roles as an instrument of social change

## 9.2 Objectives

- To understand the concept of Social legislation
- To find out the roles of social policy as an instrument of social change

# SOCIAL LEGISLATION

## 9.3 Introduction

SOCIAL LEGISLATION is considered as Laws that seek to promote the common good, generally by protecting and assisting the weaker members of society, are considered to be social legislation. Such legislation includes laws assisting the unemployed, the infirm, the disabled, and the elderly.

The social welfare system consists of hundreds of state and federal programs of two general types. Some programs, including Social Security, Medicare, unemployment insurance, and Workers' Compensation, are called social insurance programs because they are designed to protect citizens against hardship due to old age, unemployment, or injury. Because people receiving benefits from these programs generally have contributed toward their benefits by paying payroll taxes during the years that they worked, these social insurance programs are usually thought of as earned rewards for work.

Programs of a second type, often cumulatively called the Welfare System, provide government assistance to those already poor. These social programs have maximum income requirements and include Aid to Families with Dependent Children, the Food Stamp Program, Medical aid, and Supplemental Security Insurance.

Social legislation can be defined as ‘a species of legislation that the legislature enacts to respond to social problems and more importantly such legislation is a policy preference: the legislature reflects its and its constituents’ well within the context of societal values, norms and political-economic constraints’.

### 9.3.1 Formulation of Legislative Process

- Creation of ideas – source, incidents, happening, reports, etc.,
- Manner in which an idea is transformed into a bill and
- Formal and informal aspects of the process and
- Consequences for the products that emerge there from;

- Ethical dimension of the law-making process;
- Issues of access and
- Implications for entry for disenfranchised groups (e.g., racial and ethnic groups, poor communities, sexual minorities)

**Protection from Abuse legislation**

The legalization of issues associated with the elderly: how the lives of the elderly are increasingly framed by the law and how legislation and regulations are the context for nursing homes; an evaluation of whether the law is most appropriate mechanism to address the problems of the elderly.

**Lobbying strategies and techniques:**

- ✓ roles of lobbyist; getting into and through the legislative process;
- ✓ strategies for framing issues;
- ✓ presenting testimony

### 9.3.2 Scope & Impact of Social Legislation

Social legislation would also include various social welfare legislations such as laws relating to income maintenance, child welfare, sexual orientation, disability, civil rights, and the malpractice related to nursing homes.

Social Work advocacy must resolve the value and ethical dimension of this problem, if intervention is to be effective. Legislation on topics, such as income maintenance, sexual orientation, civil rights, or the elderly also betray a subtext of value assumptions about poverty, sexuality, race relations, and dependency.

Society is a union of individual units existing together for the fulfillment of multiple needs. This implies the existence of mutual dependence. Yet, society forms itself into various groups with power to exploit the less powerful groups. This division of society into several groups, defined by their capacity to utilize other groups, sometimes necessitates State intervention to ensure that the rights of the 'have-nots' are not engulfed. State intervention is required to safeguard mutual rights and duties.

As society becomes more and more complex; State intervention has to take into account the abrasions with harmful effects arising from increased social interaction. While legislation to protect social groups from one another is not recent, a systematic and conscious effort to protect the rights and privileges of powerless groups is a fairly recent phenomenon and can be linked to the development of democracy and to the concept of the welfare state. Thus, 'social legislation', especially in a democracy, should be a living force, an adjustable instrument, satisfying the requirements of an ever hanging society.

The concept of social legislation serves this purpose and transcends the conservatism of legislators who see law as a practical convenience rather than as a reflection of the total efforts of society as a whole to order and enrich the life of the society. Legislation of today, Oliver Wendell remarks "is to meet the social needs of yesterday. Traditionally, law lags behind social opinion and the function of social legislation is continually to adjust the legal system to society which is constantly outgrowing that system. Legislation calculated to bridge the gulf between the existing laws and the current needs of society, may be called social legislation".

It is clear from the above that law and society are two interdependent terms when viewed in relation to social legislation. Social legislation may be defined as laws designed to retain and strengthen positive human institutions and to reduce the occurrence of negative and socially harmful behaviour, whether of groups or individuals. This is brought about essentially by creating public opinion and a social climate conducive to the desired change. This change in the attitudes and behaviour of people, in turn fuels the process for further legislation, consequently, public opinion and social legislation act in tandem.

It has to be that social legislation only attempts to bridge the gulf between consensual values and their apparent incongruence with prevailing patterns of behaviour, it creates a legal frame for the new situations and provides opportunities for change in the desired direction. Therefore, for social legislation to accommodate change or hasten change, or hasten change, the existence of supportive enlightened public opinion, even if latent, is essential. It does not firmly and equivocally ensure the process of change which depends largely on the willing cooperation of the people.

Primarily, social legislation attempts to achieve two objectives.

- ✓ Firstly, it seeks to establish order and provides justice as well as security;
- ✓ Secondly, it anticipates social needs and provides for changes in the social order.

Social legislation is a vast field covering large areas of human activity, including, as it does, all laws which are enacted in relation to the much needed changes in human society. Social legislation includes; laws affecting social institutions, such as marriage, inheritance and adoption; laws protecting the interests of children, handicapped persons and minorities or powerless groups; laws deal with the reform of certain social evils like vagrancy, delinquency, beginning prostitution, untouchability, and laws governing social security measures. These are only some illustrative areas and it may include many more areas that demand control or reform.

### 9.3.3 Social Change in Social Institutions

Marriage: This is an ancient institution. The marriage of a man and a woman was considered to be a sacred union which could not be frivolously

dissolved. Under the old Hindu law a man was permitted to remarry even though he had a wife or wives living at the time of marriage. Divorce was not permitted except under certain extreme cases and in some communities of lower strata. Presently, marriage among Hindus is governed by Hindu Marriage Act, 1955. According to this law, monogamy has been introduced as a rule of marriage among the Hindus. Divorce has been permitted to the parties as per specified grounds under the Act. The Act has also laid down certain essential conditions of marriage.

One of these conditions imposed is that the bridegroom should have attained the age of 18 years and the bride 15 years at the time of marriage. This condition is in keeping with the Child Marriage Restraint Act, 1929, generally known as the Sarda Act. which prohibits the marriage of girl less than 15 and a boy less than 18 years old. Recently, the age has been raised to 18 years in the case of girls and to 21 years for boys.

Similarly, laws have been enacted pertaining to different religious communities like Christians, Muslims and Parsis, (Muslim Marriage Act, 1938, Indian Christian Marriage Act, 1872, Parsi Marriage and Divorce Act, 1963). In order of facilitate marriage among persons professing different faiths, the Special Marriage Act was passed in 1954. This Act is a step forward towards secularizing marriage laws in India. It enables persons belonging to different religions to enter into a legally valid marriage provided certain conditions envisaged under the Act –are complied with.

**Inheritance:** The law of intestate, as distinguished from testate succession, contains rules which govern devolution of property of deceased person upon other persons, called heirs, on account of their relationship with the deceased person. In ancient days, Hindu women occupied a dependent position in the family and their rights to hold and dispose property were subject to diverse restrictions. All this was incongruous with the changed, modern social conditions.

The Hindu Succession Act, which came into force in 1956, has provided uniformity in the rules applicable to Hindu in respect of intestate succession and has introduced some fundamental and radical changes improving the legal position of women. Under the Hindu Succession Act, where a person dies without making any will of his property, his widow, mother, daughter and sons, all classified together as class one heirs, take one share each. Thus, a married woman takes a share in her husband's property and a daughter in her father's property.

**Adoption:** Adoption of a child, particularly of a son, is a social necessity as well as a security in old age for issueless couples. In India, there is no common law of adoption applicable to all communities and religions. Amongst the Muslims, Christians and Parsis, adoption is not permitted legally. However, for Hindus, adoption is governed by the Hindu Adoption and Maintenance Act, 1956. The Act has laid down certain prerequisites for a valid adoption. It also defines the persons who can adopt, who may be adopted, as well as who may give in adoption.

In, 1965, the Indian Council for Social Welfare drafted the adoption of children bill which was sent to the Ministry of Law. In 1967, Shrimati Tara Sathe introduced the bill in the RajyaSabha. In 1972, the Minister of Law also introduced an adoption bill. But so far the bill has not been made into a law.

**Minority and Guardianship:** The Indian Majority Act, 1875, and the Guardians and Wards Act, 1890, lay down the general law relating to minority and guardianship respectively. These Acts, however, contain exceptions protecting the special provisions of the personal laws of the Hindus and Muslims in some matters. The Hindu law on minority and guardianship has been codified in the Hindu Minority and Guardianship Act, 1956.

According to that Act, 'Guardian' means a person having the care of the person of a minor or of his property or both his person and property, and includes a natural guardian, a guardian appointed by the will of the minor's father or mother, a guardian appointed or declared by a court, and a person empowered to act as such by or under any enactment relating to any court of wards. The Act also defines the powers of a natural guardian under section 8, powers of a testamentary guardian, defector guardian and a guardian appointed by the court.

Muslim law on guardianship is not codified like the Hindu law. Its provisions have to be gathered from judicial pronouncements and other authoritative sources of Mohamedan law. To the extent provisions are made in the Guardians and Wards Act, the law is supplemented by that Act and accordingly all application for the appointment of a guardian, the power of a court to make an order as to guardianship and maters to be considered by a court in appointing a guardian, are governed by the relevant provisions of that Act.

### 9.3.4 Social Justice for SC & ST

The Constitution contains a series of special provisions for the protection and advancement of Scheduled Tribes and Scheduled Castes. These include provisions relating to scheduled areas and tribal areas, reservation of seats House of the People and in State legislative assemblies, claims to services and posts, abrogation of disabilities, and measures in support of educational and economic progress to enable these groups to come up to the level of the rest Provision is also made by several State Governments for benefits to specified back ward classes other than scheduled tribes and scheduled castes.

### *9.4 Social Legislation Instrument for* Social Change

- Create an interaction between the social environment and the legislative process and the impact on the scope of social legislation;

- The ability of the legislative process to address social problems, particularly in relation to historically disenfranchised minorities, such as women and communities of color;

- Contribute to enactment of effective social legislation, with special attention to legislation dealing with wealth status (i.e., poverty and class), minority status (i.e., racial and ethnic, as well as marginalized groups, such as sexual minorities);

- Provides knowledge about the legislative process to strategies for promoting social change, with special attention to how issues of class affect access to mechanisms for change and other factors that influence access, such as race and ethnicity;

- Hone skill in legal analysis; and

- Develop rudimentary competency in legal research.

- To enhance special attention to the impact on the development and implementation of social legislation and its impact on disadvantaged groups and marginalized issues.

- students are introduced to the activity of policy research and analysis

- To investigate how these activities facilitate their ability to make sense of social legislation and to promote social change.

- to demonstrate analytical competence with respect to the concepts

- To promote their understanding of the linkages among the components of the legislative process.

- To understand the factors that contributes to access to the legislative process and to the formulation and implementation of social legislation.

- to demonstrate the connections between legislation and its impact on society, generally, and on disadvantaged groups, specifically

- To argue the implications of differential access and its consequences for framing social legislation that deals with issues of diversity and matters of social and economic justice.

- conditions under which legislation can reliably be used to protect children from abuse and neglect; investigation of alternatives to legislation for the purpose of protecting children; the values dimension

**9.5 Check your progress**

Define Social Legislation

Mention the objectives. of social Legislation

How Social Legislation brings Social Change in Social Institutions

## 9.6 Summary

These policy choices, moreover, do not exist within an institutional vacuum, as they are frequently modified through judicial review and regulations. This modification process is another way of thinking about the implementation of legislative goals, which underscores the link between the enactment of social legislation and its enforcement via courts – which interpret legislative intentions – and regulatory agencies – which carry out legislative objectives.

## 9.7 Key words

Social legislation and roles as an instrument of social change

## 9.8 Self Assessment Questions

How Formulation of Legislative Process is done in Social Legislation

Sketch the Scope and impact of Social Legislation

Justice the Statement Social Legislation Promotes Social Justice for SC & ST

Establish How Social Legislation is an Instrument for Social Change

## 9.9 Further Readings

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London

# Unit X

## 10.1 Structure – Contents of the unit

Constitutional basis for social legislation: fundamental rights and directive principles of state policy

## 10.2 Objectives

- ✓ To study the fundamental rights
- ✓ To understand the significance of directive principles of state policy
- ✓ To realize the constitutional base of social legislation

# CONSTITUTIONAL BASIS FOR SOCIAL LEGISLATION

## 10.3 INTRODUCTION

The Fundamental Rights, Directive Principles of State Policy and Fundamental Duties are sections of the Constitution of India that prescribe the fundamental obligations of the State to its citizens and the duties of the citizens to the State. These sections comprise a constitutional bill of rights for government policy-making and the behaviour and conduct of citizens. These sections are considered vital elements of the constitution, which was developed between 1947 and 1949 by the Constituent Assembly of India.

The **Fundamental Rights** are defined as the basic human rights of all citizens. These rights, defined in Part III of the Constitution, apply irrespective of race, place of birth, religion, caste, creed or gender. They are enforceable by the courts, subject to specific restrictions.

The **Directive Principles of State Policy** is guidelines for the framing of laws by the government. These provisions, set out in Part IV of the Constitution, are not enforceable by the courts, but the principles on which they are based are fundamental guidelines for governance that the State is expected to apply in framing and passing laws.

The Fundamental Duties are defined as the moral obligations of all citizens to help promote a spirit of patriotism and to uphold the unity of India. These duties, set out in Part IV–A of the Constitution, concern individuals and the nation. Like the Directive Principles, they are not legally enforceable.

### 10.4 Fundamental Rights

- ❖ Right to Equality
- ❖ Right to Freedom
- ❖ Right against Exploitation

- ❖ Right to Freedom of Religion
- ❖ Cultural and Educational Rights
- ❖ Right to Constitutional Remedies

**Directive Principles of State Policy**

- Fundamental Duties
- Criticism and analysis
- Relationship between the Fundamental Rights, Directive Principles and Fundamental Duties

## 10.5 Historical Importance

The Fundamental Rights and Directive Principles had their origins in the Indian independence movement, which strove to achieve the values of liberty and social welfare as the goals of an independent Indian state. The development of constitutional rights in India was inspired by historical documents such as England's Bill of Rights, the United States Bill of Rights and France's Declaration of the Rights of Man.

The demand for civil liberties formed an important part of the Indian independence movement, with one of the objectives of the Indian National Congress (INC) being to end discrimination between the British rulers and their Indian subjects. This demand was explicitly mentioned in resolutions adopted by the INC between 1917—1919. The demands articulated in these resolutions included granting to Indians the rights to equality before law, free speech, trial by juries composed at least half of Indian members, political power, and equal terms for bearing arms as British citizens.

The experiences of the First World War, the unsatisfactory Montague-Chelmsford reforms of 1919, and the rise to prominence of M.K. Gandhi in the Indian independence movement marked a change in the attitude of its leaders towards articulating demands for civil rights. The focus shifted from demanding equality of status between Indians and the British to assuring liberty for all Indians.

The Commonwealth of India Bill, drafted by Annie Beasant in 1925, specifically included demands for seven fundamental rights – individual liberty, freedom of conscience, free expression of opinion, freedom of assembly, and non-discrimination on the ground of sex, free elementary education and free use of public spaces. In 1927, the INC resolved to set up a committee to draft a "Swaraj Constitution" for India based on a declaration of rights that would provide safeguards against oppression.

The 11-member committee, led by Motilal Nehru, was constituted in 1928. Its report made a number of recommendations, including proposing guaranteed fundamental rights to all Indians. These rights resembled those of the American Constitution and those adopted by post-war European

countries, and several of them were adopted from the 1925 Bill. Several of these provisions were later replicated in various parts of the Indian Constitution, including the Fundamental Rights and Directive Principles.

In 1931, the Indian National Congress, at its Karachi session, adopted a resolution committing itself to the defense of civil rights and economic freedom, with the stated objectives of putting an end to exploitation, providing social security and implementing land reforms. Other new rights proposed by the resolution were the prohibition of State titles, universal adult franchise and abolition of capital punishment and freedom of movement.

Drafted by Jawaharlal Nehru, the resolution, which later formed the basis for some of the Directive Principles, placed the primary responsibility of carrying out social reform on the State, and marked the increasing influence of socialism and Gandhian philosophy on the independence movement. The final phase of the Independence movement saw a reiteration of the socialist principles of the 1930s, along with an increased focus on minority rights – which had become an issue of major political concern by then – which were published in the Sapru Report in 1945.

The report, apart from stressing on protecting the rights of minorities, also sought to prescribe a "standard of conduct for the legislatures, government and the courts". During the final stages of the British Raj, the 1946 Cabinet Mission to India proposed a Constituent Assembly to draft a Constitution for India as part of the process of transfer of power. The Constituent Assembly of India composed of indirectly elected representatives from the British provinces and Princely states, commenced its proceedings in December 1946, and completed drafting the Constitution of India by November 1949. According to the Cabinet Mission plan, the Assembly was to have an Advisory Committee to advise it on the nature and extent of fundamental rights, protection of minorities and administration of tribal areas.

Accordingly, the Advisory Committee was constituted in January 1947 with 64 members, and from among these a twelve-member sub-committee on Fundamental Rights was appointed under the chairmanship of J.B. Kripalani in February 1947. The sub-committee drafted the Fundamental Rights and submitted its report to the Committee by April 1947, and later that month the Committee placed it before the Assembly, which debated and discussed the rights over the course of the following year, adopting the drafts of most of them by December 1948.

The drafting of the Fundamental Rights was influenced by the adoption of the Universal Declaration of Human Rights by the U.N. General Assembly and the activities of the United Nations Human Rights Commission, as well as decisions of the U.S. Supreme Court in interpreting the Bill of Rights in the American Constitution. The Directive Principles, which were also drafted by the sub-committee on Fundamental Rights, expounded the socialist precepts of the Indian independence movement, and were inspired by similar principles contained in the Irish Constitution. The Fundamental

Duties were later added to the Constitution by the 42nd Amendment in 1976.

## Fundamental Rights

### Introduction

The Fundamental Rights, embodied in Part III of the Constitution, guarantee civil rights to all Indians, and prevent the State from encroaching on individual liberty while simultaneously placing upon it an obligation to protect the citizens' rights from encroachment by society. Seven fundamental rights were originally provided by the Constitution – right to equality, right to freedom, right against exploitation, right to freedom of religion, cultural and educational rights, right to property and right to constitutional remedies.

However, the right to property was removed from Part III of the Constitution by the 44th Amendment in 1978.The purpose of the Fundamental Rights is to preserve individual liberty and democratic principles based on equality of all members of the society. They act as limitations on the powers of the legislature and executive, under Article 13, and in case of any violation of these rights the Supreme Court of India and the High Courts of the states have the power to declare such legislative or executive action as unconstitutional and void.

These rights are largely enforceable against the State, which as per the wide definition provided in Article 12, includes not only the legislative and executive wings of the federal and state governments, but also local administrative authorities and other agencies and institutions which discharge public functions or are of a governmental character

The Fundamental Rights are not absolute and are subject to reasonable restrictions as necessary for the protection of public interest. The Fundamental Rights could be amended, subject to judicial review in case such an amendment violated the basic structure of the Constitution. The Fundamental Rights can be enhanced, removed or otherwise altered through a constitutional amendment, passed by a two-thirds majority of each House of Parliament.

The imposition of a state of emergency may lead to a temporary suspension any of the Fundamental Rights, excluding Articles 20 and 21, by order of the President. The President may, by order, suspend the right to constitutional remedies as well, thereby barring citizens from approaching the Supreme Court for the enforcement of any of the Fundamental Rights, except Articles 20 and 21, during the period of the emergency. Parliament may also restrict the application of the Fundamental Rights to members of the Indian Armed Forces and the police, in order to ensure proper discharge of their duties and the maintenance of discipline, by a law made under Article 33.

## Right to Equality

The Right to Equality is one of the chief guarantees of the Constitution. It is embodied in Articles 14-16, which collectively encompass the general principles of equality before law and non-discrimination, and Articles 17-18 which collectively further the philosophy of social equality. Article 14 guarantees equality before law as well as equal protection of the law to all persons within the territory of India.

This includes the equal subjection of all persons to the authority of law, as well as equal treatment of persons in similar circumstances. The latter permits the State to classify persons for legitimate purposes, provided there is a reasonable basis for the same, meaning that the classification is required to be non-arbitrary, based on a method of intelligible differentiation among those sought to be classified, as well as have a rational relation to the object sought to be achieved by the classification.

Article 15 prohibits discrimination on the grounds only of religion, race, caste, sex, place of birth, or any of them. This right can be enforced against the State as well as private individuals, with regard to free access to places of public entertainment or places of public resort maintained partly or wholly out of State funds.

However, the State is not precluded from making special provisions for women and children or any socially and educationally backward classes of citizens, including the Scheduled Castes and Scheduled Tribes. This exception has been provided since the classes of people mentioned therein are considered deprived and in need of special protection.

Article 16 guarantees equality of opportunity in matters of public employment and prevents the State from discriminating against anyone in matters of employment on the grounds only of religion, race, caste, sex, descent, place of birth, place of residence or any of them. It creates exceptions for the implementation of measures of affirmative action for the benefit of any backward class of citizens in order to ensure adequate representation in public service, as well as reservation of an office of any religious institution for a person professing that particular religion.

The practice of untouchability has been declared as an offence punishable by law under Article 17, and the Protection of Civil Rights Act, 1955 has been enacted by the Parliament to further this objective. Article 18 prohibits the State from conferring any titles other than military or academic distinctions, and the citizens of India cannot accept titles from a foreign State. Thus, Indian aristocratic titles and titles of nobility conferred by the British have been abolished. However, awards such as the Bharat Ratna have been held to be valid by the Supreme Court on the ground that they are merely decorations and cannot be used by the recipient as a title.

## Right to Freedom

The Right to Freedom is covered in Articles 19-22, with the view of guaranteeing individual rights that were considered vital by the framers of

the Constitution, and these Articles also include certain restrictions that may be imposed by the State on individual liberty under specified conditions. Article 19 guarantees six freedoms in the nature of civil rights, which are available only to citizens of India.

These include the freedom of speech and expression, freedom of assembly, freedom of association without arms, freedom of movement throughout the territory of India and the freedom to practice any profession. All these freedoms are subject to reasonable restrictions that may impose on them by the State, listed under Article 19 itself. The grounds for imposing these restrictions vary according to the freedom sought to be restricted, and include national security, public order, decency and morality, contempt of court, incitement to offences, and defamation. The State is also empowered, in the interests of the general public to nationalize any trade, industry or service to the exclusion of the citizens.

The Constituent Assembly in 1948 eventually omitted the phrase "due process" in favour of "procedure established by law". As a result, Article 21, which prevents the encroachment of life or personal liberty by the State except in accordance with the procedure established by law, was, until 1978, construed narrowly as being restricted to executive action. However; it may be noted that any law laying down a procedure must be just, fair and reasonable, and effectively reading due process into Article 21.

In the same case, the Supreme Court also ruled that "life" under Article 21 meant more than a mere "animal existence"; it would include the right to live with human dignity and all other aspects which made life "meaningful, complete and worth living".

Subsequent judicial interpretation has broadened the scope of Article 21 to include within it a number of rights including those to livelihood, clean environment, good health, speedy trial and humanitarian treatment while imprisoned. The right to education at elementary level has been made one of the Fundamental Rights under Article 21A by the 86th Constitutional amendment of 2002.

Article 20 provides protection from conviction for offences in certain respects, including the rights against ex post facto laws, double jeopardy and freedom from self-incrimination. Article 22 provides specific rights to arrested and detained persons, in particular the rights to be informed of the grounds of arrest, consult a lawyer of one's own choice, be produced before a magistrate within 24 hours of the arrest, and the freedom not to be detained beyond that period without an order of the magistrate.

The Constitution also authorizes the State to make laws providing for preventive detention, subject to certain other safeguards present in Article 22. The provisions pertaining to preventive detention were discussed with skepticism and misgivings by the Constituent Assembly, and were reluctantly approved after a few amendments in 1949.

Article 22 provides that when a person is detained under any law of preventive detention, the State can detain such person without trial for only

three months, and any detention for a longer period must be authorized by an Advisory Board. The person being detained also has the right to be informed about the grounds of detention, and be permitted to make a representation against it, at the earliest opportunity.

**Right against Exploitation**

Child labor and Beggar is prohibited under Right against exploitation. The Right against Exploitation, contained in Articles 23-24, lays down certain provisions to prevent exploitation of the weaker sections of the society by individuals or the State. Article 23 provides prohibits human trafficking, making it an offence punishable by law, and also prohibits forced labour or any act of compelling a person to work without wages where he was legally entitled not to work or to receive remuneration for it.

However, it permits the State to impose compulsory service for public purposes, including conscription and community service. The Bonded Labour system (Abolition) Act, 1976, has been enacted by Parliament to give effect to this Article. Article 24 prohibits the employment of children below the age of 14 years in factories, mines and other hazardous jobs. Parliament has enacted the Child Labour (Prohibition and Regulation) Act, 1986, providing regulations for the abolition of, and penalties for employing, child labour, as well as provisions for rehabilitation of former child labourers.

**Right to Freedom of Religion**

The Right to Freedom of Religion, covered in Articles 25-28, provides religious freedom to all citizens and ensures a secular State in India. According to the Constitution, there is no official State religion, and the State is required to treat all religions impartially and neutrally. Article 25 guarantees all persons the freedom of conscience and the right to practice, preach and propagate any religion of their choice.

This right is, however, subject to public order, morality and health, and the power of the State to take measures for social welfare and reform. The right to propagate, however, does not include the right to convert another individual, since it would amount to an infringement of the other's right to freedom of conscience.

Article 26 guarantees all religious denominations and sects, subject to public order, morality and health, to manage their own affairs in matters of religion, set up institutions of their own for charitable or religious purposes, and own, acquire and manage property in accordance with law. These provisions do not derogate from the State's power to acquire property belonging to a religious denomination.

The State is also empowered to regulate any economic, political or other secular activity associated with religious practice. Article 27 guarantees that no person can be compelled to pay taxes for the promotion of any particular religion or religious institution. Article 28 prohibits religious instruction in a wholly State-funded educational institution, and

educational institutions receiving aid from the State cannot compel any of their members to receive religious instruction or attend religious worship without their (or their guardian's) consent.

**Cultural and Educational Rights**

The Cultural and Educational rights, given in Articles 29 and 30, are measures to protect the rights of cultural, linguistic and religious minorities, by enabling them to conserve their heritage and protecting them against discrimination. Article 29 grants any section of citizens having a distinct language, script culture of its own, and the right to conserve and develop the same, and thus safeguards the rights of minorities by preventing the State from imposing any external culture on them.

It also prohibits discrimination against any citizen for admission into any educational institutions maintained or aided by the State, on the grounds only of religion, race, caste, language or any of them. However, this is subject to reservation of a reasonable number of seats by the State for socially and educationally backward classes, as well as reservation of up to 50% of seats in any educational institution run by a minority community for citizens belonging to that community.

Article 30 confers upon all religious and linguistic minorities the right to set up and administer educational institutions of their choice in order to preserve and develop their own culture, and prohibits the State, while granting aid, from discriminating against any institution on the basis of the fact that it is administered by a religious or cultural minority.

The term "minority", while not defined in the Constitution, has been interpreted by the Supreme Court to mean any community which numerically forms less than Fifty per cent of the population of the state in which it seeks to avail the right under Article 30. In order to claim the right, it is essential that the educational institution must have been established as well as administered by a religious or linguistic minority.

Further, the right under Article 30 can be availed of even if the educational institution established does not confine itself to the teaching of the religion or language of the minority concerned, or a majority of students in that institution do not belong to such minority. This right is subject to the power of the State to impose reasonable regulations regarding educational standards, conditions of service of employees, fee structure, and the utilization of any aid granted by it.

**10.6 Right to Constitutional Remedies**

The Right to Constitutional Remedies empowers citizens to approach the Supreme Court of India to seek enforcement, or protection against infringement, of their Fundamental Rights. Article 32 provides a guaranteed remedy, in the form of a Fundamental Right itself, for enforcement of all the other Fundamental Rights, and the Supreme Court is designated as the protector of these rights by the Constitution.

The Supreme Court has been empowered to issue **writs**, namely;

- Habeas corpus,
- Mandamus,
- Prohibition,
- Certiorari and
- Quo warranto,

The High Courts have been empowered under Article 226 – which is not a Fundamental Right in itself – to issue these prerogative writs even in cases not involving the violation of Fundamental Rights.

The Supreme Court has the jurisdiction to enforce the Fundamental Rights even against private bodies, and in case of any violation, award compensation as well to the affected individual. Exercise of jurisdiction by the Supreme Court can also be suo motu or on the basis of a public interest litigation. This right cannot be suspended, except under the provisions of Article 359 when a state of emergency is declared.

**10.7 Nature of Fundamental Rights**

* Fundamental Rights are those rights and freedoms of the people of India, which enjoy constitutional recognition and guarantee.

*The Supreme Court of India and State High Courts have the power to enforce Fundamental Rights. Supreme court is the guardian protector of fundamental rights.

* A very detailed Bill of Rights. It contains 24 Articles from 12 to 35. These describe in detail the fundamental rights of the people of India.

* People enjoy only the rights given in the Constitution. The Constitution of India does not give any recognition to natural or un-granted rights People of India enjoy only those fundamental rights.

* Special Rights for the Minorities. The India bill of Rights guarantees some special rights to the minorities. Cultural and educational rights have been granted to them. It abolishes untouched and makes it's a crime. It has also granted special protections to women, children and the weaker sections of society.

* Lack of Social and Economic Rights: It grants only civil rights and freedoms. Rights like Right to Work, Right to Leisure, and Right to Social Security have not been included in the India Bill of Rights.

* Rights are Not Absolute: The fundamental rights of the people are not absolute. Some limitations have been placed on them. While describing the scope of each right, the Constitution also describes its limitations.

These have been laid down for protecting public health, public order, morality and security of India.

* Rights are equally binding upon all: The Constitution makes the rights binding upon all authorities the Union, the States, the Parliament, and all other State authorities.

* Enforcement of Rights. The Constitution not only grants but also guarantees rights. It provides legal and constructional protection t the fundamental rights. The citizens have been given the right to seek the protection of the Supreme Court and other courts for getting their rights enforced.

* Parliament has the power to amend Fundamental Rights: The fundamental rights contained in the constitution can be amended by the Parliament. The Parliament has, in practice, exercised this power on several occasions.

* Provision for the Suspension of Rights: The constitution provides for a suspension of fundamental rights during an emergency. However, such a suspension automatically ends when the emergency ceases or when the President withdraws it.

* Rights to Property are not a Fundamental Right. Initially, the Constitution granted to the citizens the fundamental right to property. However, because of the hindrances posed by this right in the way of implementation of some socio-economic reforms, right to property was deleted from the list of Fundamental Rights. It was made a legal right under Article 300A. This was done by the 44th Amendment of The Constitution. Now right to property is a legal right and not a fundamental right of the people.

* Right of Education. By 86th Amendment Act, Article 21A has been in the Bill of Rights. It gives to the children between the ages of 6 to 14 years, the Rights of Education.

* Constitutional Superiority of Fundamental Rights. The fundamental rights of the citizens are superior to ordinary laws and the Directive Principals of State Policy. No law can violate Fundamental Rights.

* Institution of National Human Rights Commission (NHRC). With a view to check possible violations of National Human Rights Commission has been working in India since 1993. It is five-member commission.

**Conclusion:** Fundamental Rights are very essential for the citizens of the country. These have to be, however, used in the interest of the unity and security of the state as well as without in any way against public order, public interest and morality. The continuation of conflicts over caste, the destruction of anti-national and anti-social elements, the activities of the terrorists, and the continued need for safeguarding the security, unity and integrity of the nation, all justify the existence of some limitations on

fundamental rights.

These features clearly bring out the nature of Indian Bill of Rights. It is indeed a very detailed an essential part of the Constitution of India. It grants and guarantees equal fundamental rights and freedoms to all people of India. It constitutes a very strong pillar of India Democracy.

## 10.8 Directive Principles of State Policy

### Introduction

The Directive Principles of State Policy, embodied in Part IV of the Constitution, are directions given to the State to guide the establishment of an economic and social democracy, as proposed by the Preamble. They set forth the humanitarian and socialist instructions that were the aim of social revolution envisaged in India by the Constituent Assembly.

The provisions contained in this Part IV shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws. In this Part, unless the context otherwise requires, “the State” has the same meaning as in Part III

Application of the principles contained in this Part State to secure a social order for the promotion of welfare of the people. State is expected to keep these principles in mind while framing laws and policies, even though they are non-justiciable in nature.

### 10.8.1 Nature of Directive Principles

- It is non-justiciable
- Ideals that the State ought to strive towards achieving;
- Directions for the exercise of legislative and executive power;
- Rights of the citizens which the State must aim towards securing.
- Directive Principles act as a check on the State
- Act as a yardstick in the hands of the electorate to measure the performance of a government

Thus, they serve to emphasize the welfare state model of the Constitution and emphasize the positive duty of the State to promote the welfare of the people by affirming social, economic and political justice, as well as to fight income inequality and ensure individual dignity.

Article 39 lays down certain principles of policy to be followed by the State, including providing an adequate means of livelihood for all citizens, equal pay for equal work for men and women, proper working conditions, reduction of the concentration of wealth and means of production from the hands of a few, and distribution of community resources to "sub serve the

common good".

These clauses highlight the Constitutional objectives of building an egalitarian social order and establishing a welfare state, by bringing about a social revolution assisted by the State, and has been used to support the nationalization of mineral resources as well as public utilities. Further, several legislations pertaining to agrarian reform and land tenure have been enacted by the federal and state governments, in order to ensure equitable distribution of land resources.

Articles 41- 43 are mandate to the State Governments to endeavour to secure to all citizens the right to work, a living wage, social security, maternity relief, and a decent standard of living. These provisions aim at establishing a socialist state as envisaged in the Preamble. Article 43 also places upon the State the responsibility of promoting cottage industries, and the federal government has, in furtherance of this, established several Boards for the promotion of khadi, handlooms etc., in coordination with the state governments.

Article 39A requires the State to provide free legal aid to ensure that opportunities for securing justice are available to all citizens irrespective of economic or other disabilities. Article 43A mandates the State to work towards securing the participation of workers in the management of industries.

The State, under Article 46, is also mandated to promote the interests of and work for the economic uplift of the scheduled castes and scheduled tribes and protect them from discrimination and exploitation. Several legislations, including two Constitutional amendments, have been enacted by the federal government to give effect to this provision.

Article 44 encourages the State to secure a uniform civil code for all citizens, by eliminating discrepancies between various personal laws currently in force in the country. However, this has remained a "dead letter" despite numerous reminders from the Supreme Court to implement the provision. Article 45 originally mandated the State to provide free and compulsory education to children between the ages of six and fourteen years.

After the 86th Amendment in 2002, this has been converted into a Fundamental Right and replaced by an obligation upon the State to secure childhood care to all children below the age of six. Article 47 commits the State to raise the standard of living and improve public health, and prohibit the consumption of intoxicating drinks and drugs injurious to health.As a consequence, partial or total prohibition has been introduced in several states, but financial constraints have prevented its full-fledged application.

The State is also mandated by Article 48 to organize agriculture and animal husbandry on modern and scientific lines by improving breeds and prohibiting slaughter of cattle. Article 48A mandates the State to protect

the environment and safeguard the forests and wildlife of the country, while Article 49 places an obligation upon the State to ensure the preservation of monuments and objects of national importance.

Article 50 requires the State to ensure the separation of judiciary from executive in public services, in order to ensure judicial independence, and federal legislation has been enacted to achieve this objective. The State, according to Article 51, must also strive for the promotion of international peace and security, and Parliament has been empowered to make laws giving effect to international treaties.

### 10.8.2 List of Directive Principles of State Policy

**Art. 38.** The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life.

The State shall, in particular, strive to minimize the inequalities in income, and endeavour to eliminate inequalities in status, facilities and opportunities, not only amongst individuals but also amongst groups of people residing in different areas or engaged in different vocations.

**Art. 39.** The State shall, in particular, direct its policy towards securing:

- that the citizens, men and women equally, have the right to an adequate means of livelihood;
- that the ownership and control of the material resources of the community are so distributed as best to sub serve the common good;
- that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;
- that there is equal pay for equal work for both men and women;
- that the health and strength of workers, men and women,
- the tender age of children are not abused and
- that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength;
- that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity to protect childhood and
- Youth are protected against exploitation and against moral and material abandonment.

Art. **39A.** The State shall secure that the operation of the legal system

promotes justice, on a basis of equal opportunity, and shall, in particular, provide free legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.

**Art. 40.** The State shall take steps to organize village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self- government.

**Art. 41.** The State shall, within the limits of its economic capacity and development, make effective provision for securing the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement, and in other cases of undeserved want.

**Art. 42.** The State shall make provision for securing just and humane conditions of work and for maternity relief.

**Art. 43.** The State shall endeavour to secure, by suitable legislation or economic organization or in any other way, to all workers, agricultural, industrial or otherwise, work, a living wage, conditions of work ensuring a decent standard of living, Equal justice, free legal aid, provision for just and humane conditions of work and maternity relief, Living wage, etc., for workers.

The state shall ensure a standard of life and full enjoyment of leisure and social and cultural opportunities and, in particular, the State shall endeavour to promote cottage industries on an individual or co-operative basis in rural areas.

Art.**43A.** The State shall take steps, by suitable legislation or in any other way, to secure the participation of workers in the management of undertakings, establishments or other organizations engaged in any industry.

**Art. 44.** The State shall endeavour to secure for the citizens a uniform civil code throughout the territory of India.

**Art.45.** The State shall endeavour to provide, within a period of ten years from the commencement of this Constitution, for free and compulsory education for all children until they complete the age of fourteen years.

**Art. 46.** The State shall promote with special care the educational and economic interests of the weaker sections of the people, and, in particular, of the Scheduled Castes and the Scheduled Tribes, and shall protect them from social injustice and all forms of exploitation.

**Art. 47.** The State shall regard the raising of the level of nutrition and the standard of living of its people and the improvement of public health as among its primary duties and, in particular, the State shall endeavour to bring about prohibition of the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health.

**Art. 48.** The State shall endeavour to organize agriculture and animal husbandry on modern and scientific lines and shall, in particular, take steps for preserving and improving the breeds, and prohibiting the slaughter, of cows and calves and other milk and draught cattle.

Art. 45. Provision for early childhood care and education to children below the age of six years. The State shall endeavour to provide early childhood care and education for all children until they complete the age of six years.

The state shall promote educational and economic interests of Scheduled Castes, Scheduled Tribes and other weaker sections. The duty of the State is to raise the level of nutrition and the standard of living and to improve public health, agriculture and animal husbandry.

Art. **48A.** The State shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country.

**Art. 49.** It shall be the obligation of the State to protect every monument or place or object of artistic or historic interest, to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be.

**Art. 50.** The State shall take steps to separate the judiciary from the executive in the public services of the State.

**51.** The State shall endeavour to—

- ✓ Promote international peace and security;
- ✓ Maintain just and honorable relations between nations;
- ✓ Foster respect for international law and treaty obligations in the dealings of organized peoples with one another;
- ✓ Encourage settlement of international disputes by arbitration.

### 10.9 Check your progress

What do you understand by Right to Freedom

Mention the objectives of Right to Freedom of Religion

Define Cultural and Educational Rights

What are the Rights to Constitutional Remedies

### 10.10 Summary

Though Directive Principles of State Policy popularly known as DPSP; is not justiciable, it is mandatory on the part of the state governments to promote such articles through various laws, enactments, programmes and schemes to ensure various target groups a decent standard of living. The dignity and worth of the individual need to be respected as envisaged in the constitution of the India. DPSP need to be looked at an angle of

maintaining social justice and harmony to make India a peaceful one.

## 10.11 Key words

Constitutional basis for social legislation: fundamental rights and directive principles of state policy

## 10.12 Self Assessment Questions

- Explain the nature of Fundamental Rights
- Describe the role of Directive Principles of State Policy
- Elucidate the nature of Directive Principles
- Bring out the list of Directive Principles of State Policy

## 10.13 Further Readings

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbay

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi

Shankaran R. & Rodirgues, A Handbook to the management of Voluntary Organizations, Alpha Publishers, Madras

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London

# Unit XI

## 11.1 Structure – Contents of the unit

Laws relating to marriage: Hindu, Muslim, Christian and personal laws relating to marriage

## 11.2 Objectives

- ❖ To study the various provisions of Hindu marriage act
- ❖ To understand the objectives of Muslim marriage act
- ❖ To analyse the essence of Christian marriage act
- ❖ To observe the various personal laws relating to marriage

# HINDU MARRIAGE ACT

## 11.3 INTRODUCTION

Marriage is one of the important social institutions to promote and safeguard the interests, feelings, emotions of the couples and to provide care and protection to the off springs. It is considered primarily to satisfy the sexual needs of the persons entering into contract.

There is also a grave need to understand as professional social workers; the legal aid, lokadalats and public interest litigations so as to better practice the profession.

**Conditions for a Hindu marriage.**

A marriage may be solemnized between any two hindus, if the following conditions are fulfilled, namely:-

(i) neither party has a spouse living at the time of the marriage

(ii) at the time of the marriage, neither party-

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity or epilepsy;]

(iii) the bridegroom has completed the age of 2 [twenty-one years] and the bride the age of 2 [eighteen years] at the time of the marriage;

(iv) the parties are not within the degrees of prohibited relationship unless

the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two.

**Ceremonies for a Hindu marriage**

A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto.

Where such rites and ceremonies include the saptapadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken.

**Registration of Hindu marriages.**

For the purpose of facilitating the proof of Hindu marriages, the State Government may make rules providing that the parties to any of such marriage may have the particulars relating to their marriage entered in such manner and subject to such conditions as may be prescribed in a Hindu Marriage Register kept for the purpose.

Notwithstanding any thing contained in sub-section (1), the State Government may, if it is of opinion that it is necessary or expedient so to do, provide that the entering of the particulars referred to in sub-section (1) shall be compulsory in the State or in any part thereof, whether in all cases or in such cases as may be specified, and where any such direction has been issued, any person contravening any rule made in this behalf shall be punishable with fine which may extend to twenty-five rupees.

All rules made under this section shall be laid before the State Legislature, as soon as may be, after they are made.

The Hindu Marriage Register shall at all reasonable times be open for inspection, and shall be admissible as evidence of the statements therein contained and certified extracts therefrom shall, on application, be given by the Registrar on payment to him of the prescribed fee.

### 11.3.1 Restitution of Conjugal Rights and Judicial Separation

**Restitution of conjugal right.**

When either the husband or the wife has, without reasonable excuse, withdrawn from the society of the other, the aggrieved party may apply, by petition to the district court, for restitution of conjugal rights land the court, on being satisfied of the truth of the statements made in such petition and that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights accordingly.

Explanation.-Where a question arises whether there has been reasonable excuse for withdrawal from the society, the burden of proving reasonable excuse shall be on the person who has withdrawn from the society.

**Judicial separation.**

Either patty to a marriage, whether solemnized before or after the commencement of this Act, may present a petition praying for a decree for judicial separation on any of the grounds specified in sub-section (1) of section 13, and in the case of a wife also on any of the grounds specified in sub-section (2) thereof, as grounds on which a petition for divorce might have been presented.

Where a decree for judicial separation has been passed, it shall no longer be obligatory for the petitioner to cohabit with the respondent, but the court may, on the application by petition of either party and on being satisfied of the truth of the statements made in such petition, rescind the decree if it considers it just and reasonable to do so.

### 11.3.2 Nullity of Marriage And Divorce

**Void marriages.**

Any marriage solemnized after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto 4[against the other party], be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of section 5.

**Voidable marriages.**

Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds, namely:-

(a) that the marriage has not been consummated owing to the importance of the respondent ; or

(b) that the marriage is in contravention of the condition specified in clause (ii) of section 5 ; or

(c) that the consent of the petitioner, or where the consent of the guardian in marriage of the petitioner 6 [was required under section 5 as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978], (2 of 1978) the consent of such guardian was obtained by force 1 [or by fraud as to the nature of the ceremony or as to any material fact or circumstances concerning the respondent]; or

(d) that the respondent was at the time of the marriage pregnant by some person other than the petitioner.

Notwithstanding anything contained in sub-section (1), no petition for annulling a marriage-

If the petition is presented more than one year after the force had ceased to operate or, as the case may be, the fraud had been discovered; or

The petitioner has, with his or her full consent, lived with the other party to the marriage as husband or wife-after the force had ceased to operate or, as the case may be, the fraud had been discovered;

That the petitioner was at the time of the marriage ignorant of the facts alleged;

That proceedings have been instituted in the case of a marriage solemnized before the commencement of this Act within one year of such commencement and in the case of marriages solemnized after such commencement within one year from the date of the marriage; and

That marital intercourse with the consent of the petitioner has not taken place since the discovery by the petitioner of the existence of 2[the said ground].

**Divorce.**

Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party-

(i) has, after the solemnization of the marriage, had voluntary, sexual intercourse with any person other than his or her spouse ; or

(ia) has, after the solemnization of the marriage, treated the petitioner with cruelty; or

(ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petition; or]

(ii) has ceased to be a Hindu by conversion to another religion; or

(iii) has been incurably of unsound mind, or has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

**Explanation.-In this clause,-**

(a) the expression "mental disorder" means mentalillness, arrested or incomplete development of mind, psychopathic disorder or any other disorder or disability of mind and includes schizophrenia;

(b) the expression "psychopathic disorder" means a persistent disorder or disability of mind (whether or not including sub-normality of intelligence) which results in abnormally aggressive or seriously

irresponsible conduct on the part of the other party, and whether or not it require or is susceptible to medical treatment; or]

(iv) has been suffering from a virulent and incurable from of leprosy; or

(v) has been suffering from venereal disease in a communicable from ; or

(vi) has renounced the world by entering any religious order; or

(vii) has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of it, had that party been alive.

Explanation.-In this sub-section, the expression "desertion" means the desertion of the petitioner by the other party to the marriage without reasonable cause and without the consent or against the wish of such party, and includes the wilful neglect of the petitioner by the other party to the marriage, and its grammatical variations and cognate expressions shall be construed accordingly.

Either party to a marriage, whether solemnized before or after the commencement of this Act, may also present a petition for the dissolution of the marriage by a decree of divorce on the ground-

(i) that there has been no resumption of cohabitation as between the parties to the marriage for a period of 5[one year] or upwards after the passing of a decree for judicial separation in a proceeding to which they were parties; or

(ii) that there has been no restitution of conjugal rights as between the parties to the marriage for a period of 5[one Collected by the year or upwards after the passing of a decree for restitution of conjugal rights in a proceeding to which they were parties.

A wife may also present a petition for the dissolution of her marriage by a decree of divorce on the ground,-

(i) in the case of any marriage solemnized before the commencement of this Act, that the husband had married again before such commencement or that any other wife of the husband married before such commencement was alive at the time of the solemnization of the marriage of the petitioner:

Provided that in either case the other wife is alive at the time of the presentation of the petition ; or

(ii). that the husband has, since the solemnization of the marriage, been guilty of rape, sodomy or bestiality; or

(iii) that in suit under section 18 of the Hindu Adoptions and Maintenance Act, 1956, (78 of 1956.) or in a proceeding under section 125 of the Code of Criminal Procedure, 1973 (2 of 1974'

(iv) that her marriage (whether consummated or not) was Solemnized before she attained the age of fifteen years and she has repudiated the marriage after attaining that age but before attaining the age of eighteen years.

Alternate relief in divorce proceedings. In any proceeding under this Act, on a petition for dissolution of marriage by a decree of divorce, except in so far as the petition is founded on the grounds mentioned in clauses (ii), (vi) and (vii) of sub-section (1) of section 13, the court may, if it considers it just so to do having regard to the circumstances of the case, pass instead a decree for judicial separation.

Divorce by mutual consent. (1) Subject to the provisions of this Act a petition for dissolution of marriage by a decree of divorce may be presented to the district court by both the parties to a marriage together, whether such marriage was solemnized before or after the commencement of the Marriage Laws (Amendment) Act, 1976, (68 of 1976.) on the ground that they have been living separately for a period of one year or more, that they have not been able to live together and that thy have mutually agreed that the marriage should be dissolved.

On the motion of both the parties made not earlier than six months after the date of the presentation of the petition referred to in sub-section (1) and not later than eighteen months after the said date, if the petition is not withdrawn in the meantime, the court shall, on being satisfied, after hearing the parties and after making such inquiry as it thinks fit, that a marriage has been solemnized and that the averments in the petition are true, pass a decree of divorce declaring the marriage to be dissolved with effect from the date of the decree.]

No petition for divorce to be presented within one year of marriage.

No petition for divorce to be presented within one year of marriage. (1)Notwithstanding anything contained in this Act, it shall not be competent for any court to entertain any petition for dissolution of a marriage by a decree of divorce, 1[unless at the date of the presentation of the petition one year has elapsed] since the date of the marriage:

Provided that the court may, upon application made to it in accordance with such rules as may be made by the High Court in. that behalf, allow a petition to be presented 1[before one year has elapsed] since the date of the marriage on the ground that the case is one of exceptional hardship to the petitioner or of exceptional depravity on the part of the respondent.

If it appears to the court at the hearing of the petition that the petitioner obtained leave to present the petition by any misrepresentation or concealment of the nature of the case, the court may, if it pronounces a decree, do so subject to the condition that the decree shall not have effect

until after the expiry of one year from the date of the marriage or may dismiss the petition without prejudice to any petition which may be brought after the 1[expiration of the said one year] upon the same or substantially the same facts as those alleged in support of the petition so dismissed.

In disposing of any application under this section for leave to present a petition for divorce before the expiration of one year from the date of the marriage, the court shall have regard to the interests of any children of the marriage and to the question whether there is a reasonable probability of a reconciliation between the parties before the expiration of the said one year.

**Custody of children.**

In any proceeding under this Act, the court may, from time to time, pass such interim orders and make such provisions in the decree as it may deem just and proper with respect to the custody, maintenance and education of minor children, consistently with their wishes, wherever possible, and may, after the decree, upon application by petition for the purpose, make from time to time, all such, orders and provisions with respect to the custody,

**11.4The Dowry PROHIBITION act, 1961**

**Introduction**

Dowry has been a widespread social evil among the Hindus. Now it has spread to other communities also such as Muslims and Christians as well. The Parliament passed the Dowry Prohibition Act 1961 with a view of eradicate the rampant evil. The Act has been amended twice by the Amendment Acts of 1984 and 1986. Section 2 of the Act defines dowry as any property or valuable security given or agreed to be given directly or indirectly, (a) by one party to the marriage to the other party to the marriage; or (b) by parents of either party to the marriage or by any other person to either party to the marriage or to any person at or before or at any time after the marriage in connection with the marriage of the said parties.

The Act does not prohibit the traditional giving of wedding presents to the bride or bridegroom at the time of marriage. However, the value of the presents should not be excessive having regard to the financial status of the person by whom such presents are given. All presents made to the bride or bridegroom are to be entered in a list maintained in accordance with the rules made under the Act, if any person gives or abets the giving of dowry, he shall be punishable with imprisonment for a term which shall be less than five years and with tine which shall be less than fifteen thousand rupees or the amount of the value of such dowry, which is more.

Section 6 protects the interest of the wife by providing that any person who receives dowry is under obligation to transfer it to the bride. If the bride dies before receiving it, her heirs are entitled to claim it from the person holding it. The offences under the Act are cognizable, non-bailable and non-compoundable.

**Demand of Dowry**

Under Section 4 of the Act demand for dowry is also punishable. If any person demands any dowry, directly or indirectly, from the parents or other relatives or guardian of the bride or bridegroom, he shall be punishable with imprisonment

“Legislation cannot by itself normally solve the deep rooted social problems. One has to approach them in other way too, but legislation is necessary and essential, so that it may give that push and have those educative factors as well as the legal sanctions behind it which help public opinion to be given a certain shape”.

.**Definition of Dowry**

In this Act, "dowry" means any property or valuable security given or agreed to be given either directly or indirectly-

(a) by one party to a marriage to the other party to the marriage; or

(b) by the parents of either party to a marriage or by a other person, to either party to the marriage or to any other person;

at or before or after the marriage us consideration for the marriage of the said parties, but does not include dower or mahr in the case of persons to whom the Muslim Personal Law (Shariat) applies.

Explanation I.-For the removal of doubts, it is hereby declare that any presents made at the time of a marriage to either party to the marriage in the form of cash, ornaments, clothes or other articles, shall not be deemed to be dowry within the meaning of this section, unless they are made as consideration for the marriage of the said parties.

Explanation II.-The expression "valuable security" has the same meaning as in section 30 of the Indian Penal Code. (45 of 1860.)

**Penalty for giving or taking dowry**

Penalty for giving or taking dowry. If any person, after the commencement of this Act, gives or takes or abets the giving or taking of dowry, he shall be punishable with imprisonment which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

**Penalty for demanding dowry**.

If any person, after the commencement of this Act, demands, directly or indirectly, from the parents or guardian of a bride or bridegroom, as the case may be, any dowry, he shall be punishable with imprisonment which may extend to six months, or with fine which may extend to five thousand rupees, or with both:

Provided that no court shall take cognizance of any offence under this section except with the previous sanction of the State Government or of such officer as the State Government may, by general or special order, specify in this behalf.

**Agreement for giving or taking dowry to be avoid.**

Any agreement for the giving or taking of dowry shall be void.

**Dowry to be for the benefit of the wife or her heirs:** Where any dowry is received by any person other than the woman in connection with whose marriage it is given, that person shall transfer it to the woman-

- if the dowry was received before marriage, within one year after the date of marriage; or
- if the dowry was received at the time of or after the marriage, within one year after the date of its receipt; or
- if the dowry was received when the woman was a minor, within one year after she has attained the age of eighteen years; and pending such transfer, shall hold it in trust for the benefit of the woman.

If any person fails to transfer any property as required by subsection (1) and within the time limited there for, he shall be punishable with imprisonment which may extend to six months, or with fine which may extend to five thousand rupees, or with both; but such punishment shall not absolve the person from his obligation to transfer the property as required by sub-section (1).

Where the woman entitled to any property under sub-section (1) dies before receiving it, the heirs of the woman shall be entitled to claim it from the person holding it for the time being.

Nothing contained in this section shall affect the provisions of section 3 or section 4.

**Cognizance of offences.**

Notwithstanding anything contained in the Code of Criminal Procedure, 1898, (5 of 1898.)--

(a) no court inferior to that of a presidency magistrate or a magistrate of the first class shall try any offence under this Act;

(b) no court shall take cognizance of any such offence except on a complaint made within one year from the date of the offence;

(c) it shall be lawful for a presidency magistrate or a magistrate of the first class to pass any sentence authorised by this Act on any person convicted of an offence under this Act.

**Offences to be non-cognizable, bailable and non-compoundable.**

Every offence under this Act shall be non-cognizable, bailable and non-compoundable,

**Power to make rules.**

The Central Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

Every rule made under this section shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two successive sessions, and if before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

**Repeals.**

The Andhra Pradesh Dowry Prohibition Act, 1958, (Andhra Pradesh Act 1 of 1958.) and the Bihar Dowry Restraint Act, 1950, (25 of 1950.) are hereby repealed.

Penalty for demanding dowry.-If any person demands, directly or indirectly, from the parents or other relatives or guardian of a bride or bridegroom, as the case may be, any dowry, he shall be punishable with imprisonment for a term which shall not be less than six months, but which may extend to two years and with fine which may extend to ten thousand rupees:

## 11.5 The Child Marriage Restraint Act, 1929

### Objectives

To eradicate the evil of child marriage, the Child Marriage Restraint Act was passed in 1929. The object is to eliminate the special evil which had the potentialities of dangers to the life and health of a female child, who could not withstand the stress and strains of married life and to avoid early deaths of such minor mothers.

An Act to restrain the solemnisation of child marriage.

### Definitions

(a) "Child" means a person who, if a male, has not completed twenty one year of age, and if a female, has not completed eighteen years of age ;

(b) "child marriage" means a marriage to which either of the contracting parties is a child;

(c) "contracting party" to a marriage means either of the parties whose marriage is (or is about to be) thereby solemnised and

(d) "minor" means a person of either sex who is under eighteen years of age.

**Important Provisions**

**Section 3 :** Punishment for male adult below twenty one years of age marrying a child -- Whoever, being a male above eighteen years of age and below twenty one, contracts a child marriage shall be punishable with simple imprisonment which may extend to fifteen days, or with fine which may extend to one thousand rupees, or with both .

**Section 4 :** Punishment for male adult above twenty one years of age marrying a child -- Whoever, being a male above twenty one years of age, contracts a child marriage shall be punishable with simple imprisonment which may extend to three months and shall also be liable to fine.

**Section 5 :** Punishment for solemnising a child marriage -- (1) Whoever performs, conducts or directs any child marriage shall be punishable with simple imprisonment which may extend to three months and shall also be liable to fine unless he proves that he had reason to believe that the marriage was not a child -marriage.

**Section 6 :** Punishment for parent or guardian concerned in a child marriage --

(1) Where a minor contracts a child marriage, any person having charge of the minor, whether as parent or guardian or in any other capacity, lawful or unlawful, who does any act to promote the marriage or permits it to be solemnised, or negligently fails to prevent it from being solemnised, shall be punishable with simple imprisonment which may extend to three months and shall also be liable to fine.

Provided no woman shall be punishable with imprisonment.

(2) For the purpose of this section, it shall be presumed unless and until the contrary is proved, that where a minor has contracted a child marriage, the person having charge of such minor has negligently failed to prevent marriage from being solemnised.

**Section 7 :** Offences to be cognizable for certain purposes. The Code of Criminal Procedure, 1973 (2 of 1974) shall apply to offences under this Act as if they were cognizable offences –

(a) for the purpose of investigation of such offences : and

(b) for the purposes of matters other than (i) matters referred to in Section 42 of that Code and (ii) the arrest of a person without a warrant or without an order of a Magistrate.

**Section 8 :** Jurisdiction under this Act - Notwithstanding anything contained in Section 190 of the (Code of Criminal Procedure, 1973) (2 of 1974), no Court other than that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall take cognizance of, or try, any offence under this Act.

**Section 9 :** Mode of taking cognizance of offences -- No Court shall take cognizance of any offence under this Act after the expiry of one year from the date on which the offence is alleged to have been committed.

**Section 10 :** Preliminary inquiries into offences -- Any Court, on receipt of a complaint of an offence of which it is authorised to take cognizance, shall unless it dismisses the complaint under Section 203 of the Code of Criminal Procedure, 1973 (2 of 1974) either itself make an inquiry under Section 202 of that Code or direct a Magistrate subordinate to it to make such inquiry.

**Section 11 :** -- Repealed by the Child Marriage Restraint (Amendment) Act, 1949 (41 of 1949), Section 7.

**Section 12 :** Power to issue injunction prohibiting marriage in contravention of this Act --

(1) Notwithstanding anything to the contrary contained in this Act the Court may, if satisfied from information laid before it through a complaint or otherwise that a child marriage in contravention of this Act has been arranged or is about to be solemnised, issue an injunction against any of the persons mentioned in Sections 3, 4, 5 and 6 of this Act prohibiting such marriage.

(2) No injunction under sub-section (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issue of the injunction.

(3) The Court may either on its own motion or on the application of any person aggrieved rescind or alter any order made under sub-section (1).

(4) Where such an application is received, the Court shall afford the applicant an early, opportunity of appearing before it either in person or by pleader, and if the Court rejects the application wholly or in part, it shall record in writing its reasons for so doing.

(5) Whoever knowing that an injunction has been issued against him under sub-section (1) of this Section disobeys, such injunction shall be punished with imprisonment or either description for a term which

may extend to three months, or with fine which may extend to one thousand rupees, or with both

The penal provisions do not invalidate the fact of marriage nor do the penal provisions apply to a child. Its section 3 provides that, who ever, being a male above eighteen years of age and below twenty one, contracts a child marriage shall be punished with simple imprisonment, which may extend to fifteen days, or with fine which may extend to one thousand rupees, or with both.

Whoever, being male above twenty one years of age contracts a child marriage shall be punished with simple imprisonment which may extend to three months and shall also be liable to fine.

In the Indian social set-up a male adult can be imputed greater sense of foreseeability of the consequences of this social evil of child marriage and in this context the punishment prescribed by the law to deter them is too mild in effect specially in this era of social justice when penology has become more reformative than deterrent.

Whoever performs, conducts or directs any child marriage shall be punished with simple imprisonment which may extend to three months and shall also be liable to fine, unless he proves that he had reasons to believe that the marriage was not a child marriage (section 5).

Though their liability under the criminal law is that of the abetters, but it should not preclude their direct responsibility for the offence and suitable amendment should be made in the Act to punish them as principal offenders. If this social evil is to be eradicated the role of such intermediaries should be brought to book with deterrent punishment. The present law is lukewarm in this regard.

Consummation of "Gauna" is not part of marriage ceremony. The marriage being complete before the consummation, a person may be convicted under this Act, though consummation has not taken place.

Section 6 provides that where a minor contracts a child marriage any person having charge of the minor, whether as parent or guardian or in any other capacity, lawful or unlawful, who does any act to promote the marriage or permits it to be solemnised, or negligently fails to prevent it from being solemnised, shall be punished with simple imprisonment which may extend to three months and shall also be liable to fine.

Provided that woman shall not be punishable with imprisonment under this section. It is presumed that where a minor has contracted a child marriage, the person having charge of such minor has negligently failed to prevent the marriage from being solemnised. Minors are incapable of entering into any valid contract and marriage under the Hindu law is not a contract. So the words "where a minor contracts a child marriage" in section 6(l) ought not to be literally interpreted as per its dictionary meaning but ought to be understood as meaning "where a child marriage" takes place or where a minor enters into a child marriage.

The child bride or the child bridegroom are mere passive actors in such a marriage and the active participants are the parents, guardians or the custodians of such children. As the law is not mindful about the active culpability of these persons, this Act has not yielded the desired results. The imposition of fine only lacks the deterrent effect which is needed most in such cases. Further this Act does not take into account the performance of preparatory ceremonies of such a marriage like engagements etc. Some provision should be made in this Act to prevent and punish such actions also if they culminate in child marriage.

It is noteworthy that a contravention of the provisions of the Act does not render the marriage invalid as the validity of the marriage is a subject beyond the scope of the Act. A marriage under the Hindu Law by a minor male is valid even though the marriage was not brought about on his behalf by the natural or lawful guardian. The marriage under the Hindu Law is a sacrament and not a contract. The minority of an individual can operate as a bar to his or her incurring contractual obligations, but it cannot be an impediment in the matter of performing a necessary "Sanskara". A minor's marriage without the consent of the guardian can be held to be valid on the application of the doctrine of factum valet.

Section 7 provides that the Code of Criminal Procedure, 1973 shall apply to offences under the Act as if they were cognizable offence for the purpose of investigation.

Notwithstanding anything contained in section 190 of the Code of Criminal Procedure, 1973, no Court other than a Metropolitan Magistrate or a Judicial Magistrate of the First Class can take cognizance of, or try any offence under this Act.

Limitation -- No Court can take cognizance of any offence under this Act after the expiry of one year from the date on which the offence is alleged to have been committed. This further dilutes the efficacy of the law.

Injunction -- Section 12 empowers the Magistrate to issue injunction prohibiting marriage in contravention of this Act. The Court may issue an injunction against any of the persons mentioned in Section 3, 4, 5 and 6 of this Act prohibiting such marriage.

This injunction shall not be issued against any person unless the court has previously given notice thereof to the person concerned and has afforded him an opportunity to show cause against the issue of the injunction. This requirement of the law may defeat the purpose of social justice where there is imperative need of judicial intervention to save the welfare and interest of the child. No doubt frivolous petitions by interested persons may sometimes result in dislocation of arrangements in genuine cases and such victims may also face social humiliation but this can be safeguarded by making deterrent provisions in the Act for those who move such frivolous petitions.

The Court may either of its own motion or on the application of any person aggrieved, rescind or alter any order made under sub-section (1).

When such an application is received, the Court shall afford the applicant an early opportunity of appearing before it either in person or by pleader; and if the court rejects the application wholly or in part, it shall record in writing its reasons for so doing.

### 11.6 Muslim Marriage Act

The Muslim Marriage Act was introduced into the Indian legal system in the year 1954. The Act regulates the solemnization of marriages amongst the Muslim community in India. According to this Act, both the groom and the bride are to consent to the wedding of their free wills. A formal, binding contract verbal or on paper is considered integral to a religiously valid Muslim matrimony and outlines the rights and responsibilities of the bride and groom. This Act applies to all Indian citizens, whether residing in India or abroad. The State of Jammu and Kashmir is excluded under the ambit of this Muslim Marriage Act, though residents domiciled in other states but residing in Jammu and Kashmir would qualify for these provisions.

#### 11.6.1 Requisites of a valid Marriage

- Both the parties (groom & bride) should belong to and professes the Muslim faith or religion
- Each of the parties should as regards age, mental capacity and otherwise, be capable of contracting marriage
- The bride and groom will not by reason of anything contained in the Islamic law relating to marriage be prohibited from marrying one another
- Muslim bride and groom, understanding the nature of the contract, will freely consent to marry one another
- Muslim marriage will be pretentious by or before a person appointed as a marriage officer under the provisions of the Muslim Marriage Act
- Marriage will be registered in accordance with the provisions of Muslim Marriage Act

#### Non-Applicability of Act

The Muslim Marriage Act is not applicable to following the type of marriages. In any case, the marriages contracted and registered under this act, the same will be null and void.

- This act is not applicable if either of the parties has or had a wife or husband alive at the time of contracting and registering the marriage
- Muslim Marriage Act is not applicable if either party is directly descended from the other

- If the bride is a sister of the male either by the full or the half-blood, marriage won't be solemnised under the Muslim Marriage Act

- If the groom is a sister of the female either by the full or the half-blood, marriage won't be solemnised under the Muslim Marriage Act

**Age Limit and Consent**

The age of a person, being a member of the Muslim community, is capable of contracting marriage will be sixteen years. If whom being a male is less than twenty-one years of age or being a female is under eighteen years of age (not being a widower or widow), the consent to such marriage will be registered with the presence of following persons:

- ✓ Father if living

- ✓ If the father is dead, the guardians lawfully appointed or of one of them

- ✓ If there is no guardian, then of the mother

- ✓ If there is no mother living, then of such other persons as may be appointed by the Minister

The above mentioned persons will be certified in writing by the marriage officer by or before whom the marriage is effected upon the certificate of such marriage will be issued in accordance with the provisions of this Muslim Marriage Act.

**Muslim Marriage Certificate**

Immediately after a Muslim marriage has been affected by or before a marriage officer, he/she will enter in a book to be supplied by the Registrar-General and kept by the marriage officer. For that purpose, a Muslim Marriage Certificate in the prescribed format of the marriage and will be signed by the marriage officer and by the parties to the marriage and by two credible witnesses, and such marriage officer will enter up in the counterfoil the prescribed particulars and sign the same.

Every marriage officer within seven days of a Muslim marriage being affected by or before him, transmit to the Registrar-General the Muslim Marriage Certificate. Upon receipt of this Certificate the Registrar General, if it appears to him that the requisites of a valid Muslim marriage have been complied with and that the consent of any person required by this Act to consent to such marriage has been obtained, will cause the same to be registered.

Every marriage officer without reasonable cause or excuse fails to transmit to the Registrar-General any certificate in accordance with the provisions of this act will be guilty of an offence against this Act and will be liable on summary conviction before a Resident Magistrate to a fine.

### Correction of Clerical Errors in Register Book

The Registrar-General will correct any clerical error in any Muslim marriage certificate filed in his office and the Register Book and will authenticate every such correction by his signature and the date of such correction.

### Searches in Register Book

Upon payment of the prescribed fee, the Registrar-General will at all reasonable times allow searches to be done in the Register Book and swill gives certified copies.

Any certified copy under the hand of the Registrar-General will be a correct copy of any entry in the Register Book will be admissible as evidence of the registration of the marriage.

### The language of Record Book

All prescribed applications, certificates and entries in the Register Book will be in the English language.

### Application of Legitimating Act

The Legitimating act will apply, muiatis mutandis, to persons legitimated by reason of registration under the provisions of this Muslim Marriage Act.

## 11.7 Indian Christian Marriage Act

Indian Christian Marriage Act of 1872 provided the rules and regulations for regulating the solemnization of marriages among the Christian community in India. It was originally enacted by the British-Indian administration. Christian marriages in the country are performed by an authorised Minister or Priest in a church of any Christian denominations. After the marriage ceremony is over, the minister or priest registers the marriage and issues a certificate of marriage in the name of the couple and it becomes official.

The registration process starts when the party to the marriage make an application to Registrar of that area and submit the certificate received from the church and present in person and do the registration.

### 11.7.1 Validity of marriage

For the marriage to be valid under the Indian Christian Marriage Act of 1872, specific requirements need to be fulfilled. According to the Act, it is a necessity that either one or both the parties involved in the marriage be Christians. Consequently under the Act, a marriage may be termed as void and redundant unless one of the parties taking part in the union is governed by a different law that forbids such a wedding on the grounds of prohibited degrees of relationship. There shall be a witness to the marrying parties.

**Essential Requirements**

- Bridegroom age must not be less than twenty-one years and the age of the Bride must not be under eighteen years.
- Both the bridegroom and the bride must give voluntary consent during the ceremony and should not be obtained by misrepresenting facts or under compulsion or undue influence.
- Neither of the party should have a living spouse at the time of the marriage.
- The marriage must be performed in the presence of a person licensed to grant a certificate of marriage and at least two reliable witnesses.
- After the ceremony the bride, bridegroom and the two witness along with the priest or minister of the church who performed the ceremony must sign in the marriage register maintained in the church.

**Documents Required**

- A completed application form with precise details
- Passport-sized photographs of both the bridegroom and the bride to the marriage
- The Certificate of Marriage issued by the Minister or the Priest who performed the marriage
- Two photographs from the Wedding of the rituals along with an Invitation to the Wedding
- Residence proof and the proof of Age of both the parties to the marriage
- An affidavit certifying the mental condition and the marital status of both the parties

**Person Eligible to Solemnise**

- By a person who has received the episcopal ordination and is authorised to solemnise a marriage according to the rules, rites, ceremonies and the customs of the Church of which he is a Minister.
- Who is a Clergyman belonging to the Church of Scotland and is authorised to solemnise a marriage according to the rules, rites, ceremonies and the customs of the Church of Scotland.
- A Person who is a Minister of Religion who is authorised to solemnise marriage with a license as per the Act.

- By an individual who is licensed under the Act to grant Certificated of marriage between Christians in India.

**Marriage Registrar Conditions**

The following terms have to be met if the Marriage Registrar has to perform the marriage as stated by the Act.

**Notice of Intended Marriage**

Either of the party must submit a written application or a notice of the intended marriage to Marriage Registrar that resides in the same vicinity as the parties. This is done to notify the concerned authority of their intention to get married. If both the parties reside in different locations, it is important that each party makes a separate notice in writing to the Marriage Registrar that is situated within their area of dwelling. The written application or notice of the intended marriage is recorded into the "marriage notebook" and is put up in the notification area of the office for public.

**Pledge before the Registrar**

Both the bride and bridegroom must make a personal appearance before the Marriage Registrar before the certificate of notice has been issued. The party should appear before the Registrar by pledging the following:

- ✓ That there are no obstacles, natural inclinations or other legitimate impediments to the intended marriage.
- ✓ That the place of their residence is within the locale of the marriage registrar.

**Certificate of Notice**

Once the pledge is taken before the Marriage Registrar by either one of the parties to the intended marriage, a Certificate of Notice is issued. Once the pledge is done, the Registrar shall remain for four days to issue the certificate. After the period has lapsed, the Marriage Registrar has the power to grant the Certificate of Notice. Information such as the address of the Church or the Chapel or any other place that the marriage rituals are expected to be performed is stated in the Certificate of Notice.

This Notice would not be issued if is stopped by anyone stating obvious reasons why the testament ought not to be granted. The issuance of the certificate of notice makes it mandatory for the marriage to be performed within two months from the date of publication. Failing to do so would make the certificate of notice redundant and new certificate would be required.

### Performance of the Marriage

Christian Marriage is performed between the parties to the marriage with accordance to the rituals which is considered to be necessary and proper by the Minister or the Priest designated to perform the wedding according to the Indian Christian Marriage Act. The presence of two eligible witnesses other than the minister or the priest performing the marriage is a compulsory prerequisite at the marriage ceremony. A marriage cannot be performed if it is not performed within two months from the issuance of the certificate of notice. When the marriage is not taking place within two months period; in such a case, a new certificate of notice has to be applied for and issued to solemnise the marriage.

### Time and Place

The Indian Christian Marriage Act clearly states where Christian marriages should take place at and the time at which it should be performed. The time for performing a Christian marriage ritual has to be scheduled between the timeframe of six in the morning to seven in the evening. The place that Christian marriage has to be performed is at a Church or a Chapel. Some special considerations and requests are granted that give flexibility to the time and place to conduct the marriage ceremony.

### Registration of Marriage

An application for registration of the wedding is made by both the party to the concerned authority in whose jurisdiction either of the parties has been residing. The marriage is registered by the Marriage Registrar who was present at the marriage and performed the union of the couple in the Marriage Register. An acknowledgement slip of the registration with the authorised signatory of both the parties along with the witnesses present at the time is recorded. This is then attached to the Marriage Register and thereby indicating that the marriage was registered officially. These slips of acknowledgement are sent out at the end of the month to the Registrar General of Births, Deaths and Marriages. Christian marriages in India may also be endorsed under a special provision without prior notice.

## 11.8 Personal Laws Relating to Marriage

Personal law is defined as a law that applies to a certain class or group of people or a particular person, based on the religions, faith, and culture. In India, everyone belongs to different caste, religion and to have their own faith and belief. Their belief is decided by the sets of laws. And these laws are made by considering different customs followed by that religion. Indians are following these laws since the British period.

### Personal Law

Laws relating to marriage have been clearly codified in different Acts which are applicable to people of different religion. These acts are:

- The Converts' Marriage Dissolution Act, enacted during 1866

- The Indian Divorce Act, enacted in 1869
- The Indian Christian Marriage Act, enacted during 1872
- The Kazis Act, enacted during 1880
- The Anand Marriage Act, enacted in 1909
- The Indian Succession Act, enacted during 1925
- The Child Marriage Restraint Act, enacted in 1929
- The Parsi Marriage and Divorce Act, enacted in 1936
- The Dissolution of Muslim Marriage Act, enacted during 1939
- The Special Marriage Act, enacted during 1954
- The Hindu Marriage Act, enacted during 1955
- The Foreign Marriage Act, enacted in 1969 and
- The Muslim Women (Protection of Rights on Divorce) Act, enacted in 1986.

In personal cases, courts are required to work with the personal laws when the issue is not being covered by any statutory law. For instance, let's take a brief look at Hindu personal law.

### 11.8.1 Hindu Personal Laws

Hindus personal laws can be found in:

- ✓ The 'Shruti' which contains all the four Vedas, namely Rig Veda, Sama Veda, Yajurva Veda, and Atharva Veda
- ✓ The 'Smritis' which are handed down teachings and sayings of Rishis and holy men of Hindu religion and the commentaries written by many historic authors about the 'Smritis'. There are three types of Smritis, namely: Codes of Manu, Yajnavalkya, and Narada.

Personal Laws and customs as recognised by the statutory law regulate the Hindus. These are applicable to legal issues related to matters of inheritance, succession, marriage, adoption, co-parenting, the partition of family property, obligations of sons to pay their father's debts, guardianship, maintenance and religious and charitable donations.

### 11.8.2 Muslim Personal Law

The Holy Quran

The sayings and teachings of Prophet Mohammed carefully preserved in tradition and passed down generation to generation by holy men.

Ijma is the agreement of Muslim scholars, companions, and disciple of Prophet Mohammed on matters of religion.

Kiyas, an analysis made using Quran, sayings of Prophet Mohammed, and Ijma when any individual one of them is not applicable to a particular case.

Digests and commentaries on Muslim law have been written by ancient Muslim scholars. The most famous include Hedaya (composed in the 12th century) and FatawaAlamgiri, compiled under the instructions of Mughal emperor Aurangzeb Alamgiri.

Personal laws and customs govern the Muslims. It applies to all matters relating to inheritance, wills, succession, legacies, marriage, dowry, divorce, gifts, wakfs, guardianship and pre-emption.

### 11.8.3 Christian Personal Law

The Christian Marriage Act, enacted during 1972 has instructions on dealing with matters related to matters of marriage. Indian divorce act enacted during 1869 contains matters related to divorce.

Under the directions of this act, the husband can appeal for divorce on grounds of adultery by the wife.

Similarly, the wife can appeal for divorce on the grounds that the husband has converted to another religion or has married another woman or if he is found guilty. Similarly the husband can seek divorce on grounds of adultery on the part of his wife and the wife can seek divorce on the ground that the husband has converted to another religion and has gone through marriage with another woman or has been guilty of any of the acts mentioned in the act.

## 11.9 Check your progress

What are the conditions for a Hindu marriage.

Mention the various ceremonies for a Hindu marriage

What do you mean by restitution of conjugal right.

Define Voidable marriages.

Why divorce is done

Define Dowry

What are the important provisions in Child Marriage Restraint Act, 1929

What are requisites of a valid Marriage

## 11.10 Summary

Due to the material culture and technological changes the institution marriage is undergoing greater changes and even to the level of marital discard. Hence there is a need to know the legal provisions of the marriage, divorce, widow remarriage, and laws relating to children.

## 11.11 Key words

Laws relating to marriage: Hindu, Muslim, Christian and personal laws relating to marriage

## 11.12 Self Assessment Questions

How Registration of Hindu marriages are done

What are the conditions for Nullity of Marriage and Divorce

What are Penalties prescribe for demanding dowry.

In Muslim marriage act what is the Age Limit

Mention the objectives of Indian Christian Marriage Act

How to do Registration of Marriage under Christian marriage act

Sketch the importance of Hindu Personal Laws relating to marriage

Describe the significance of Muslim Personal Law relating to marriage

## 11.13 Further Readings

Christopher, A.J. & Thomas William, A., 2006, Community Organization and Social Action, Himalaya Publishers, Mumbai

Chowdhry, D.Paul, 1992, Social Welfare Administration, Atmaram & sons, New Delhi Constitution of India, 1991, Govt. of India

Donnisson, D. & Chapman, Valeris: Social policy and Administration, George Allen and Unpin, London

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbai

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India Gangrada K.D., Social Legislation in India

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai.

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbai.

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi.

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London.

Velayutham, K.Shanmuga, 1998, Social Legislation and Social Change, Vazgha Valamudan, Publishers, Chennai

# UNIT XII

## 12.1 Structure – Contents of the unit

Laws relating to divorce, minor and guardianship; adoption, succession and inheritance

## 12.2 Objectives

To study the legislation Laws relating to divorce

To understand the various grounds for adoption

To observe the rules for succession and inheritance

# THE INDIAN DIVORCE ACT, 1869

## 12.3 Introduction

Marriages in Indian situation are put to lot of pressure due to the various social, technological and economical factors. The material culture and break in family relationship and understanding makes marriages end up in divorce and other related complications. In such situations the children are at stake. Hence it becomes the need to understand the various legislations relating to minor and guardianship, adoption succession and inheritance.

District Court."-"District Court" means, in the case of any petition under this Act, the Court of the District Judge within the local limits of whose ordinary jurisdiction, or of whosejurisdiction under this Act, the husband and wife reside or last resided together:

"Court."-"Court" means the High Court or the District Court, as the case may be:

Minor children."-"minor children" means, in the case of sons of Native fathers, boys who have not completed the age of sixteen years, and, in the case of daughters of Native fathers, girls who have not completed the age of thirteen years. In other cases it means unmarried children who have not completed the age of eighteen years:

Incestuous adultery."-"incestuous adultery" means adultery committed by a husband with a woman with whom, if his wife were dead, he could not lawfully contract marriage by reason of her being within the prohibited degrees of consanguinity (whether natural or legal) or affinity:

Bigamy with adultery."-"bigamy with adultery" means adultery with the same woman with whom the bigamy was committed:

Marriage with another woman."- "marriage with another woman" means marriage of any person, being married, to any other person, during the life of the former wife, whether the second marriage shall have taken place within 2*[India] or elsewhere:

Desertion."-"desertion" implies an abandonment against the wish of the person charging it; and "Property."-"property" includes in the case of a wife any property to which she is entitled for an estate in remainder or reversion or as a trustee, executrix or administratrix; and the date of the death of the testator or intestate shall be deemed to be the time at which any such wife becomes entitled as executrix or administratrix.

### 12.3.1Dissolution of Marriage

**When husband may petition for dissolution.**

When husband may petition for dissolution.-Any husband may present a petition to the District Court or to the High Court, praying that his marriage may be dissolved on the ground that his wife has, since the solemnization thereof, been guilty of adultery.

**When wife may petition for dissolution.**

When wife may petition for dissolution.-Any wife may present a petition to the District Court or to the High Court, praying that her marriage may be dissolved on the ground that, since the solemnization thereof, her husband has exchanged his profession of Christianity for the profession of some other religion, and gone through a form of marriage with another woman;

- ✓ or has been guilty of incestuous adultery,
- ✓ or of bigamy with adultery,
- ✓ or of marriage with another woman with adultery, or of rape, sodomy or bestiality,
- ✓ or of adultery coupled with such cruelty as without adultery would have entitled her to a divorce,
- ✓ or of adultery coupled with desertion, without reasonable excuse, for two years or upwards.

**Contents of petition**

Every such petition shall state, as distinctly as the nature of the case permits, the facts on which the claim to have such marriage dissolved is founded.

**Adulterer to be co-respondent.**

Adulterer to be co-respondent.-Upon any such petition presented by a husband, the petitioner shall make the alleged adulterer a co-respondent to the said petition, unless he is excused from so doing on one of the following grounds, to be allowed by the Court:-

(1) that the respondent is leading the life of a prostitute, and that the petitioner knows of no person with whom the adultery has been committed;

(2) that the name of the alleged adulterer is unknown to the petitioner, although he has made due efforts to discover it; that the alleged adulterer is dead.

**Court to be satisfied of absence of collusion.**

Court to be satisfied of absence of collusion.-Upon any such petition for the dissolution of a marriage, the Court shall satisfy itself, so far as it reasonably can, not only as to the facts alleged, but also whether or not the petitioner has been in any manner accessory to, or conniving at, the going though of the said form of marriage, or the adultery, or has condoned the same, and shall also enquire into any countercharge which may be made against the petitioner.

**12.3.2 Nullity of Marriage**

**Petition for decree of nullity.**

Petition for decree of nullity.-Any husband or wife may present a petition to the District Court or to the High Court, praying that his or her marriage may be declared null and void.

**Grounds of decree:**

- ✓ Grounds of decree.-Such decree may be made on any of the following grounds:-
- ✓ that the respondent was impotent at the time of the marriage
- ✓ and at the time of the institution of the suit;
- ✓ that the parties are within the prohibited degrees of consanguinity (whether natural or legal) or affinity;
- ✓ that either party was a lunatic or idiot at the time of the marriage;
- ✓ that the former husband or wife of either party was living
- ✓ at the time of the marriage, and the marriage with such former husband or wife was then in force.
- ✓ Nothing in this section shall affect the jurisdiction of the High Court to make decrees of nullity of marriage on the ground that the consent of either party was obtained by force or fraud.

**Confirmation of District Judge's decree.**

Confirmation of District Judge's decree.-Every decree of nullity of marriage made by a District Judge shall be subject to confirmation by the High Court, and the provisions of section seventeen, clauses one, two, three and four, shall, mutatis mutandis apply to such decrees.

**Children of annulled marriage.**

Children of annulled marriage.-Where a marriage is annulled on the ground that a former husband or wife was living, and it is adjudged that the subsequent marriage was contracted in good faith and with the full belief of the parties that the former husband or wife was dead, or when a marriage is annulled on the ground of insanity, children begotten before the decree is made shall be specified in the decree, and shall be entitled to succeed, in the same manner as legitimate children, to the estate of the parent who at the time of the marriage was competent to contract.

**Restitution of Conjugal Rights**

**Petition for restitution of conjugal rights.**

Petition for restitution of conjugal rights.-When either the husband or the wife has without reasonable excuse, withdrawn from the society of the other, either wife or husband may apply, by petition to the District Court or the High Court, for restitution of conjugal rights, and the Court, on being satisfied of the truth of the statements made in such petition, Hand that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights accordingly.

**Answer to petition.**

Answer to petition.-Nothing shall be pleaded in answer to a petition for restitution of conjugal rights, which would not be ground for a suit for judicial separation or for a decree of nullity of marriage.

**Damages and Costs**

**Husband may claim damages from adulterer.**

Husband may claim damages from adulterer.-Any husband may, either in a petition for dissolution of marriage or for judicial separation, or in a petition to the District Court or the High Court limited to such object only, claim damages from any person on the ground of his having committed adultery with the wife of such petitioner.

Such petition shall be served on the alleged adulterer and the wife, unless the Court dispenses with such service, or directs some other service to be substituted.

The damages to be recovered on any such petition shall be ascertained by the said Court, although the respondents or either of them may not appear.

After the decision has been given, the Court may direct in what manner such damages shall be paid or applied.

**Power to order adulterer to pay costs.**

Power to order adulterer to pay costs.-Whenever in any petition presented by a husband the alleged adulterer has been made a co-respondent, and the adultery his began established, the Court may order the co-respondent to pay the whole or any part of the costs of the proceedings:

Provided that the co-respondent shall not be ordered to pay the petitioner's costs-

- if the respondent was, at the time of the adultery, living apart from her husband and leading the life of a prostitute, or
- if the co-respondent had not, at the time of the adultery, reason to believe the respondent to be a married woman.

**Power to order litigious intervenor to pay costs.**

Power to order litigious intervenor to pay costs.-Whenever any application is made under section 17, the Court, if it thinks that the applicant had no grounds or no sufficient grounds for intervening, may order him to pay the whole or any part of the costs occasioned by the application.

**Alimony**

**Alimony pendent lite.**

Alimony pendente lite.--In any suit under this Act, whether it be instituted by a husband of a wife, and whether or not she has obtained an order of protection, the wife may present a petition for alimony pending the suit.

Such petition shall be served on the husband; and the Court, on being satisfied of the truth of the statements therein contained, may make such order on the husband for payment to the wife of alimony pending the suit as it may deem just:

Provided that alimony pending the suit shall in no case exceed one-fifth of the husband's average net income for the three years next preceding the date of the order, and shall continue, in case of a decree for dissolution of marriage or of nullity of marriage, until the decree is made absolute or is confirmed, as the case may be.

**Power to order permanent alimony.**

Power to order permanent alimony.-The High Court may, if it think fit, on any decree absolute declaring a marriage to be dissolved, or on any decree of judicial separation obtained by the wife, and the District Judge may, if he thinks fit, on the confirmation of any decree of his declaring a marriage to be dissolved, or on any decree of judicial separation obtained by the wife, order that the husband shall, to the satisfaction of the Court

Secure to the wife such gross sum of money, or such annual sum of money for any term not exceeding her own life, as, having regard to her fortune (if any), to the ability of the husband, and to the conduct of the parties, it thinks reasonable; and for that purpose may cause a proper instrument to be executed by all necessary parties.

**Power to order monthly or weekly payments.**

Power to order monthly or weekly payments.--In every such case the Court may make an order on the husband for payment to the wife of such monthly or weekly sums for her maintenance and support as the Court may think reasonable:

Provided that if the husband afterwards from any cause becomes unable to make such payments, it shall be lawful for the Court to discharge or modify the order, or temporarily to suspend the same is to the whole or any part of the money so ordered to be paid, and again to revive the same order wholly or in part, as to the Court seems fit.

**Court may direct payment of alimony to wife or to her trustee.**

Court may direct payment of alimony to wife or to her trustee.-In all cases in which the Court makes any decree or order for alimony, it may direct the same to be paid either to the wife herself, or to any trustee on her behalf to be approved by the Court, and may impose any terms or restrictions which to the Court seem expedient, and may from time to time appoint a new trustee, if it appears to' the Court expedient so to do.

**Re-Marriage**

**Liberty to parties to marry again.**

Liberty to parties to marry again.-When six months after the date of an order of a High Court confirming the decree for a dissolution of marriage made by a District Judge have expired, or when six months after the date of' any decree of a high Court dissolving a marriage have expired, and no appeal has been presented against such decree to the High Court in its appellate jurisdiction, or when any such appeal has been dismissed, or when in the result of any such appeal any marriage is declared to be dissolved, but not sooner, it shall be lawful for the respective parties to the marriage to marry again, as if the prior marriage had been dissolved by death: Provided that no appeal to 1*[the Supreme Court] has been presented against any such order or decree.

When such appeal has been dismissed, or when in the result thereof the marriage is declared to be dissolved, but not sooner, it shall be lawful for the respective parties to the marriage to marry again as if the prior marriage had been dissolved by death.

## 12.4 Laws relating to minor, guardianship succession and inheritance

### Introduction

Adoption is the establishment of the relation of parent and child between individuals who have been denied it by nature. It involves becoming a parent through a legal and social process rather than through the biological process. Adoption provides .permanent substitute family care for the child when his natural parents are not in a position to take care of him or are unwilling to do so and have therefore been legally freed of any ties to the child.

In a more formal definition, adoption entails "the extinction of all present or future rights and obligations of the natural parents of the child and the transfer, by administrative and legal authority, of all these rights and obligations to a married couple who have no blood relationship with the child". Adoption is a legal process by which a child of one set of parents becomes the child of another set of parents, and it confers upon the child and the adoptive parents substantially the same mutual rights and responsibilities as those which exist in the natural parent-child relationship. Adoption thus is the most complete means whereby family life can be restored to a child deprived of his natural family.

## 12.5 Hindu Adoption And Maintenance Act 1956

This piece of legislation has codified the adoption law for the Hindus. Some of the salient features of this statue are as follows;

It brought about some uniformity in the adoption law throughout India irrespective of the school of Hindu law operating in a particular region or locality. The Act applies to any person who is a Hindu law operating in a particular region or locality. The Act applies to any person who is a Hindu by religion in any of its forms or developments, and to Buddhists, joins, and Sikhs. It also brought under its purview the scheduled tripe's and aborigines.

According to the Act, a person having no Hindu son, son's son, or son' son living at the time of adoption can adopt a son. Similarly, a person can adopt daughter. Provided that at the time of adoption no Hindu daughter or son's daughter is living.

Formerly, in ancient Hindu law only a father or mother could give his/her 'own' child in adoption this position remained unchanged in the Hindu Adoption and Maintenance Act, 1956. Consequently, an orphan or deserted child could not be given in adoption under this Act.

However, this position has since changed with the amendment made in 1962 to the 1956 Act, under which an orphan, deserted, or illegitimate child can be given in adoption by the legally accepted guardian of the child, who may be either an individual or an institution. According to the Hindu Adoption and Maintenance Act 1956 only a Hindu child could be taken in adoption. It is, however, very difficult to determine the religion of

an orphan or a deserted child. The 1962 amendment removed this difficulty also. It Laid down that a child brought up as a Hindu should be regarded as a Hindu.

According to this Act, a child could be adopted up to 15 years of age, under the old Hindu law. A younger person could adopt an older child, but now under the Act, the difference between the ages of adoptive parents and the adopted child should be at least 21 years and the former should be older than the latter. Now a widow or a spinster can adopt a child, and either a man or a women can adopt a son or a daughter.

While adoption is permitted amounts the Hindus by statute and by custom, Muslim, Christians and Parsis have no adoption laws and have to approach the court under the Guardians and Wards Act, 1891, Muslims Christians and Parsis can take a child according to this Act only under foster care. Once a child under foster care becomes a major, he is free to break away all his connections; Moreover, such a child does not have the legal right of inheritance.

**Need and Effectiveness of Adoption**

A basic assumption important in adoption is that every child has a right to parental love, protection, and family. Several studies dealing with children have established the connection between early family experience and its significance in the social and emotional development of the child.

In an institution children are generally emotionally starved and miss the love and security of a home that parents and siblings can provide. Their personal wants and needs tend to be submerged in group wants and care, thereby preventing them from establishing their own identity.

Even if we improve the standard of our institutions and introduce better measures of rehabilitation, institutionalization would still be a poor substitute for family life so vital for the healthy development of a child. Providing children deprived of natural families with families in which they can grow and develop like normal children is certainly the better and more effective way.

Adoption, which involves and evokes the best of human emotions, fulfils the mutual need of both the childless couples and of the children without parents. Out of all the alternatives open for rehabilitation of orphaned and abandoned children, adoption offers the soundest solution, for it ensure that the child is wanted, protected and loved. It provides a sound foundation for developing in the child, so necessary for his adequate development. For the childless couple, it provides an opportunity for the emotional fulfillment of parenthood. Adoption has a decided advantage over other forms of rehabilitation of the deprived child because it is permanent in nature. It gives a sense of security to both the child and the adoptive parents with the sure knowledge that each belongs to the other. It lays the foundation of a deep, satisfying family life.

**National Organisations and Agencies**

During the past decade-and –a –half, welfare agencies in India, both at the national and local level, have increased their efforts in promoting the adoption of destitute and orphaned children. These agencies fall mainly in two categories; organizations that concentrate primarily in the field of publicity for creating public opinion and in promoting appropriate legislation on adoption; and organizations that are primary service agencies for the placement of children with families in India and abroad.

In the first category are nationally agencies such as the Indian Council of Child Welfare (ICCW), All India Women's Conference (AIWC), Indian Council of Social Welfare (ICSW), and Indian Association for Promotion of Adoption (IAPA). Some of these organizations, in addition to their primary focus on spreading the message of adoption through seminars, workshops, publications, radio, and television talks, also act at times as service agencies.

In the second category are the service agencies which place children in adoption with families in India and abroad. Most of these agencies are institutions for women and children, mainly in big cities like Bombay, Madras, Delhi and Pune. There are also some hospitals which place children in adoption through their medical social workers. These are generally babies of unwed mothers. Further, there are a few family welfare agencies which have developed effective adoption services over the years.

### 12.5.1 Inter-Country Adoption

Since the availability of children for adoption is far more than the homes that can be found locally, foreign placement has its place. Adoption of Indian children by foreigners has increased over the years. The reason for this phenomenon is the change in attitude and values that is taking place in the Western world. As a result of the widespread use of contraceptives, easier abortion laws, decreasing social stigma attached to children born out of wedlock, very few white babies are available for adoption. Hence both parents and agencies abroad look towards countries like India where parentless children, orphaned or abandoned, are found in large numbers.

### 12.5.2 The Adoption of Children Bill

Bills on Adoption of Children have been introduced by Members in Parliament (RaiyaSabha) since 1955. In 1965, the Indian Council of Social Welfare, in collaboration with other agencies, drafted an Adoption of Children Bill. Subsequent efforts to introduce the Bill were made in 1967 and 1970. Finally, the Adoption of Children Bill was introduced in the RaiyaSabha in 1972. After gestating for six long years, it was withdrawn from Parliament on 19 July 1978. The Bill which had been approved by a Joint Select Committee was vehemently opposed by several members, particularly those representing the minority communities, on the grounds that it encroached upon their personal law. A new Adoption Bill 1980 was introduced in the LokSabha on 16 December 1980.

Some of the salient features of this Bill were that it sought to provide necessary safeguards to prevent unsuitable adoptions; permitted, subject to certain qualifications and restrictions, any person of sound mind who has completed the age of 25 years to adopt a child; made suitable provisions as to consents of the parents of the child to be adopted and of the institutions, if any, taking care of the child; provided safeguards for the protection of adopted children who ae neglected or cruelly ill-treated or exploited or exposed to pernicious influences; and made detailed provisions as to licensing and supervision of institutions desiring to make arrangement for adoption of children.

**Child and the Law**

Indian strives to be a welfare state. This is reflected in the Directive Principles of State Policy of the Constitution. The Constitution makers were conscious of the need for special care for children. A few articles deal specifically with the protection and welfare of children. The National Policy Resolution for Children, 1974, lays special steers on the responsibility of the nation for physical, mental, moral and social development of children.

**Employment of Children**

At the international level, there are the International Labour Organization (ILO) Conventions and Recommendations on employment of children. India has ratified several of these. Some of these developing countries like India; these lay down lower standards than those to be followed by developed countries. In the matter of labour laws relating to children, India tries to follow the standards set by ILO Conventions. So far the ILO has adopted 18 Conventions and 16 Recommendations, which deal with children.

The Indian Laws and the ILO Conventions mainly deal with four aspects (i) minimum age for employment of children (ii) medical examination of children (iii) maximum hours of work; and (iv) prohibition of night work for children.

There are several enactments which deal with the above four aspects. These include the Factories Act, 1948; the Mines Act, 1952; the Employment of Children Act. 1938 (concerned with employment of children in hazardous occupations such as transport of passengers, goods or mail by railways, or by a port authority within the limits of a port, or a workshop wherein any of the following processes are carried on:

Bidi-making, carpet weaving, cement manufacture including bagging of cement, cloth-printing, dyeing and weaving, manufacture of matches, explosives and fire works, mica-cutting and splitting, shellac manufacture, tanning, soap manufacture and wool cleaning, etc;

Merchant Shipping Act, 1958, Motor Transport Workers Act,1951, Plantations Labour Act, 1951, and Cigar Workers (Conditions of Employment) Act, 1966, and the state Shops and Establishment Acts.

The survey reveals that while the legislation has gone a long way in ensuring the welfare and regulation of work conditions of child labour, it is still deficient judged by the international standards laid down by the ILO. Some of the reasons for this are economic backwardness obliging a family to seek employment for children; lack of educational facilities; the unorganized nature of some of the economic sectors; and the small size of manufacturing units, making the enforcement of law difficult.

Thus, for employment of children, the various ages prescribed for different occupations are lower than the ILO standards. We do not have a law for agricultural labour. Smaller factories are left uncovered by law. The position is similar with regard to medial examination. We do not have laws in respect of medical examination of children in non-industrial occupations, establishments which are not factories, establishments engaged in transport and mines above ground. Further, the age up to which medical examination is required in factories and mines is less than the ILO standards. With regard to night work also our provisions are less stringent than those down by the ILO Conventions.

## 12.6 Inheritance & Succession: Under Hindu Succession Act, 1956

### General rules of succession in the case of males

The property of a male Hindu dying intestate shall devolve in the following manner:-

- Firstly, upon the heirs, being the relatives specified in class I of the Schedule;
- Secondly, if there is no heir of class I, then upon the heirs, being the relatives specified in class II of the Schedule;
- Thirdly, if there is no heir of any of the two classes, then upon the agnates of the deceased; and
- Lastly, if there is no agnate, then upon the cognates of the deceased.

### Heirs in Class-I

Son; daughter; widow; mother; son of a pre-deceased son; daughter of a pre-deceased son; son of a pre-deceased daughter; daughter of a pre-deceased daughter; widow of a pre-deceased son; son of a pre-deceased son of a pre-deceased son; daughter of a pre-deceased son of a pre-deceased son; widow of a pre-deceased son of a pre-deceased son.

### Heirs in Class-II

1. Father.
2. (1)Son’s daughter’s son, (2) son’s daughter’s daughter, (3) brother, (4) sister.

3. (1) Daughter's son's son, (2) daughter's son's daughter, (3) daughter's daughter's son, (4) daughter's daughter's daughter.
4. (1) Brother's son, (2) sister's son, (3) brother's daughter, (4) sister's daughter.
5. Father's father; father's mother.
6. Father's widow; brother's widow.
7. Father's brother; father's sister.
8. Mother's father; mother's mother.
9. Mother's brother; mother's sister.

**References to a brother or sister do not include references to a brother or sister by uterine blood**

Among the heirs, those in class I shall take simultaneously and to the exclusion of all other heirs; those in the first entry in class II shall be preferred to those in the second entry; those in the second entry shall be preferred to those in the third entry; and so on in succession.

**Distribution of property among heirs in class I of the Schedule**

The property of an intestate shall be divided among the heirs in class I as follows:-

- The intestate's widow shall take one share.
- The surviving sons and daughters and the mother of the intestate shall each take one share.
- The heirs in the branch of each pre-deceased son or each pre-deceased daughter of the intestate shall take between them one share.

**Distribution of property among heirs in class II of the Schedule**

The property of an intestate shall be divided between the heirs specified in any one entry in class-II so that they share equally.

**Property of a female Hindu to be her absolute property**

Any property possessed by a Female Hindu, whether acquired before or after the commencement of this Act, shall be held by her as full owner thereof and not as a limited owner.

**The** "property" includes both movable and immovable property acquired by a female Hindu by inheritance or devise, or at a partition, or in lieu of maintenance or arrears of maintenance, or by gift from any person, whether a relative or not, before, at or after her marriage, or by her own skill or exertion, or by purchase or by prescription, or in any other manner whatsoever, and also any such property held by her as stridhana.

However, the aforementioned law is not applicable to any property acquired by way of gift or under a will or any other instrument or under a decree or order of a civil court or under an award where the terms of the gift, will or other instrument or the decree, order or award prescribe a restricted estate in such property.

**General rules of succession in the case of female Hindus**

- Firstly, upon the sons and daughters (including the children of any pre-deceased son or daughter) and the husband;
- Secondly, upon the heirs of the husband;
- Thirdly, upon the mother and father;
- Fourthly, upon the heirs of the father; and
- Lastly, upon the heirs of the mother.

**Full blood preferred to half-blood**

Heirs related to an intestate by full blood shall be preferred to heirs related by half blood, if the nature of the relationship is the same in every other respect.

**Right of child in womb**

A child who was in the womb at the time of death of an intestate and who is subsequently born alive has the same right to inherit to the intestate as if he or she had been born before the death of the intestate, and the inheritance shall be deemed to vest in such a case with effect from the date of the death of the intestate.

**Presumption in cases of simultaneous deaths**

Where two persons have died in circumstances rendering it uncertain whether either of them, and if so which, survived the other, then for all purposes affecting succession to property, it shall be presumed, until the contrary is proved, that the younger survived the elder.

**Preferential right to acquire property in certain cases**

Where interest in any immovable property of an intestate, or in any business carried on by him or her, whether solely or in conjunction with others, devolve upon to two or more heirs specified in class I of the Schedule, and any one of such heirs proposes to transfer his or her interest in the property or business, the other heirs shall have a preferential right to acquire the interest proposed to be transferred.

The consideration for which any interest in the property of the deceased may be transferred under this section shall, in the absence of any agreement between the parties, be determined by the court on application being made to it in this behalf, and if any person proposing to acquire the

interest is not willing to acquire it for the consideration so determined, such person shall be liable to pay all costs of or incident to the application.

If there are two or more heirs specified in class I of the Schedule proposing to acquire any interest under this section, that heir who offers the highest consideration for the transfer shall be preferred.

**Special provision respecting dwelling houses**

Where a Hindu intestate has left surviving him or her both male and female heirs in class I and his or her property includes a dwelling-house wholly occupied by members of his or her family, then, the right of any such female heir to claim partition of the dwelling-house shall not arise until the male heirs choose to divide their respective shares therein; but the female heir shall be entitled to a right of residence therein:

Where such female heir is a daughter, she shall be entitled to a right of residence in the dwelling-house only if she is unmarried or has been deserted by or has separated from her husband or is a widow.

**Certain widows remarrying may not inherit as widows**

Any heir who is related to an intestate as the widow of a pre-deceased son, the widow of a pre-deceased son of a pre-deceased son or the widow of a brother shall not be entitled to succeed to the property of the intestate as such widow, if on the date the succession opens, she has re-married.

**Murderer disqualified**

A person who commits murder or abets the commission of murder shall be disqualified from inheriting the property of the person murdered, or any other property in furtherance of the succession to which he or she committed or abetted the commission of the murder.

**Convert's descendants disqualified**

Where a Hindu has ceased or ceases to be a Hindu by conversion to another religion, children born to him or her after such conversion and their descendants shall be disqualified from inheriting the property of any of their Hindu relatives, unless such children or descendants are Hindus at the time when the succession opens.

**Succession when heir disqualified**

If any person is disqualified from inheriting any property under this Act, it shall devolve as if such person had died before the intestate.

**Disease, defect, etc. not to disqualify**

No person shall be disqualified from succeeding to any property on the ground of any disease, defect or deformity, or save as provided in this Act, on any other ground whatsoever.

**Failure of heirs**

If an intestate has left no heir qualified to succeed to his or her property in accordance with the provisions of this Act, such property shall devolve on the government; and the government shall take the property subject to all the obligations and liabilities to which an heir would have been subjected.

**Testamentary succession**

Any Hindu may dispose of by will or other testamentary disposition any property, which is capable of being so disposed of by him, in accordance with the provisions of the Indian Succession Act, 1925, or any other law for the time being in force and applicable to Hindus.

**Definitions and interpretations of some related Legal Terms**

"agnate" - One person is said to be an "agnate" of another if the two are related by blood or adoption wholly through males;

"cognate" - One person is said to be a cognate of another if the two are related by blood or adoption but not wholly through males;

"full blood" & "half-blood"- Two persons are said to be related to each other by full blood when they are descended from a common ancestor by the same wife, and by half-blood when they are descended from a common ancestor but by different wives;

"uterine blood"- Two persons are said to be related to each other by uterine blood when they are descended from a common ancestress but by different husbands;

"ancestor" includes the father and "ancestress" the mother,

"heir" means any person, male or female, who is entitled to succeed to the property of an intestate under this Act;

"intestate" - a person is deemed to die intestate in respect of property of which he or she has not made a testamentary disposition capable of taking effect;

"related" means related by legitimate kinship:

Illegitimate children, however, shall be deemed to be related to their mother and to one another, and their legitimate descendants shall be deemed to be related to them and to one another; and any word expressing relationship or denoting a relative shall be construed accordingly.

Words imparting the masculine gender shall not be taken to include females.

Some of the related laws relating to the subject:

The Indian Succession Act, 1925, The Hindu Succession Act, 1956, The Code of Civil Procedure, 1908, The Limitation Act, 1963, The Evidence Act, 1872, Other relevant Acts & Judgments and Citations of the Hon'ble Supreme Court Of India and the High Courts.

## 12.7 Check your progress

What are the conditions for dissolution of Marriage

Mention the conditions for Restitution of Conjugal Rights

What are the provisions for Re-Marriage

List out the National organisations and Agencies involved in adoption

What are the objectives of The Adoption Of Children Bill

Define Full Blood and Half-Blood

What are Rights of Child in Womb in succession to property

## 12.8 Summary

There are a number of children who are not fortunate to be blessed with the advantages of life in a family. Children are orphaned or abandoned as a result of death, desertion, divorce, or separation of parents, There is also increasing incidence of children born out of wedlock. All these require substitute care and some form of rehabilitation. Institutionalization is, however, not the only or the best answer to the problem of care of children deprived of their own homes, Institutions are generally overcrowded and understaffed and lack the personal touch so essential to healthy physical and emotional growth of a child.

## 12.9 Key words

Laws relating to divorce, minor and guardianship; adoption, succession and inheritance

## 12.10 Self Assessment Questions

When Nullity of Marriage is taking place

Describe the significance of Hindu Adoption and Maintenance Act 1956

Explain the Need and Effectiveness of Adoption

Why Employment of Children becomes an evil

Write the major provisions for Inheritance & Succession in the Act of 1956

What are the General Rules of Succession in the Case of Males

## 12.11 Further Readings

Christopher, A.J. & Thomas William, A., 2006, Community Organisation and Social Action, Himalaya Publishers, Mumbai

Chowdhry, D.Paul, 1992, Social Welfare Administration, Atmaram & sons, New Delhi Constitution of India, 1991, Govt. of India

Donnisson, D. & Chapman, Valeris: Social policy and Administration, George Allen and Unpin, London

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbay

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India Gangrada K.D., Social Legislation in India

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai.

Lalitha, N.V., 1981, Financial Assistance to Voluntary Organizations for Development, NIPCCD, New Delhi.

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbai.

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi.

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London.

Velayutham, K.Shanmuga, 1998, Social Legislation and Social Change, Vazha Valamudan, Publishers, Chennai

# Unit XIII

## 13.1 Structure – Contents of the unit

Legislation relating to social problems such as prostitution, juvenile delinquency, women harassment

## 13.2 Objectives

To know the legal provisions relating to various social problems

To understand the causes and remedies for juvenile delinquency

To bring out solution to women harassment

## LEGISLATION RELATING TO SOCIAL PROBLEMS:

## 13.3 Introduction

The correctional services are primarily concerned with the test of reconciliation of the criminal who is considered a socially handicapped individual. Some significant legislative measures which reflect the corrective philosophy are the Code of Criminal Procedure, 1973, the Probation of Offenders Act, 1958, and the Children Act, 1960. There were also some legislative reformatory measures in relation to criminals, such as the Reformatory School Act, 1897, and Borstal Schools Act. Both these related to children and were later modified into the Reformatory Schools Act, 1961 and Children Act, 1960.

### 13.4 Prostitution:

**The preventive immoral traffic act 1956**

**Brothel** means any house, room or a premises which is used for the purpose of sexual exploitation.

**Prostitutions** means Sexual exploitation or abuse of persons for commercial purposes.

**Punishments**

For keeping a brothel or allowing premises to be used as brothel: a) Any person who keeps or manages in keeping the management of a brothel shall be punishable for the term of 1st time- not less than 1 year not more than 3 years For the term of 2nd year – not less than 2 years & not more than 5 years Fine up to rs.2000

Any person who being a tenant/owner/ agent/ landlord/ person in charge of keeping the premises is intended to be used as brothel shall be punishable on 1st conviction for a term which may extend to 2yrs and the 2nd conviction for a term may extend to 5 yrs and the fine up to rs.2000

**Punishments for living on the earnings of prostitutions:**

Any person earning from the prostitution of 18 yrs person, he/she shall be imprisonment for a term which may extend to 2 yrs or fine up to rs.1000 or both. if it is a child earning means that person shall be punishable for a term of not less than 7yrs & not more than 10yrs.

**Procuring, inducing/ taking person for the sake of prostitution: -**causes or induces a person to carry on prostitution shall be punishable with rigorous imprisonments for a term of not less than 3yrs & not more than 7yrs (1st time) - for the 2nd time it shall extend to 14yrs. - in case of child it is not less than 7yrs but may extend to whole life - in case of minor, 7-14 yrs.

**Detaining a person in premises where prostitution is carried on: -** If a person involves in sexual intercourse with a person other than spouse, such person shall be punishable with either for a description for a term which shall not be less than 7yrs or which may extend to 10yrs & shall also be liable to fine.

**Prostitution in the vicinity of public place:**

Any person who carries on prostitution & it is carried on: a) within a distance of 200mts of any place of public religious worship, educational institutions, hostel, hospital, nursing home or such other public place shall be punishable with imprisonment for a term which may extend to 3 months.

If an offence is committed in hotel, the license also be liable to be cancelled. The hotel should registered under the sec 2(6) of the Hotels-Receipts tax Act, 1980

**Special Police Officer & Advisory Body: -**The special police officer shall not be below the rank of an inspector of police. - A retired police officer(unless such officer at the time of retirement) was holding a post not below the rank of inspector. - A retired military officer holding a post not below the rank of commissioned officer. - The special police officer of an area shall be assisted by such number of subordinates as the state government may think fit.

**Protective Homes: -** state government may in its discretion establish as many protective homes & corrective institutions under this act as its thinks fit. - no person or no authority other than state government shall establish/maintain any protective home or corrective institutions.

**13.5 Laws Relating to Juvenile Delinquency**

Under the Indian penal scheme, imprisonment is one of the most commonly resorted forms of punishment. At one time, it was considered to be a potent penal technique for inflicting pain and suffering on the criminal who was made to pay for his behaviour by forfeiting his right to live as a free man. However, by the end of the last century, humanitarian trends and

new penal thinking influenced the imprisonment concept. In India, the changes were reflected in the reports of the Indian Jails Committee (1919-1920) which made a strong plea for the need for change in the outlook of the jail. The prisons are today governed by the central legislation like the Prisons Act, 1950.

Progressive thinking in the field of prison administration led the Central Government to appoint a Jail Manual Committee the creation of a Central Bureau of Correctional Services at the Centre, abolition of solitary confinement as a mode of punishment, classification of prisoners according to their needs in terms of personality and other factors. The Indian prison policy is also influenced by the standard rules formulated by the first United Nations congress held in 1955 on the prevention of crime and treatment of offenders.

**Background of Juvenile Justice**

The Constitution on India provides the basis for the legal framework to protect children, whom it recognizes as a discrete group with identifiable rights and needs. The constitution mandates child protection as a special provision in Article 15 (3). Article 39 (E) & (F) provides protection of children's healthy development. Article 24 prevents children from working in hazardous situations below 14 years. Article 45 provides the right of children for free and compulsory education and Article 47 prohibits the consumption of liquor and intoxicating drugs, except for medical purposes. Moreover, Indian Penal Code (2005) provides protection of children from sexual abuse in sections 354, 375 and 509, selling of minors for prostitution in sections 366, 366A, 366B and 372, buying minors for the purpose of prostitution in section 373 and non-consensual assault of male child in section 377.

A kind of criminal or quasi-criminal jurisdiction was provided under the Juvenile Justice Act (Government of India (GOI), 1986), covering proceedings for both the categories of children, viz., delinquent juveniles as well as the neglected juveniles. The Convention on the Rights of the Child (United Nations, 1989) provides elaborate catalogue of children's rights that can be grouped into four categories: Right to Survival, Right to Protection, Right to Participation and Right to Development.

The Juvenile Justice Act (JJA) (GOI, 1986) was inadequate as non-institutional methods such as family and school based preventive services to deal with juvenile delinquency were neither specified nor explored. Moreover, the Act did not directly deal with child sexual abuse. Despite the law, children were taken for interrogation overnight, detained, tortured and released in the morning. So, the Juvenile Justice Act (GOI, 1986) got replaced by the most comprehensive law to deal with children's right, Juvenile Justice (Care & Protection of Children) Act (GOI, 2000).

**13.5.1 Persons to be protected by The Juvenile Justice Act (2000)**

A person who has not completed 18 years of age is a juvenile. If he or she is without any home or settled place, or resides with a person, who could

be dangerous, needs protection. A person who is mentally or physically challenged or suffering from terminal diseases having no one to look after needs to be covered under this Act. An abandoned, missing or runaway child, who is being or likely to be abused, tortured or exploited for the purpose of sexual abuse or illegal acts and is a victim of an armed conflict, civil commotion or natural calamity needs to be taken care of (GOI, 2000).

### 13.5.2 Juvenile Justice Board

Each board consists of a Metropolitan Magistrate, trained in Child Psychology and two social workers, at least one of them a woman. Every such Board shall have the powers conferred by the Code of Criminal Procedure, 1973, on a Metropolitan Magistrate or, as the case may be, a Judicial Magistrate of the first class, and the Magistrate on the Board shall be designated as the Principal Magistrate. No Magistrate shall be appointed as a member of the Board unless he has special knowledge or training in child psychology or child welfare and no social worker shall be appointed as a member of the Board unless he has been actively involved in health, education, or welfare activities pertaining to children for at least seven years.

There shall be at least two members including the Principal Magistrate present at the time of final disposal of the case. When any Magistrate not empowered to exercise the powers of a Board under this Act is of the opinion that a person brought before him under any of the provisions of this Act (other than for the purpose of giving evidence), is a juvenile or a child, he shall without any delay record such opinion and forward the juvenile or the child to the right place under care of the right authority (GOI, 2000).

#### Observation homes

Any State Government may establish and maintain either by itself or under an agreement with voluntary organizations, observation homes in every district or for a group of districts, as may be required for the temporary reception of any juvenile in conflict with law. Various types of services are to be provided by them for rehabilitation and social integration of juveniles (GOI, 2000).

#### Special Juvenile Police Unit

When a juvenile in conflict with law is apprehended by police, he has to be placed under the charge of the Special Juvenile Police Unit. This police unit has to be specially sensitized and trained by inter-disciplinary trainers about needs and welfare of children (GOI, 2000).

#### Trial procedure

In case of a juvenile, the parent, guardian or probation officers, as the case may be, should be informed. No juvenile can be charged with or tried for any offence together with a person who is not a juvenile (GOI, 2000).

**Process of rehabilitation and social reintegration**

The processes are adoption, foster care, sponsorship and sending the child to an after care organization (GOI, 2000).

**Abuse**

In case of abuse, general family context is more important than any abusive event within it. Appropriate legislative, administrative, social and educational measures should be taken to protect the child. Recent interest shown in this area illustrates the concern of professionals, parents and children. Sometimes, children being ignorant, helpless and poor are easy victims of police abuse (Lyon, 2002; Williams, 2002).

**Recommendations to protect abuse by police**

Age verification and medical examination should be mandatory, prior to detention, during detention, and on release, by independent medical authorities. Sick juvenile detainee should be referred to specialized medical services. Some police officers should be specially trained for this purpose. Every police station should have one "Juvenile or Child Welfare Officer", who is adequately trained and experienced (Human Rights Watch Children's Rights Project, 1986).

**Implication of Practice: Child as an evidence**

Court rooms can be highly stressful for children. To minimize their stress, pre-trial preparation for children is essential. Secondary victimization should be prevented (Lyon, 2002).

**Child Soldier**

By now, it is well accepted internationally, that the involvement of children in armed forces has to be stopped. The admission in military academies for children, without provision of quitting, should be stopped. Children captured during war should get child friendly treatment (Brett, 2002).

**Children and Terrorism**

Many recruits of terrorist groups are juveniles under the age of 18, who can hardly access the judicial system. The usual daily news headlines are: "Troops have killed so many terrorists today." You will never come to know how many of them were children (Brett, 2002).

**Shillong Declaration**

The Shillong Declaration on India's Children in Armed Conflict (Shillong Declaration, 2002) appealed to put an end to use of children as militants in terrorist and private armed conflicts, with determination to put an end to the use of child soldiers. It emphasizes physical, psychological & cultural healing of children in armed conflict.

**Areas of concern regarding The Juvenile Justice Act (GOI, 2000)**

The act fails to express the minimum age, below which the Act would not be applicable. The definition of juvenile delinquency provides very little scope for petty acts to be dealt within the community. There is no concept of parental responsibility. The education, training and recreation of children, who are in observation homes, have not been provided for. Besides, basic or school education, even higher education and training of these children should be considered in this Act.

The Act fails to provide for procedural guarantees like right to counsel and right to speedy trial. The Act does not take into account the orders and directions of the supreme court and the various high courts relating to determination of the age of the child. It empowers the Juvenile Justice Board to give a child in adoption; even though, it is the Child Welfare Committee that deals with children in need of care and protection. The Act is silent on inter-country adoption. There is no linkage between the Juvenile Justice Act 2000 and the other legal provisions relating to children, for instance child labor, primary education, sexual abuse, adoption, disabilities and health.

**Things to be done**

There is a need to introduce the concept of guardian or child's legal counsel or a social worker involved throughout the court proceedings in which children are involved. NGOs can pressurize the government for law reform. For successful compliance of Court orders, and to punish violators, monitoring bodies need to be set up, who should be given legal powers as well. One area where further action is required is that of providing a support person for children during the investigative process, courtroom appearance and after the trial is over, has much to commend itself, and would enable the child to have a single support person to help him /her navigate the entire process.

**13.5.3 Juvenile Justice Act 2000**

Fundamental Principles of Juvenile Justice and Protection of Children

The State Government, the Juvenile Justice Board, the Child Welfare Committee or other competent authorities or agencies, shall apply the following fundamental principles while interpreting and implementing the provisions of the Act and rules

**Principle of presumption of innocence:**

(a) A juvenile or child or juvenile in conflict with law is presumed to be innocent of any malafide or criminal intent up to the age of eighteen years.

(b) The juvenile's or juvenile's in conflict with law or child's right to presumption of innocence shall be respected throughout the process of

justice and protection, from the initial contact to alternative care, including aftercare.

(c) Any unlawful conduct of a juvenile or a child or a juvenile in conflict with law which is done for survival, or is due to environmental or situational factors or is done under control of adults, or peer groups, is ought to be covered by the principles of innocence.

(d) The basic components of presumption of innocence are:

***(i) Age of innocence***

Age of innocence is the age below which a juvenile or child or a juvenile in conflict with law cannot be subjected to the criminal justice system. The Beijing Rule 4(1) clearly lays down that "the beginning of the age of criminal responsibility shall not be fixed at too low an age level bearing in mind the facts of mental and intellectual maturity". In consonance with this principle, the mental and intellectual maturity of juvenile or child or a juvenile in conflict with law below eighteen years is considered insufficient through out the world.

***(ii) Procedural protection of innocence***

All procedural safeguards that are guaranteed by the Constitution and other statutes to the adults and that go in to strengthen the juvenile's or child's right to presumption of innocence **shall be guaranteed to juveniles or the children or juveniles in conflict with law.**

***(iii) Provisions of Legal aid and Guardian Ad Litem***

Juveniles in conflict with law have a right to be informed about the accusations against them and a right to be legally represented. Provisions must be made for guardian ad litem, legal aid and other such assistance through legal services at State expense. This shall also include such juveniles right to present his case before the competent authority on his own.

**Principle of dignity and worth:**

(a) Treatment that is consistent with the child's sense of dignity and worth is a fundamental principle of juvenile justice. This principle reflects the fundamental human right enshrined in Article 1 of the Universal Declaration of Human Rights that all human beings are born free and equal in dignity and rights. Respect of dignity includes not being humiliated, personal identity, boundaries and space being respected, not being labeled and stigmatized, being offered information and choices and not being blamed for their acts.

(b) The juvenile's or child's right to dignity and worth has to be respected and protected throughout the entire process of dealing with the child from the first contact with law enforcement agencies to the implementation of all measures for dealing with the child.

**Principle of Right to be heard:**

Every child's right to express his views freely in all matters affecting his interest shall be fully respected through every stage in the process of juvenile justice. Children's right to be heard shall include creation of developmentally appropriate tools and processes of interacting with the child, promoting children's active involvement in decisions regarding their own lives and providing opportunities for discussion and debate.

**Principle of Best Interest:**

(a) In all decisions taken within the context of administration of juvenile justice, the principle of best interest of the juvenile or the juvenile in conflict with law or child shall be the primary consideration.

(b) The principle of best interest of the juvenile or juvenile in conflict with law or child shall mean for instance that the traditional objectives of criminal justice, retribution and repression, must give way to rehabilitative and restorative objectives of juvenile justice.

(c) This principle seeks to ensure physical, emotional, intellectual, social and moral development of a juvenile in conflict with law or child so as to ensure the safety, well being and permanence for each child and thus enable each child to survive and reach his or her full potential.

**Principle of family responsibility:**

(a) The primary responsibility of bringing up children, providing care, support and protection shall be with the biological parents. However, in exceptional situations, this responsibility may be bestowed on willing adoptive or foster parents.

(b) All decision making for the child should involve the family of origin unless it is not in the best interest of the child to do so.

(c) The family - biological, adoptive or foster (in that order), must be held responsible and provide necessary care, support and protection to the juvenile or child under their care and custody under the Act, unless the best interest measures or mandates dictate otherwise.

**Principle of Safety (no harm, no abuse, no neglect, no exploitation and no maltreatment):**

(a) At all stages, from the initial contact till such time he remains in contact with the care and protection system, and thereafter, the juvenile or child or juvenile in conflict with law shall not be subjected to any harm, abuse, neglect, maltreatment, corporal punishment or solitary or otherwise any confinement in jails and extreme care shall be taken to avoid any harm to the sensitivity of the juvenile or the child.

(b) The state has a greater responsibility for ensuring safety of every child in its care and protection, without resorting to restrictive measures and processes in the name of care and protection.

**Positive measures:**

(a) Provisions must be made to enable positive measures that involve the full mobilization of all possible resources, including the family, volunteers and other community groups, as well as schools and other mainstream community institutions or processes, for the purpose of promoting the well-being of the juvenile or child through individual care plans carefully worked out.

(b) The positive measures shall aim at reducing vulnerabilities and reducing the need for intervention under the law, as well as effective, fair and humane dealing of the juvenile or child.

(c) The positive measures shall include avenues for health, education, relationships, livelihoods, leisure, creativity and play.

(d) Such positive measures must facilitate the development of identity for the child and provide them with an inclusive and enabling environment.

**Principle of non-stigmatizing semantics, decisions and actions:**

The non-stigmatizing semantics of the Act must be strictly adhered to, and the use of adversarial or accusatory words, such as, arrest, remand, accused, charge sheet, trial, prosecution, warrant, summons, conviction, inmate, delinquent, neglected, custody or jail is prohibited in the processes pertaining to the child or juvenile in conflict with law under the Act.

**Principle of non-waiver of rights:**

(a) No waiver of rights of the child or juvenile in conflict with law, whether by himself or the competent authority or anyone acting or claiming to act on behalf of the juvenile or child, is either permissible or valid.

(b) Non-exercise of a fundamental right does not amount to waiver.

**Principle of equality and non-discrimination:**

**(a)** There shall be no discrimination against a child or juvenile in conflict with law on the basis of age, sex, place of birth, disability, health, status, race, ethnicity, religion, caste, cultural practices, work, activity or behaviour of the juvenile or child or that of his parents or guardians, or the civil and political status of the juvenile or child.

**(b)** Equality of access, equality of opportunity, equality in treatment under the Act shall be guaranteed to every child or juvenile in conflict with law.

**Principle of right to privacy and confidentiality:**

The juvenile's or child's right to privacy and confidentiality shall be protected by all means and through all the stages of the proceedings and care and protection processes.

**Principle of last resort:**

Institutionalization of a child or juvenile in conflict with law shall be a step of the last resort after reasonable inquiry and that too for the minimum possible duration.

**Principle of repatriation and restoration:**

(a) Every juvenile or child or juvenile in conflict with law has the right to be re-united with his family and restored back to the same socio-economic and cultural status that such juvenile or child enjoyed before coming within the purview of the Act or becoming vulnerable to any form of neglect, abuse or exploitation.

(b) Any juvenile or child, who has lost contact with his family, shall be eligible for protection under the Act and shall be repatriated and restored, at the earliest, to his family, unless such repatriation and restoration is likely to be against the best interest of the juvenile or the child.

**Principle of Fresh Start:**

(a) The principle of fresh start promotes new beginning for the child or juvenile in conflict with law by ensuring erasure of his past records.

(b) The State shall seek to promote measures for dealing with children alleged or recognized as having impinged the penal law, without resorting to judicial proceedings.

**Juvenile Justice Boards.**

There may be one or more Juvenile Justice Boards in every district, which shall be constituted by the State Government as per section 4 of the Act by notification in the official gazette.

**Composition of the Juvenile Justice Board**.

The Board shall consist of a Metropolitan Magistrate or a Judicial Magistrate of the first class, as the case may be, and two social workers of whom at least one shall be a woman, forming a bench: Provided that the Principal Magistrate of the Board shall review the pendency of cases before the Board and take such steps, as may be necessary in the expeditious disposal of the cases.

(2) Every such bench shall have the powers conferred by the Code of Criminal Procedure

(3) (i) A Magistrate with special knowledge or training in child psychology or child welfare/development shall be designated as the Principal Magistrate of the Board.

(ii) In case the Principal Magistrate with such special knowledge or training is not available, then, the State Government shall provide for such short-term training in child psychology or child welfare as it considers necessary

(4) The two social workers, of whom at least one shall be a woman, shall be appointed by the State Government as per the recommendations of the Selection Committee headed by the Principal District and Sessions Judge. The Selection Committee shall recommend two names for appointment and five to be wait- listed including women candidates.

(5) Orientation Training shall be given in child psychology, child welfare/ development, child rights, national and international standards for juvenile justice and all other such matters, to all members of the Board. All the members shall undergo such training prior to their assuming office for a period of not less than 5 days.

(6) Further training shall be given in regular intervals and shall not be less than 1 program every year.

(7) The State Government shall provide necessary funds and resources for all such trainings.

**Tenure of the Board**.

The Board shall have a tenure of three years and the appointment of members shall be co-terminus with the tenure of the Board.

A social worker being a member of the Board shall be eligible for appointment for a maximum of two consecutive terms.

The reappointment of the tenure of Social Worker members of the Board shall be on the basis of their performance appraisal by the District Child Protection Unit or Department of Social Defence, and on the recommendation of a Selection Committee constituted for the purpose. The performance appraisal of Social Worker members of the Board shall necessarily assess their participation in the proceedings of the Board, contribution in case disposal, their positive contribution to the welfare of the juveniles and their regular attendance in the orientation and training programs.

A member may resign any time, by giving one month's advance notice in writing or may be removed from his office as provided in sub-section (5) of section 4 of the Act.

Any vacancy in the Board may be filled by appointment of another person from the panel of names prepared by the Selection Committee, and shall hold office for the remaining term of the Board.

**Qualifications for Members of the Board**.

Any person to be appointed as a Social Worker member of the Board should possess a Bachelors degree of a recognized University as educational qualification. Preference shall be given to persons having a degree in any one of the Social sciences such as Criminology, Psychology, Sociology, Social work, Economics, Home Science, Education, Political Science, Studies pertaining to women, Rural Development, Law or Medicine.

The person to be appointed as Social Worker member should have actively worked individually or with Government/NGO of repute, in Health, Education, law, or Child Welfare activities pertaining to children for at least 7 years

The Social Worker member of the Board shall be eligible for appointment for a maximum of two ***consecutive*** terms and shall not be less than 35 and not more than 65 years of age at the time of appointment.

**Functions of the Board.** The Board shall perform the following functions to achieve the objectives of the Act, namely:-

(a) Adjudicate and dispose cases of juveniles in conflict with law;

(b) Offences committed against a juvenile in conflict with law.- If the Board either on enquiry, or on the report of the Probation Officer or on the report of a Medical Officer, or in any other manner is satisfied that a juvenile in conflict with law produced before it has been abused either physically or sexually or in any other manner by an adult, the Board shall direct the Police to file an FIR, investigate the case and take necessary further action as per Law. The Board shall further direct the Police to furnish to it, a status report on the case, periodically.

However, in case the alleged abuser is himself a juvenile or child the Board shall proceed to deal with the said abuser as a juvenile in conflict with law".

(c) Where the JJB at any stage of the proceeding, is of the opinion that the Juvenile produced before the Board is in need of the Care and Protection, the Board shall dismiss the case and refer the said Juvenile to the respective CWC for rehabilitation.

(d) monitoring institutions for juveniles in conflict with law and seeking compliance from them in cases of any noticeable lapses and improvement based on suggestions of the Board;

(e) deal with non-compliance on the part of concerned government functionaries or functionaries of voluntary organizations, as the case may be, in accordance with due process of law;

(f) Address the Department of Social Defence or any other authority to provide necessary infrastructure or facilities so that minimum standards of care and treatment are maintained in the spirit of the Act;

(g) The Social Worker member shall at every stage of the case, participate and contribute to the proceedings and study all the related documents before arriving at the Final order for the Juvenile along with the Chairperson. Members shall participate in the hearings and involve in a discussion when the prosecution and defence counsels present their arguments.

(h) The Social Worker members shall facilitate psychological counseling, family contact, and child study reports of the juveniles under their purview.

(i) maintain liaison with the Committee in respect of cases needing care and protection;

(j) liaison with Boards in other districts to facilitate speedy inquiry and disposal of cases through due process of law;

(k) take suitable action for dealing with unforeseen situations that may arise in the implementation of the Act and remove such difficulties in the best interest of the juvenile;

(l) send quarterly statement about juveniles in conflict with law produced before them, to the as required for information to the Chief Judicial Magistrate or Chief Metropolitan Magistrate and mark a copy to Directorate of Social Defence as required for review under sub-section (2) of section 14 of the Act;

(m) To liaison and co-ordinate with other agencies including NGOs, local bodies and specialized treatment centre for effectively making use of the non-detention disposition modes.

(n) any other function assigned by the State Government from time to time relating with juveniles in conflict with law.

### 13.5.4 Child In Need Of Care and Protection

**Child Welfare Committee**. There shall be a Child Welfare Committee in every district, which shall be constituted by the State Government through a Panel

**Composition of the Child Welfare Committee.**

The Committee shall consist of a Chairperson and four other members, of whom at least one shall be a woman.

The Chairperson and members of the Committee shall be appointed on the recommendation of a Selection Committee set up by the State Government.

All the members of Child Welfare Committee shall be given training and orientation on Child Rights, child psychology, child welfare, procedure of recording statements/evidences, conduct of the committee, Report preparation etc. for a period of not less than five days either prior to or soon after assuming office by the Department of Social Defence**.**

Calling of application for the selection of Social Worker member shall be made by the Director of Social Defence through website and press release through the District Collector. Display is also to be made in the Office of the Director of Social Defence and Collectorate of all the Districts.

**Tenure of the Committee**.

The Committee shall have a tenure of three years and the tenure of Chairperson and Members shall be co-terminus with the tenure of the Committee.

The Chairperson and Members of the Committee shall be eligible for appointment for a maximum of two consecutive terms.

Extension of the tenure of members of the Committee shall be on the basis of their performance appraisal by the District Child Protection Unit or the State Government and on the recommendation of the Selection Committee.

With a view to ensuring continuity on completion of the tenure of a Committee, the State Government shall constitute a new Committee before the expiry of the term of the existing Committee; where after the existing Committee shall handover all records and information to the newly formed Committee.

The Chairperson and Members may resign at any time by giving one month's notice in writing or may be removed from office as provided in sub-section (4) of section 29 of the Act.

Any casual vacancy in the Committee may be filled by appointment of another person from the panel of names prepared by the Selection Committee, and shall hold office for the remaining term of the Committee.

**Qualifications for Chairperson and Members of the Committee**

Any person to be appointed as the **Chairperson and Members of the Committee** should possess a Bachelors degree of a recognized University as educational qualification. Preference shall be given to persons having a degree in any one of the Social sciences such as Criminology, Psychology, Sociology, Social work, Economics, Home Science, Education, Political Science, Studies pertaining to women, Rural Development, Law or Medicine.

- The person to be appointed as **Chairperson and Members of the Committee** should have actively worked individually or with Government/NGO of repute, in Health, Education or other Welfare activities pertaining to children for at least 7 years

- The **Chairperson and Members of the Committee** shall be eligible for appointment for a maximum of two ***consecutive***terms and shall not be less than 35 years and more than 62 years of age at the time of appointment.

No person shall be considered for selection as **Chairperson and Members of the Committee**, if s/he:

(a) has been convicted under any law;

(b) have ever indulged in child abuse or employment of child labour or any other human rights violations or immoral act;

(c) is holding such other occupation that does not allow him to give necessary time and attention to the work of the **Committee**;

(d) does not fulfill the qualification and experience prescribed in the Act and the rules made there under and in such a case the Selection Committee shall after due inquiry and on establishment of such fact, reject his application and recommend the name of the next person from the list of names prepared for filling the vacancies.

(e) **Chairperson and Members of the Committee** shall not hold any office as "Public servant" in any capacity

(f) **Chairperson and Members of the Committee** shall not be a retired Government Servant within a period of 1 year

**(g)** No office holders or staff of any of the NGO which are licensed/recognized for either in-country or inter-country Adoption shall be appointed as Chairperson or member of the Child Welfare Committee. Such person who held office or served in such an NGO in any capacity shall also not be eligible for consideration within a period of three years from the date of resignation or relinquishment of the office. If the NGO itself has been either de-licensed or stopped adoption placement activities, a person from such an NGO will not be eligible at any point of time to be Chairperson or Members in CWC.

**Sitting and conveyance allowances** The Chairperson and Members of the Committee shall be paid such travel and sitting allowance, as the State Government may determine, but it shall not be less than rupees five hundred per sitting per member.

**Sitting of the Committee**.

- ✓ The Committee shall hold its sittings in the premises of the children's home or, at a place in proximity to the children's home or, at a suitable premises in any institution run under the Act for children in need of care and protection.

- ✓ On receiving information about child or children in need of care and protection, if
- ✓ circumstances are such that the child or children cannot be produced before the Committee, the Committee may move out to reach the child or children and hold its sitting at a place that is convenient for such child or children.
- ✓ The premises where the Committee holds its sittings shall be child-friendly and shall not look like a court room in any manner whatsoever; for example, the Committee shall not sit on a raised platform and the sitting arrangement shall be uniform and there shall be no witness boxes.
- ✓ The Committee shall meet a minimum of three days a week, which may be extended by the State Government depending on case and pendency of work.
- ✓ A minimum of three-fourth attendance of the Chairperson and Members of the
- ✓ Committee is necessary in a year.
- ✓ The duration of a sitting is dependent on the pendency of work before the Committee.
- ✓ Every member of the Committee shall attend a minimum of four hours per sitting.

### 13.6 Legislation relating to women harassment

**Law against women harassment**

India's first legislation exclusively addressing the issue of workplace sexual harassment; the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("POSH Act") was passed by the Ministry of Women and Child Development, India in 2013. The Government also then notify the rules under the POSH Act titled the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013 ("POSH Rules"). The year 2013 also witnessed the promulgation of the Criminal Law (Amendment) Act, 2013 ("Criminal Law Amendment Act") which has criminalized offences such as sexual harassment, stalking and voyeurism.

The law (Section 354 IPC) makes it a special crime to use force against a woman, or even threaten to use force, if the purpose is to 'outrage her modesty'. It treats it more gravely than normal and criminal force by allowing the police to make arrests for such crimes without a warrant. Courts usually make this determination by looking at all circumstances surrounding the incident. The Supreme Court referred to 'modesty' as feminine decency and a virtue that women possess owing to their sex. The punishment is jail time of between one and five years along with a fine.

Important: It is not enough that the victim's modesty is outraged. It is an offence only when the accused intended or knew it to be likely that the acts in question would outrage the victim's modesty.

List of Sexual harassments according to (Section 354A IPC):

- Unwelcome touching or other physical contact
- Asking or demanding sex or any other sexual activity
- Commenting remarks which are of a sexual nature
- Showing pornographic material which may include videos, magazines, books etc.

There is a separate law on sexual harassment at workplaces - The Sexual Harassment of women at workplace (prevention, prohibition and redressal) Act and Rules 2013 . There are provisions in the main criminal law (the Indian Penal Code or IPC) which are different from the special law on sexual harassment:

The IPC is not limited to sexual harassment at the workplace, but punishes such harassment done anywhere. The IPC makes it possible to file a criminal complaint if you have been sexually harassed, while the special law gives you the option of seeking civil remedies and damages, involving your office administration.

The imprisonment for the first three kinds of sexual harassment is for a period is three years as compared to the fourth type (making sexually coloured remarks) which is one year.

According to Section 354C IPC, it is a crime to look at or capture (say by means of a photograph or video) a woman going about her private acts, where she thinks that no one is watching her. The legal term for such acts is **voyeurism.**

This includes a woman:

- Using a toilet, or
- Who is undressed or in her underwear, or
- Engaged in a sexual act.

The punishment for the above crime is imprisonment for one to three years along with a fine. If someone is found guilty of committing the same crime more than one time, the punishment is jail time of between three and seven years along with a fine.

In a specific instance; If the woman agrees to private photos, it is not a crime to take them. However, if she expects them to remain with only certain people, then sharing them is a crime. The law makes it clear that the

woman has to expressly consent to both, watching/taking pictures as well as sharing them, for it to not be an offence.

According to Section 354D IPC, **Stalking** is -

- ❖ Continuously following a woman or contacting her,
- ❖ Either online or in person
- ❖ Where she has clearly shown she doesn't want the attention

It is punished by three years for a first offence, and five years for repeat offences. The section makes an exception if a person is stalking a woman as part of a legal duty to do so. The punishment is jail time of up to three years along with a fine. If someone is found guilty of committing the same crime for more than one time, the punishment is jail time of up to five years along with a fine.

### 13.7 Check your progress

Mention the causes for prostitution

Name the laws relating to Juvenile Delinquency

What are the objectives of preventive immoral traffic act 1956

Mention the purpose of Protective Homes

Who are the Persons to be protected by The Juvenile Justice Act (2000)

Define Observation homes

What do you mean by Special Juvenile Police Unit under JJ act

What are the Recommendations to protect abuse by police by JJ act

What is Principle of Best Interest

Mention the purpose and composition of Child Welfare Committee

List down the Sexual harassments done on women

### 13.8 Summary

Modern thinking in criminology does not subscribe to the idea of holding the criminal solely responsible for his behaviour and consequent infliction of punishment only with the objective of penalizing him. However, the new approach to correction and rehabilitation underlies the total correctional process which involves various various measures designed to correct and treat the criminal. It includes, in its totality, a variety of measures right from the detention state to post-sentence and after-care services.

## 13.9 Key words

Legislation relating to social problems such as prostitution, juvenile delinquency, women harassment

## 13.10 Self Assessment Questions

What is the composition of Juvenile Justice Board

Why Children involve in Terrorism

What are the areas of concern regarding The Juvenile Justice Act (GOI, 2000)

Sketch the significance of Juvenile Justice Act 2000

What do you by mean by Principle of last resort

Enumerate the functions of the Juvenile Justice Board

What are the Qualifications for Chairperson and Members of Child welfare Committee

## 13.11 Further Readings

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India Gangrada K.D., Social Legislation in India

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai.

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbai.

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi.

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London.

# Unit XIV

## 14.1 Structure – Contents of the unit

Legislation relating to child labor, untouchability, physical and mental disability

## 14.2 Objectives

To study the provisions relating to child labor and rehabilitations

To understand the concept of untouchability

To Realize the concept of physical and mental disability

# Legislation Relating to Child Labor

## 14.3 Introduction

Over the past two decades number of laws and programmes to address the problem of child labour has been initiated in India. Attempts have been made to ensure that children are protected from work and exploitation which is harmful to their development. It is ensured that children remain in economically stable family homes and get the opportunity to go to school and be educated.

**Causes and nature**

Poverty and illiteracy of a child's parents are the two prominent factors that contribute to child labour. More over family's social and economic circumstances, a lack of awareness about the harmful effects of child labour, lack of access to basic and meaningful quality education and skills training, high rates of adult unemployment and under-employment, and the cultural values of the family and surrounding society are the added reasons.

Often children are also bonded to labour due to a family indebtedness. Out of school children (OOSC) or those children at risk of dropping out can easily be drawn into work and a more vulnerable to exploitation. Girls, especially those from socially disadvantaged groups, tend to be at a higher risk of being forced into work for more than normal working hours as prescribe for an adult. Due to conflicts, droughts and other natural disasters, and family indebtedness, Rural poverty and urban migration also often exposes children to being trafficked for work.

### 14.3.1Child labour: recent trend

The types of child labour have changed in recent years due to enforcement of legislation, awareness amongst employers about child exploitation, and international pressure. Child labour is now more invisible because the location of the work has changed from the more formal setting of factories, to business owners' homes. There has also been an increasing involvement

of children in the home-based and informal sectors and hence it not easily traceable.

Children are employed in manual work, in domestic work in family homes, in rural labour in the agricultural sector such as cotton growing, at glass, match box and brass and lock-making factories, in embroidery, rag-picking, beedi-rolling, in the carpet-making industry, in mining and stone quarrying, brick kilns and tea gardens, match making, cracker work, stone polishing, etc.

Work is often gender-specific, with girls performing more domestic and home-based work, while boys are more often employed in wage labour. In general, the workload and duration of the working hours increases as children grow older. Getting precise, detailed data about children working in different sectors is a major challenge because, in many cases, children work in informal sectors such as agriculture, and in urban settings in restaurants and motor repair workshops.

**Statistics**

There were more than 10.2 million "economically active" children in the age group of five to 14 years – 5.6 million boys and 4.5 million girls, Eight million children were working in rural areas, and 2 million in urban areas, Although in rural settings the number of child workers decreased from 11 million to 8 million between the 2001 and 2011 censuses, over the same period, the number of children working in urban settings rose from 1.3 million to 2 million is the alarming statistics.

**The Policy Framework Surrounding Child Labour**

The major international laws dealing with child labour comprise the UN Convention on the Rights of the Child 1989 (CRC) and the International Labour Organization (ILO) conventions on the Minimum Age for Admission to Employment of 1973 (ILO Convention138) and on the Worst Forms of Child Labour of 1999 (ILO Convention182).

India has not ratified either of the two ILO conventions and also made a reservation to article 32 of the CRC at the time of ratification declared that it would apply the article in a progressive manner, according to its national legislation and international commitments, especially in relation to the minimum age of children to be engaged in work.

**14.3.2 National legislations:**

**Child Labour (Prohibition and Regulation) Act** (1986), "to prohibit the engagement of children in certain employments and to regulate the conditions of work of children in certain other employments" (preamble of the CLPR Act). It excludes a section of toiling children in the unorganized sectors including agriculture, as well as household work.

**National Policy on Child Labour** (1987), with a focal point more on rehabilitation of children working in hazardous occupations and processes,

rather than on prevention **Juvenile Justice (Care and Protection of Children) Act** 2000 (the JJ Act) and **amendment of the JJ Act** in 2006: includes the working child in the category of children in need of care and protection, without any limitation of age or type of occupation. Section 23 (cruelty to Juvenile) and Section 26 (exploitation of juvenile employee) exclusively deal with child labour under children in need of care and protection and has established number of institutions for this purpose.

**The Right to Education Act** 2009 has made it obligatory for the state to ensure that all children aged six to 14 years are in school and receive free education. Along with Article 21A of the Constitution of India recognizing education as a fundamental right, this constitutes a timely opportunity to use education to combat child labor in India. This has on the other hand reduced the children engaged in child labour.

**Indian legislation protects children from exploitation:**

- The Child Labour Prohibition Act 1986 prohibits the employment of children below the age of 14 in many occupations, such as domestic labour, and in the hospitality trade for example in roadside dhabas (restaurants), restaurants, hotels, motels and spas. It does not ban child labour in agriculture.

- The Right to Education Act 2009 ensures all children 6-14 years have the right to free and compulsory education and hence it discourages children to be employed.

- The Indian Constitution ensures the right of all children 6-14 years to free and compulsory education; prohibits forced labour; prohibits the employment of children below 14 years in hazardous occupations; and supports policies protecting children from exploitation.

- Fine: Whoever employs a child or permits a child to work is punishable with imprisonment from three months to one year or with fine no less than INR 10,000–20,000 rupees or with both.

- The Juvenile Justice (Care and Protection of Children) Act 2000 defines child as being below 18 years of age. Under the Convention on the Rights of the Child (CRC), ratified by India in 1992, all children have the right to be protected from work that is dangerous, or that might harm children's health or education.

- Child Protection units are formed at the state and the district level to protect the children

### 14.3.3 Promotional strategies to safeguard children:

- Alteration of existing legislation, as having a uniform minimum age for child labour, that brings policy coherence,

- Law enforcement to ensure the implementation of the Child labour Act,
- Expanding education access, improving quality and relevance of education
- Raising Awareness and mobilization of families and communities against the exploitation of children
- Improve the economic situation of families and to reduce the "need" to send children to work,
- Strengthening child protection systems, including the Integrated Child Protection Scheme and implementation of Juvenile Justice Act
- Net working of government departments and NGOs to prevent child labour and rehabilitate existing child laborers

### 14.4 Legislation relating to untouchability

**Strategy and Approach – Safeguard SC**

The Scheme of the Constitution reflects a three-pronged strategy for changing the status of Scheduled Castes and the Scheduled Tribes based on the traditional social order. This consists of:

(a) **Protection**: Legal/Regulatory measures for enforcing equality and removing disabilities; Providing strong punitive action against physical violence inflicted on them; Eliminating customary arrangements which deeply hurt their dignity and person; Preventing control over fruits of their labour and striking at concentration of economic assets and resources and setting up autonomous watch-dog institutions to safeguard interests, rights and benefits guaranteed to them.

(b) **Compensatory discrimination:** Enforcement of reservation provisions in public services, representative bodies and educational institutions.

(c) **Development**: measures to bridge the wide gap between the Scheduled Castes and other communities in their economic conditions and social status, covering allocation of resources and distribution of benefits.

This strategy was subsequently operationalised in the State policy and the commitment to this policy has been a feature of Indian State ever since. The policy has been strengthened and revised and its ambit made wider from time to time.

As regards the protective arrangements, to begin with, the Constitution itself has provided an elaborate framework for eliminating those customs,

practices, or institutional arrangements, including provisions in laws, if any, which tended to sanctify and reinforce untouchability practices and other discriminatory and degrading conditions imposed on these communities. Laws were made to operationalise these provisions.

The Untouchability Practices Act, 1955 was enacted in pursuance of Article 17 of the Constitution. This was subsequently strengthened and amended in 1976 and rechristened as Protection of Civil Rights Act to make it more effective. Later, as a result of implementation of State policies, when there was spurt in physical violence against members of Scheduled Castes and Scheduled Tribes, leading to brutalities such as mass murder, rape, arson, grievous injuries, etc. enactment of a special law for their protection was resorted to known as Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 to provide for strong punitive measures which could serve as a deterrence.

**Report on Prevention of Atrocities Against SCs & STs**

Additional laws were enacted from time to time to protect Scheduled Castes and Scheduled Tribes from sanctions of any customary laws and enforcement of degrading and humiliating practices imposed on them. The Employment of Manual scavengers and Construction of Dry Latrines (Prohibition) Act, 1993, which eliminates the most degrading practice of manual scavenging of human excreta by members of Scheduled Castes, is the most important among them. The other practice sought to be stopped related to sexual exploitation of SC girls. Andhra Pradesh and Karnataka enacted laws to eliminate practice of Devdasi system which sanctified a customary practice of dedicating a young girl from the SC community to the local deity which virtually resulted in her sexual enslavement. Maharashtra already had a law enacted in 1934 on the subject.

Laws were also enacted to prevent employers from appropriating fruits of labour, denying freedom of choice and resorting to other forms of exploitation of persons employed by them, though their focus was not confined to members of these communities but extended to all those who came within their ambit irrespective of their caste or social background. These labour laws, in any case, have impact on Scheduled Castes more than any other group in society by virtue of their poor economic conditions and low social status. Prominent among them were the Bonded Labour System (Abolition) Act,

1976, Minimum Wages Act, 1948, Equal Remuneration Act, 1976, Child Labour (Prohibition and Regulation) Act, 1986, Inter-State Migrant Workmen (Regulation of Employment and Conditions of Services) Act, 1979.

Laws were also enacted and arrangements made to strike at concentration of productive assets and economic resources in caste Hindus. In this category were included Land Reforms laws aimed at redistribution of land to SCs/STs and other rural poor and debt relief legislations for regulating credit transactions and checking usurious money lending.

The second part of this strategy relating to compensatory discrimination is reflected in making provisions for reservation of posts in public services through recruitment and promotion, reservation of seats in Legislative bodies at the Central, State and Panchayat Raj institutions and Municipal bodies, reservation of seats in admission to Educational and Professional Institutions, including relaxation of eligibility qualifications. This was done with a view to ensuring that members of these communities have their share in positions of power and decision making as also access to opportunities for higher education. It was felt that in open competition they may not be able to obtain their legitimate share because of their accumulated disabilities over centuries. These provisions had the intended objective of bridging the vast gap that existed between these groups and the rest of the society in these areas.

The third part of the strategy related to focused and comprehensive development of Scheduled Castes/Scheduled Tribes which was operationalised through allocation of funds and earmarking of benefits under various development programmes for members

**Commitment to Equality: Strategy and Approach**

These communities in order that they improve their economic conditions as a route to upward mobility was sought to be achieved by creating a mechanism within the planning process through which a specified percentage of budgetary resources could be earmarked for the benefit of these communities. In respect of Scheduled Castes, this is known as the Special Component Plan, which lay down that the concerned agencies should prepare a separate plan for development of Scheduled Castes by allocating a percentage of resources, which is at least equivalent to the percentage of their population in the State and the Centre, as the case may be.

These resources would be exclusively devoted to taking up programmes and activities which directly improved their economic conditions.

This provision was further strengthened by allocation of certain resources directly by the Central Government known as Special Central Assistance to be used for this purpose in addition to the earmarked funds under the Special Component Plan1. As a corollary to this arrangement, the State policy also mandated that in various development programmes which have a beneficiary orientation, it should be ensured that the number of beneficiaries belonging to Scheduled Castes (as also Scheduled Tribes) should at least be equivalent to the percentage of their population so that implementing agencies do not produce any alibis or resort to manipulation to deprive these communities of their share of benefit. In certain programmes where the gaps between Scheduled Castes (the same applied to Scheduled Tribes) and the rest of the community is excessively large, special arrangements are made to bridge this gap by way of additional resources allocation and through special institutional arrangements. Some of the areas qualifying for this dispensation are extension of literacy, poverty alleviation, land allotment for housing and cultivation, etc.

With the elaborate arrangements to protect SCs, it was necessary to monitor whether benefits were reaching the targeted communities and safeguards were getting enforced. Therefore, laws were made to set up watchdog institutions to look after this task. Four such institutions have been set up. While the National Commission for SCs and STs has been set up under the Constitution itself, National Human Rights Commission, National Commission for Women and National Commission for Safai Karamcharis were creation of separate Acts, i.e. Protection of Human Rights Act, 1993, National Commission for Women Act, 1990 and National Commission for Safai Karamcharis Act, 1993 respectively. National Human Rights Commission and National Commission for Women cater to complaints of all sections of society irrespective of caste within their specified mandate.

### 14.4.1 Report on Prevention of Atrocities Against SCs & STs

Role to play. This role, without doubt, had to be exercised through a conscious and positive tilt in favour of these marginalized and disadvantaged communities whenever pitted against formidable high caste groups, since the former would be too powerless to take on the fight on their own for a long period of time. It was, therefore, hoped that institutions of the State-the Executive, the Legislature and the Judiciary would positively respond to the letter and spirit of the constitutional scheme as well as the State policy. Lest the Government apparatus acts in an indifferent or biased manner, special watch-dog bodies were also created to ensure that commitment to this policy and institutional arrangements created for this purpose are not deviated from. Embedded in this strategy was also the cherished hope and idealistic vision that the larger Hindu society would also get transformed under the thrust of a liberal and humanistic polity and democratic process which would characterize its operations. In this manner, support base for this effort at social engineering would get widened leading to a positive change in the attitudinal and behavioral response of other communities towards these oppressed groups and their consequent mainstreaming of the latter as equal members of society.

In the sections of this paper which follow, it shall be examined whether the intended objectives of this three-pronged strategy were realized and whether the violence inflicted on Scheduled Castes, silently through disabilities, discriminations, biases and continuing untouchability practices, and overtly through physical assault in the form of heinous crimes like murder, rape, arson, etc., to enforce the caste based social order has been reduced and, if this has not happened, what went wrong with State policies and their implementation. We shall also examine in brief whether the inherent hope that the larger Hindu society would support these measures to rid of its obnoxious traditions and usher in a liberal, humanistic, and democratic society eager to catch up with the developed world was sustained and whether State-Civil society interface on this issue displayed the required harmony

**The Constitutional Scheme**

The Constituent Assembly debates recognized that a section of people in Indian Society had been denied certain basic rights since ancient times and had therefore remained economically, socially and educationally backward. As a result, this had created widespread disparities between them and the rest of the society and a situation had emerged which underlined the need for special measures to uplift their status.

This understanding is clearly reflected in the Constitution itself where a chapter under the title "Special provisions relating to certain classes" in Part-XVI has been incorporated. Special provisions have also been made for the Scheduled Castes and Scheduled Tribes in Part-X of the Constitution. The Constitution provides for protection and promotion of their social, economic, educational, cultural and political interests to remove the disparities and to bring them on par with other sections of the society. In addition, many articles in Parts III, IV, IX, IX- A, Fifth and Sixth Schedule of the Constitution reinforce these arrangements.

Article 14 provide that States shall not deny any person equality before law or the equal protection of laws within the territory of India. Article 15 operationalises the concept of equality in a manner which specifically touches upon the conditions of the Scheduled Castes and Scheduled Tribes. It says:

The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.

No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subjected to any disability, liability, restriction or condition with regard to -

(a) access to shops, public restaurants, hotels and places of public entertainment; or

(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

Nothing in this article shall prevent the State from making any special provision for women and children.

**Report on Prevention of Atrocities Against SCs & STs**

Nothing in this article or in clause (2) of article 29 shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.

The Constitution also contains provisions which guarantee certain minimum rights for all its citizens and also specifies duties which the State should discharge for social and economic development of backward

classes, specially Scheduled Castes and Scheduled Tribes. The rights of the citizens are guaranteed under the Chapter on Fundamental Rights contained in Part-III of the Constitution. The duties of the State are included in the Chapter on Directive Principles of the State Policy.

Article 46 under the Directive Principles of State Policy provides that "The State shall promote with special care, the educational and economic interest of weaker sections of the people and in particular of Scheduled Castes and Scheduled Tribes and shall protect them from social injustice and all forms of exploitation".

Article 366 (24) defines Scheduled Castes and Article 341 identifies the process through which such groups will be identified. Similar provisions have been made for Scheduled Tribes in Article 366(25) and Article 342 respectively.

The Constitution provides various safeguards to implement objectives enshrined in the preamble to the Constitution. These safeguards include social, economic, educational, cultural, political and service.

Social safeguards are contained in Article 17, 23, 24 and 25(2)(b) of the constitution. As per Article 17, untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of "untouchability has been made as an offence punishable in accordance with the law." Two important legislations have been enacted to give effect to contents of this article. The Protection of Civil Rights Act, 1955 has been enacted with the objective of providing punishment for preaching and practice of untouchability, in the enforcement of any disability arising therefrom and for matters connected therewith.

Article 25(2)(b) provides that Hindu religious Institutions of a public character shall be open to all classes and sections of Hindus. The term "Hindu" includes persons professing Sikh, Jain, and Buddhist religions. This provision strikes against the opinion held by some sects of Hindus; that members belonging to Scheduled Castes / Scheduled Tribes have no right to enter the temples. Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act 1989 seeks to prevent the commission of offences against the members of Scheduled Castes and Scheduled Tribes.

Article 23 prohibits traffic in human beings and 'begar' and forced labour in any form and contravention of this provision has been made an offence punishable in accordance with law. In pursuance of this Article, Bonded Labour System (Abolition) Act, 1976 has been enacted and a special programme for identification of bonded labourers, their liberation and rehabilitation has been in existence to operationalise its provisions. While this Act does not specifically mention Scheduled Castes and Scheduled Tribes, it is of special significance for them because majority of the bonded labour belongs to Scheduled Castes and Scheduled Tribes.

Article 24 provides that no child below the age of 14 years shall be employed to work in any factory or mine or engaged in any hazardous employment. There are Central and State Laws to prevent child labour

practices and providing relief to those engaged as child labour. The Central law is The Child Labour (Prohibition and Regulation) Act, 1986. A large number of child labourers engaged in hazardous employment belong to Scheduled Castes and Scheduled Tribes.

### 14.5 The Mental Health Act, 1987

Psychiatric Hospitals and Psychiatric Nursing Homes

The Central Government may, in any part of India, or the State Government may, within the limits of its jurisdiction, establish or maintain psychiatric hospitals or psychiatric nursing homes for the admission, treatment and care of mentally ill persons at such places as it things fit; and separate psychiatric hospitals and psychiatric nursing homes may be established or maintained for :-

(a) those who are under the age of sixteen years;

(b) those who are addicted to alcohol or other drugs which lead to behavioral changes in a person;

c) those who have been convicted of any offence; and

d) those belonging to such other class or category of persons as may be prescribed.

(2) Where a psychiatric hospital or psychiatric nursing home is established or maintained by the Central Government, any reference in this Act to the State Government shall, in relation to such hospital or nursing home, be constructed as a reference to the Central Government.

**Establishment or maintenance of psychiatric hospitals or psychiatric nursing homes only with license**

On and after the commencement of this Act, no person shall establish or maintain a psychiatric hospital or psychiatric nursing home unless he holds a valid license granted to him under this Act:

Provided that a psychiatric hospital or psychiatric nursing home (whether called asylum or by any other name) licensed by the Central Government or any State Government and maintained as such immediately before the commencement of this Act may continue to be maintained, and shall be deemed to be a licensed psychiatric hospital or licensed psychiatric nursing home, as the case may be, under this Act:-

(a) for a period of three months from such commencement, or

(b) if an application made in accordance with section 7 for a license is pending on the expiry of the period specified in clause (a), till the disposal of such application.

Nothing contained in sub-section (1) shall apply to a psychiatric hospital or psychiatric nursing home established or maintained by the Central Government or a State Government.

**Application for license**

Every person, who holds at the commencement of this Act, a valid license authorising that person to establish or maintain any psychiatric hospital or psychiatric nursing home, shall, if the said person intends to establish or continue the maintenance of such hospital or nursing home after the expiry of the period referred to in clause (a) of the proviso to sub-section (1) of section 6, make, at least one month before the expiry of such period, an application to the licensing authority for the grant of a fresh license for the establishment or maintenance of such hospital or nursing home, as the case may be.

A person, who intends to establish or maintain, after the commencement of this Act, a psychiatric hospital or psychiatric nursing home shall, unless the said person already holds a valid license, make an application to the licensing authority for the grant of a license.

Every application under sub-section (1) or sub-section (2) shall be in such form and be accompanied by such fee as may be prescribed.

**Grant or refusal of license**

On receipt of an application under section 7, the licensing authority shall make such inquiries as it may deem fit and where it is satisfied that –

(a) the establishment or maintenance of the psychiatric hospital or psychiatric nursing home or the continuance of the maintenance of any such hospital or nursing home established before the commencement of this Act is necessary;

(b) the applicant is in a position to provide the minimum facilities prescribed for the admission, treatment and care of mentally ill persons; and

(c) the psychiatric hospital or psychiatric nursing home, will be under the charge of a medical officer who is a psychiatrist, it shall grant a license to the applicant in the prescribed form, and where it is not so satisfied, the licensing authority shall, by order, refuse to grant the license applied for:

Provided that, before making any order refusing to grant a license, the licensing authority shall give to the applicant a reasonable opportunity of being heard and every order of refusal to grant a license shall set out therein the reasons for such refusal and such reasons shall be communicated to the applicant in such manner as may be prescribed

**Duration and renewal of license**

A license shall not be transferable or heritable

Where a licensee is unable to function as such for any reason or where a licensee dies, the licensee or, as the case may be, the legal representative of such licensee shall forthwith report the matter in the prescribed manner to the licensing authority and notwithstanding anything contained in sub-section (1), the psychiatric hospital or psychiatric nursing home concerned may continue to be maintained and shall be deemed to be licensed psychiatric hospital or licensed nursing home, as the case may be:-

(a) for a period of three months from the date of such report or in the case of the death of the licensee from the date of his death, or

(b) if an application made in accordance with sub-section (3) for a license is pending on the expiry of the period specified in clause (a), till the disposal of such application.

The legal representative of the licensee referred to in sub-section (2), shall, if he intends to continue the maintenance of the psychiatric hospital or psychiatric nursing home after the expiry of the period referred to in sub-section (2), make, at least one month before the expiry of such period, an application to the licensing authority for the grant of a fresh license for the maintenance of such hospital or nursing home, as the case may be, and the provisions of section 8 shall apply in relation to such application as they apply in relation to an application made under section 7.

Every license shall, unless revoked earlier under section 11, be valid for a period of five years from the date on which it is granted.

A license may be renewed, from time to time, on an application made in that behalf to the licensing authority, in such form and accompanied by such fee, as may be prescribed, and every such application shall be made not less than one year before the date on which the period of validity of the license is due to expire:

Provided that the renewal of a licensee shall not be refused unless the licensing authority is satisfied that –

(i) the licensee is not in a position to provide in a psychiatric hospital or psychiatric nursing home, the minimum facilities prescribed for the admission, treatment and care therein of mentally ill persons; or

(ii) the licensee is not in a position to provide a medical officer who is a psychiatrist to take charge of the psychiatric hospital or psychiatric nursing home; or

(iii) the licensee has contravened any of the provisions of this Act or any rule made there under.

**Prescribed conditions for Maintenance**

Every psychiatric hospital or psychiatric nursing home shall be maintained in such manner and subject to such condition as may be prescribed.

**Admission on voluntary basis**

Any person (not being a minor), who considers himself to be a mentally ill person and desires to be admitted to any psychiatric hospital or psychiatric nursing home for treatment, may request the medical officer in charge for being admitted as a voluntary patient.

Where the guardian of a minor considers such minor to be a mentally ill person and desires to admit such minor in any psychiatric hospital or psychiatric nursing home for treatment, he may request the medical officer-in-charge for admitting such minor as a voluntary patient.

**Request by guardian for admission of a ward**

On receipt of a request under section 15 or section 16, the medical officer-in-charge shall make such inquiry as he may deem fit within a period not exceeding twenty-fours and if satisfied that the applicant or, as the case may be, the minor requires treatment as an inpatient in the psychiatric hospital or psychiatric nursing home, he may admit therein such applicant or, as the case may be, minor as a voluntary patient.

Admission of, and regulation with respect to, voluntary patients

Every voluntary patient admitted to a psychiatric hospital or psychiatric nursing home shall be bound to abide by such regulations as may be made by the medical officer-in-charge or the licensee of the psychiatric hospital or psychiatric nursing home.

The medical officer-in-charge of a psychiatric hospital or psychiatric nursing home shall, on a request made in that behalf -

Discharge of voluntary patients

(a) by any voluntary patient; and

(b) by the guardian of the patient, if he is a minor voluntary patient,

discharge, subject to the provisions of sub-section (3) and within twenty-four hours of the receipt of such request, the patient from the psychiatric hospital or psychiatric nursing home.

Where a minor voluntary patient who is admitted as an inpatient in any psychiatric hospital or psychiatric nursing home attains majority, the medical officer-in-charge of such hospital or nursing home shall, as soon as may be, intimate the patient that he has attained majority and that unless a request for his continuance as an inpatient is made by him within a period of one month of such intimation, he shall be discharged, and if, before the

expiry of the said period, no request is made to the medical officer-in-charge for his continuance as an inpatient, he shall, subject to the provisions of sub-section (3), be discharged on the expiry of the said period.

Notwithstanding anything contained in sub-section (1) or subsection(2), where the medical officer in charge of a psychiatric hospital or psychiatric nursing home is satisfied that the discharge of a voluntary patient under sub-section (1) or sub-section (2) will not be in the interest of such voluntary patient, he shall, within seventy-two hours of the receipt of a request under sub-section (1), or, if no request under sub-section (2) has been made by the voluntary patient before the expiry of the period mentioned in that sub-section, within seventy-two hours of such expiry constitute a Board consisting of two medical officers and seek its opinion as to whether such voluntary patient needs further treatment and if the board is of the opinion that such voluntary patient needs further treatment in the psychiatric hospital or psychiatric nursing home, the medical officer shall not discharge the voluntary patient, but continue his treatment for a period not exceeding ninety days at a time.

**Admission under Special Circumstances**

Any mentally ill person who does not, or is unable to, express his willingness for admission as a voluntary patient, may be admitted and kept as an inpatient in a psychiatric hospital or psychiatric nursing home on an application made in that behalf by a relative or a friend of the mentally ill person if the medical officer-in-charge is satisfied that in the interests of the mentally ill person it is necessary so to do:

**Admission of mentally ill persons under certain special circumstances**

Provided that no person so admitted as an inpatient shall be kept in the psychiatric hospital or psychiatric nursing home as an inpatient for a period exceeding ninety days except in accordance with the other provisions of this Act.

Every application under sub-section (1), shall be in the prescribed form and be accompanied by two medical certificates, from two medical practitioners of whom one shall be a medical practitioner in the service of Government, to the effect that the condition of such mentally ill person is such that he should be kept under observation and treatment as an inpatient in a psychiatric hospital or psychiatric nursing home.

Provided that the medical officer, in charge of the psychiatric hospital or psychiatric nursing home concerned may, if satisfied that it is proper so to do, cause a mentally ill person to be examined by two medical practitioners working in the hospital or in the nursing home instead of requiring such certificates.

Any mentally ill person admitted under sub-section (1) or his relative or friend may apply to the Magistrate for his discharge and the Magistrate may, after giving notice to the person at whose instance he was admitted to

the psychiatric hospital or psychiatric nursing home and after making such inquiry as he may deem fit either allow or dismiss the application.

The provisions of the foregoing sub-section shall be without prejudice to the powers exercisable by a Magistrate before whom the case of a mentally ill person is brought, whether under this section or under any other provision of this Act, to pass a reception under, if he is satisfied that it is necessary so to do in accordance with the relevant provisions of this Act.

**Procedure on production of mentally ill person**

(a) examine the person to assess his capacity to understand,

(b) cause him to be examined by a medical officer, and

(c) make such inquiries in relation to such person as he may deem necessary.

After the completion of the proceedings under sub-section (1), the Magistrate may pass a reception order authorizing the detention of the said person as an inpatient in a psychiatric hospital or psychiatric nursing home,

(a) if the medical officer certifies such person to be a mentally ill person, and

(b) if the Magistrate is satisfied that the said person is a mentally ill person and that in the interests of the health and personal safety of that person or for protection of others, it is necessary to pass such order.

Provided that if any relative or friend of the mentally ill person desires that the mentally ill person be sent to any particular licensed psychiatric hospital or licensed psychiatric nursing home for treatment therein and undertakes in writing to the satisfaction of the Magistrate to pay the cost of maintenance of the mentally ill person in such hospital or nursing home, the Magistrate shall, if the medical officer in charge of such hospital or nursing home consents, make a reception order for the admission of the mentally ill person into that hospital or nursing home and detention therein:

Provided further that if any relative or friend of the mentally ill person enters into a bond, with or without sureties for such amount as the Magistrate may determine, undertaking that such mentally ill person will be properly taken care of and shall be prevented from being any injury to himself or to others, the Magistrate may, instead of making a reception order, hand him over to, the care of such relative or friend.

Every officer in charge of a police station, who has reason to believe that any person within the limits of his station is mentally ill and is not under proper care and control, or is ill-treated or neglected by any relative or other person having charge of such mentally ill person, shall forthwith

report the fact to the Magistrate within the local limits of whose jurisdiction the mentally ill person resides.

## 14.6 Check your progress

What are the recent trends on Child labour

Mention the various National legislations relating to child welfare

How Indian legislation protects children from exploitation

Enumerate the promotional strategies to safeguard children

What are the objectives of the Mental Health Act, 1987

## 14.7 Summary

Children are employed because they are cheap and pliable to the demands of the employer and not aware of their rights. The consequences on the children are observed in their physical, psychological and moral, health and wellbeing put the child under greater challenge on their development. It is evident that State clearly recognized that the violence, overt and covert, inflicted on the weak and vulnerable sections such as children and Scheduled Castes was rooted in the social structure and relations, which condemned them permanently to a life of indignity and social subordination. The three-pronged strategy gradually help to eliminate conditions which lead to this violence and over a period of time promote equality in society. Thus, the elaborate constitutional framework and the meticulously crafted state policy flowing from it, refined over a period of time as experience was gathered, was a conscious attempt at social engineering. It also emerges unequivocally that in this process of altering social relations, State had a very crucial, rather decisive role to play.

## 14.8 Key words

Child labor, untouchability, physical and mental disability

## 14.9 Self Assessment Questions

Describe the major provisions Child Labour (Prohibition and Regulation) Act 1986

Explain the Policy Framework for Surrounding Child Labour

Elaborate the Right to Education Act 2009

Describe Legislation relating to untouchability

List down Procedure on production of mentally ill person

## 14.10 Further Readings

Christopher, A.J. & Thomas William, A., 2006, Community Organisation and Social Action, Himala Publishers, Mumbai

Chowdhry, D.Paul, 1992, Social Welfare Administration, Atmaram & sons, New Delhi Constitution of India, 1991, Govt. of India

Donnisson, D. & Chapman, Valeris: Social policy and Administration, George Allen and Unpin, London

Dubey, S.N. Administration of Social Welfare programmes in India, Somaiya pub. Mumbai

Encyclopedia of Social Work, Vol. I, II, III, IV, Ministry of Welfare, Govt. of India Gangrada K.D., Social Legislation in India

Jagadeesan, P. 1990, Marriage and Social Legislations in Tamilnadu, Elachiapen Pub. Chennai.

Lalitha, N.V., 1981, Financial Assistance to Voluntary Organizations for Development, NIPCCD, New Delhi.

Madan, G.R., 1973, Indian Social Problems, Allied Publishers, Mumbai.

Santa Sharma, Bosotia, A.K., 1997, Management, Function, financial planning and policy, Kanishka publishers, New Delhi.

Skidmore and Miltons G. Thackeray, 1976, Introduction to Social Work, Princtice-Hall International, London.

Velayutham, K.Shanmuga, 1998, Social Legislation and Social Change, Vazha Valamudan, Publishers, Chennai

## MODEL QUESTION PAPER

**SECTION – A** **10 X 2 = 20**

**Answer ALL QUESTIONS**

1.Define Social Welfare Administration
2.What are the objectives of Social Legislation
3. Enumerate Social Justice for SC & ST
4. Explain the importance of Directive Principles of State Policy
5. Discuss the various roles of social policy
6. How children are address through social policy
7. Elucidate the role of social policy in bringing social justice
8. What do you mean by legal marriage according to Hindu marriage act
9. What are the problems of scheduled tribes
10. Who are called class I heir

**SECTION – B** **5x 5 = 25**

Answer **ALL** of the following

11a.Differentiate the Social Welfare Administration in Government and NGO's
11b.Enumerate the need for Social welfare administration for women
12a. Deliberate the function of the CSWB and SSWB
12b. State the procedure to Register a Society under societies Registration act
13a. Enumerate the major provisions of FCRA
13b. Describe the process of rehabilitation and reintegration of deviant children
14a. Describe the applicability of Lok Adalat, legal aid and PIL in providing welfare services to humanity
14b.How to promote de-notified communities
15a.Enumerate the roles of president

**SECTION – B** **3x 10 = 30**

Answer any **THREE** of the following

16. Discuss the various functions of social welfare administration

17.Portray the significance of social welfare administration at national and state level

18. Deliberate the sources and instruments of social policy

19. Workout strategies to combat various social problems through social legislations

20. How to provide welfare to the humanity through social policy and social legislation